SOLICITATION No. W912EE26RA009
DATE: 19 FEBRUARY 2026

SPECIFICATIONS FOR

MR&T, EAST BANK MISSISSIPPI RIVER LEVEES, MAGNA VISTA-BRUNSWICK, MISSISSIPPI LEVEE ENLARGEMENT AND BERMS MRL 465-L SLIDE REPAIR

THIS PROCUREMENT IS SET-ASIDE FOR THE MISSISSIPPI RIVER LEVEES, CONSTRUCTION OF LEVEE ENLARGEMENTS AND BERMS, MATOC CONTRACT HOLDERS.

US Army Corps of Engineers®

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♦Serving the Nation

VICKSBURG DISTRICT
4155 CLAY STREET
VICKSBURG, MS 39183-3435 CEMVK-CT-C

INQUIRIES
REGARDING THIS SOLICITATION SHOULD
BE MADE TO THE FOLLOWING:

https://www.projnet.org

Plans and specifications will be available on the Web Page at:
https://www.sam.gov/

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NUMBER W912EE26RA009	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED 19 FEBRUARY 2026	PAGE 1 OF PAGES 48

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER	5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER PAN 026130

7. ISSUED BY CODE W912EE	8. ADDRESS OFFER TO
W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES AMY STARKS, EMAIL: AMY.L.STARKS@USACE.ARMY.MIL TELEPHONE: 601-631-5693	

9. FOR INFORMATION CALL:	a. NAME AMY STARKS	b. TELEPHONE NUMBER *(Include area code) (NO COLLECT CALLS)* 601-631-5693

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

PROJECT TITLE: MR&T, EAST BANK MISSISSIPPI RIVER LEVEES, MAGNA VISTA-BRUNSWICK, MISSISSIPPI LEVEE ENLARGEMENT AND BERMS MRL ITEM 465-L SLIDE REPAIR
PROJECT LOCATION: JACKSON, MISSISSIPPI

MR&T, EAST BANK MISSISSIPPI RIVER LEVEES
MAGNA VISTA - BRUNSWICK, MISSISSIPPI
LEVEE ENLARGEMENT AND BERMS
MRL ITEM 465-L SLIDE REPAIR

THE WORK CONSISTS OF FURNISHING ALL PLANT, LABOR, MATERIALS AND EQUIPMENT, AND CONSTRUCTING MRL ITEM 465-L SLIDE REPAIR AND LEVEE ENLARGEMENT, STABILITY BERMS, AND RAMP IN ISSAQUENA COUNTY, MISSISSIPPI. PRINCIPAL FEATURES OF WORK INCLUDE MOBILIZATION AND DEMOBILIZATION, CLEARING AND GRUBBING, REMOVING OF EXISTING SURFACING, EXCAVATING AND STOCKPILING EXISTING LEVEE MATERIAL, SEMI-COMPACTED LEVEE EMBANKMENT, SEMI-COMPACTED STABILITY BERM EMBANKMENT, FULLY COMPACTED LEVEE EMBANKMENT, PLACING CRUSHED STONE SURFACING, RAMP CONSTRUCTION, MOWING, TURFING, STORM WATER POLLUTION PREVENTION, ENVIRONMENTAL PROTECTION, AND ALL OTHER WORK THERETO.

IN ACCORDANCE WITH FAR 36.101-3 DISCLOSURE OF THE MAGNITUDE OF CONSTRUCTION PROJECTS, THE ESTIMATED PRICE RANGE OF THIS PROJECT IS $5,000,000.00 BETWEEN $10,000,000.

11. The contractor shall begin performance within 10 calendar days and complete it within 275 calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. ***(See*** FAR 52.211-10 ***).***

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b.)* ☒ YES ☐ NO	12b. CALENDAR DAYS 30

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and ______ copies to perform the work required are due at the place specified in Item 8 by 02:00 PM ***(hour)*** local time 20 MAR 2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*

15. TELEPHONE NUMBER *(Include area code)*

16. REMITTANCE ADDRESS *(Include only if different than Item 14.)*

CODE FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within ________ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)*

AMOUNTS ▶

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

20b. SIGNATURE

20c. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

22. AMOUNT

23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* ▶ ITEM

25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT

☐ 10 U.S.C. 3204(a) (   ) ☐ 41 U.S.C. 3304(a) (   )

26. ADMINISTERED BY

27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return ________ copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*

31a. NAME OF CONTRACTING OFFICER *(Type or print)*

30b. SIGNATURE

30c. DATE

31b. UNITED STATES OF AMERICA

BY

31c. DATE

Section 00 00 00 - Procurement and Contracting Requirements

Instrument Name: MRL ITEM 465-L SLIDE REPAIR

MR&T, EAST BANK MISSISSIPPI RIVER LEVEES MAGNA VISTA – BRUNSWICK, MISSISSIPPI LEVEE ENLARGEMENT AND BERMS MRL ITEM 465-L SLIDE REPAIR The work consists of furnishing all plant, labor, materials and equipment, and constructing MRL Item 465-L slide repair and levee enlargement, stability berms, and ramp in Issaquena County, Mississippi. Principal features of work include mobilization and demobilization, clearing and grubbing, removing of existing surfacing, excavating and stockpiling existing levee material, semi-compacted levee embankment, semi-compacted stability berm embankment, fully compacted levee embankment, placing crushed stone surfacing, ramp construction, mowing, turfing, storm water pollution prevention, environmental protection, and all other work thereto.

IN ACCORDANCE WITH FAR 36.101-3 DISCLOSURE OF THE MAGNITUDE OF CONSTRUCTION PROJECTS, THE ESTIMATED PRICE RANGE OF THIS PROJECT IS BETWEEN $5,000,000.00 and $10,000,000.

MR&T, East Bank Mississippi River Levees, Magna Vista-Brunswick, Mississippi Levee Enlargement and Berms MRL ITEM 465-L Slide Repair

Proposal Package Requirements

Offerors Shall Submit with their Proposal Package:

1) A Complete and **Signed SF-1442** with Amendments Acknowledged.

2) A Complete **Bid Schedule**, with the Offerors Unit Price, and Total Line Item Bid $ Amounts.

3) An accurately completed copy of the **Offerors Representations and Certifications** (Ref. FAR Clause 4.203 System for Award Management).

In lieu of the completed FAR 4.203 System for Award Management, the bidder may certify in their proposal package that their Online Representations and Certifications are available electronically at www.sam.gov. (Ref. FAR Clause 52.204-7 System for Award Management).

*** END OF NARRATIVE 1 ***

Section 00 01 15 - List of Drawing Sheets

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Statement of Work (SOW)final	Statement of Work		17 Feb 2026		203	Attachment	No
0002	MRL Item 465-L Drawings	Drawings		17 Feb 2026		37	Attachment	No
0003	Wage Determination MS20260002	Wage Determination		05 Feb 2026		5	Attachment	No

SECTION 00 10 00: BIDDING SCHEDULE:
MR&T, EAST BANK MISSISSIPPI RIVER LEVEES,
MAGNA VISTA-BRUNSWICK, MISSISSIPPI LEVEE ENLARGEMENT AND BERMS
MRL 465-L SLIDE REPAIR

ITEM	DESCRIPTION	EST QTY	U/M	UNIT PRICE	AMOUNT
0001	MOBILIZATION AND DEMOBILIZATION	1	JOB	FOR	$
0002	CLEARING AND GRUBBING	1	JOB	FOR	$
0003	REMOVAL OF EXISTING SURFACING	1	JOB	FOR	$
0004	TURFING AND MOWING	1	JOB	FOR	$
0005	ENVIRONMENTAL PROTECTION FEATURES	1	JOB	FOR	$
0006	EXCAVATION AND STOCKPILE OF EXISTING LEVEE MATERIAL	1	JOB	FOR	$
0007	LEVEE EMBANKMENT, SEMICOMPACTED	194,900	CY	$	$
0008	BERM EMBANKMENT, SEMICOMPACTED	52,700	CY	$	$
0009	LEVEE EMBANKMENT, FULLY COMPACTED	10,900	CY	$	$
*0010	LEVEE SURFACING, CRUSHED STONE	2,330	TN	$	$
*0011	RAMP	1	JOB	$	$
*0012	TURFING AND MOWING, LEVEE AND LEVEE/BERM Sta. 8200+00 TO Sta. 8300+00	1	JOB	$	$
				TOTAL	$

Section 00 20 00 - Instructions for Procurements

CONTRACTOR INFORMATION SHEET

TOTAL PROPOSAL AMOUNT:	______________________________
CONTRACTOR'S ADDRESS:	______________________________
CAGE CODE:	______________________________
UEI NUMBER:	______________________________
PONIT OF CONTACT:	______________________________
TELEPHONR NUMBER:	______________________________
EMAIL:	______________________________
DATE:	______________________________

Section 00 21 00 - Instructions

Instructions to Offerors or Bidders:

NOTES:

(A) In accordance with DFARS 240.370-5 the following provisions and clauses are required in all solicitations except for solicitations/contracts solely for the acquisition of commercially available off-the-shelf (COTS) items:

Provision - 252.204-7008, Compliance with Safeguarding Covered Defense Information Control.

Clause - 252.204-7009, Limitations on the Use or Disclosure of Third- Party Contractor Reported Cyber Incident Information.

Clause - 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting

Clause - 252.204-7997, NIST SP 800-171 DoD Assessment Requirements.

(B) In the case of solicitation **W912EE26RA009**, implementation of a NIST SP 800-171 assessment is not a requirement since there is no covered defense information provided by the Government in the release of the solicitation, and the solicitation contains no controlled technical information. All information related to this project has been posted for full public view at www.sam.gov.

(C) Reference Limitations on Subcontracting FAR 52.219-14. This procurement is 100% Set-aside under NACIS Code 237990-Other Heavy and Civil Engineering Construction, for Total Small Business. The small business size standard is $45,000,000. THIS PROCUREMENT IS SET-ASIDE FOR THE MISSISSIPPI RIVER LEVEES, CONSTRUCTION OF LEVEE ENLARGEMENTS AND BERMS, MATOC CONTRACT HOLDERS. NO OTHER OFFERS WILL BE CONSIDERED. The awardee of this contract shall comply with all requirements up to and including the following:

Services (except construction): Contractor will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

Supplies (other than procurement from a nonmanufacturer of such supplies): Contractor will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract.

General construction: Contractor will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded.

Construction by special trade contractors: Contractor will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

Upon the Contracting Officer's request, the Contractor shall submit a report to the Contracting Officer documenting compliance with FAR 52.2l9-l4. If the Contractor is using Similarly Situated Entities, it must be clearly identifiable in the submitted reports. If the required percentage is not being met the Contractor shall also include, with the semiannual report, a plan to meet the required percentage before the contract end date.

The below calculation for FAR 52.219-14 is for example only and not representative of this solicitation or any contract that may be awarded as a result of this solicitation.

1. Total value of contract award = $5,000,000.00

2. Cost of materials = $3,000,000.00

3. Adjusted amount (contract award value less cost of materials): $2,000,000.00 ($5,000,000.00 - $3,000,000.00)

4. 85% of $2,000,000.00 may be paid to non-similarly situated entities ($1,700,000.00)

5. 15% of $2,000,000.00 must be paid to a similarity situated entity ($300,000.00)

What is similarly situated and what does it mean for the prime?

i. 1st tier subcontractor that has the same small business program status of the qualified prime contractor (i.e. HUBZone prime contractor, any HUBZone subcontractor is similarly situated).
ii. Any 1st tier subcontracts to similarly situated entities can count towards the prime contractor's self-performance requirements.
iii. Example: HUBZone Set-Aside Contract, 1st Tier is a HUBZone Small Business subcontractor. This meets the similarly situated requirement and the work performed by the HUBZone subcontractor will count towards the HUBZone prime contractor's self-performance requirement.
iv. Example: SDVOSB Set Aside Contract, 1st Tier is a WOSB subcontractor only, this does not meet the "similarly situated" requirement and the WOSB subcontractor performance does not count towards the SDVOSB prime contractor's self-performance requirement.
Partnering With Us, https://www.usace.army.mil/Business-With-Us/Partnering/, in all solicitation notices posted at the Governmentwide point of entry for construction contracts anticipated to be awarded to a small business pursuant to FAR Part 19 to be in compliance with FAR 36.211(b).

(D) All technical inquiries and questions relating to this solicitation are to be submitted via bidder inquiry in ProjNet at https://www.projnet.org/project. See special notices to bidder's page entitled "Technical Inquiries and Questions"

(E) Offerors or Bidders shall furnish unit prices for all items listed on the schedule of bid items which require unit prices. If the bidder fails to insert a unit price in the appropriate blank for required items, but does furnish an extended total or an estimated amount for such items, the Government will deem the unit price to be the quotient obtained by dividing the extended estimated amount for that line item by the quantity. IF THE BIDDER OMITS BOTH THE UNIT PRICE AND THE EXTENDED ESTIMATED AMOUNT FOR ANY ITEM, THE BID WILL BE DECLARED NONRESPONSIVE.

(F) All quantities shown on the BIDDING SCHEDULE are estimated quantities except when the unit of measure is shown as "job" or "each".

(G) If a bid or modification to a bid based on unit price is submitted which provides for a lump sum adjustment to the total estimated cost, the application of the lump sum adjustment to the unit price in the schedule must be stated. If it is not stated, the bidder agrees that the lump sum adjustment shall be applied on a pro rata basis to the unit price in the Bid Schedule.

(H) All extensions of the unit price shown will be subject to verification by the Government. In case of variation between the unit price and the extension, the unit price will be considered to be the bid.

(I) Award will be made, as a whole to the lowest responsive, responsible bidder as may be in the best interest of the Government.

(J) The contractor should be aware of the additional surveying requirements for this contract. See Section 01 00 00.00 09 for more information.

(K) THE NOTICE TO PROCEED (NTP): The successful bidder is advised that performance and payment bonds shall be submitted in accordance with the time frame in block 12B of SF1442. The NTP will be issued immediately after verification of acceptable performance and payment bonds. Within seven (7) calendar days after issuance of the NTP, the Contractor shall initiate a meeting to discuss the submittals process with the Administrative Contracting Officer (ACO), or the Contracting Officer's Representative (COR), or their authorized representative. Physical work cannot start until the Accident Prevention Plan, Contractor Quality Control Plan, and other submittals which may be required, have been submitted and approved and all preliminary meetings called for under the contract, have been conducted. The contract performance duration has been determined as stated in the specifications and includes sufficient time for the preparation, submittal and approval of all pre-work documents and all Pre-Construction conferences required prior to commencement of work on site.

(L) Lack of registration in the WWW.SAM.gov database will make an offeror ineligible for award. See contract clause 52.204-7 entitled, "system for award management".

(M) The SF-1442, Bidding Schedule, and Bidder Representations and Certifications must be accurately completed and returned with your bid, or it may be rejected as nonresponsive. An offeror may also submit, in lieu of the completed FAR Clause 4.203 System for Award Management, certifications with their bid package that their online Representations and Certifications from www.sam.gov. See FAR Clauses 52.204-7 is available.

(N) All work under these specifications shall be performed in accordance with the most recent provisions of EM 385-1-1 "Corps of Engineers Safety and Health Requirements Manual", dated 15-March-2024.

(O) The government reserves the right, as the interests of the government may require, to postpone or delay the date and/or time set for opening bids. Revisions or amendments to the bid opening date and/or time, if any, will be announced by amendment or amendments to this invitation for bids.

GENERAL NOTICES:

1. AUTHORITY & APPROPRIATION INFORMATION PROGRAM DATA

AUTHORITY: Flood Control Acts of 1928, 1936, 1941, 1944, 1946, 1950, 1954, 1962, 1965, 1968, River Basin Monetary Authorization Act of 1971, WRDA 1992, SEC 103, WRDA 2000, Section 508

APPROPRIATION: Consolidated Appropriations Act, 2023/PL 117-328

FUNDING CITATION: Operation and Maintenance, 96 X 3112

2. BID, PERFORMANCE AND PAYMENT BONDS.

A bid guarantee/bond is **NOT** required for this procurement. Performance and payment bonds with be required after award. See Section 00700, Contract Clauses 52.228-1, BID GUARANTEE and 52.228-15, PERFORMANCE AND PAYMENT BONDS -- CONSTRUCTION

3. AMENDMENTS PRIOR TO DATE SET FOR OPENING BIDS.

The right is reserved, as the interest of the Government may require, to revise or amend the specifications and/or drawings prior to the date set for opening bids. Such revisions or amendments, if any, will be announced by amendment or amendments to this Invitation for Bids. Copies of such amendments as may be issued will be furnished to all prospective bidders. If the revision or amendments are of a nature which require material changes in quantities or prices bid or both, the date set for opening bids may be postponed by such number of days as in the opinion of the District Engineer will enable bidders to revise their bids. In such case, the amendments will include an announcement of the new date for opening bids.

4. BUSINESS INTEGRITY.

Successful offerors as a condition for award of any contract resulting from this Request for Proposal (RFP) may be required to execute a certificate related to Business Integrity.

5. CONDITIONS AFFECTING THE WORK.

Offerors or Bidders should visit the site and take such other steps as may be reasonably necessary to ascertain the nature and location of the work, and the general and local conditions which can affect the work or the cost thereof. Failure to do so will not relieve bidders from responsibility for estimating properly the difficulty or cost of successfully performing the work. The Government will assume no responsibility for any understanding or representations concerning conditions made by any of its officers or agents prior to the execution of the contract, unless included in the Invitation for Bids, the specifications, or related documents.

6. SITE OF THE WORK.

Offerors or Bidders are advised that for purpose of applicability of the Davis-Bacon Act and other contract labor standard provisions, "the site of the work" under the contract to be awarded pursuant to this Invitation may not be limited to the physical place(s) where the construction called for in the contract will remain when work on it has been completed. The "site of the work" may include other adjacent or nearby property used by the Contractor or Subcontractors during such construction. For example, fabrication plants, mobile factories, batch plants, borrow pits, job headquarters, tool yards, etc., will be considered part of the site of the work provided they are dedicated exclusively or nearly so to performance on the contract and are so located in proximity to the actual construction location that it would be reasonable to include them.

7. INFORMATION REGARDING BIDDING MATERIAL, BID GUARANTEE, AND BONDS.

a. Specifications, Bidding Schedule, Pre-award Information/Description of Work/Bid Evaluation, Equipment Schedule, Construction Contract Clauses, and Wage Determination Decisions of the Secretary of Labor, are parts of this Invitation for bids.

b. (1) An offeror (bidder) electing to use individual sureties for either bid guarantees or performance and payment bonds must submit, concurrently with the bonds and required affidavits, a statement of both the business and personal names of the persons and financial institution through whom the bonds or the guarantees are held, together with the address and telephone number of the persons and/or financial institution authorized to commit the surety.

(2) Offerors or bidders should note that some individual sureties have been debarred or suspended from offering themselves or others as sureties to the Government. Offerors or bidders are responsible for ascertaining the current status of their sureties.

(3) Failure to provide the required information or the submission of bid guarantees obtained from debarred or suspended sureties or brokers may cause rejection of the offer (bid).

8. DEFINITIONS

(a) The term "head of the agency" or "Secretary" as used herein means the Secretary of the Army; and the term "his duly authorized representative" means the Chief of Engineers, Department of the Army, or an individual or board designated by him.

(b) "Contracting Officer" means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings. The term includes certain authorized representatives of the Contracting Officer acting within the limits of their authority as delegated by the Contracting Officer.

(c) The agency board of contract appeals having jurisdiction over all appeals from final decisions of the Contracting Officer under the Contract Disputes Act of l978 is the Armed Services Board of Contract Appeals, addressed as follows: Recorder, Armed Services Board of Contract Appeals, Skyline 6, 7th Floor, 5109 Leesburg Pike, Falls Church, Virginia 22041-3208.

(d) "Small business concern" means a concern including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria and size standards in 13 CFR 121.

9. Size Standards for Construction and Special Trades.

(a) Construction. A concern is small if its average annual receipts for its preceding 3 fiscal years did not exceed $45 million.

SPECIAL NOTICES:

1. Proposals shall only be sent Electronically to Amy L. Starks at **Amy.L.Starks@usace.army .mil** and copy Robert Ellis Screws at **Ellis.Sccrews@usace.army.mil.** Proposals must be received prior to the exact time set for Proposals Due Time.

Offerors must provide full, accurate, and complete information as required by the solicitation and its attachments. The penalty for making false statements in proposals is prescribed in 18 U.S.C. 1001. (FAR 52.214-4 APR 1984)

2. Proposals for the work described herein will be received until date and time of the proposal due date.

3. Your attention is directed to section 00100-bid schedule/instructions to bidders' clause 52.214-5 entitled "submission of bids". It is the bidder's responsibility to ensure that bids sent by commercial carrier are clearly identified as containing a sealed bid on the outermost envelope. This includes, but is not limited to, bids sent via: Federal Express, Express Mail - U.S. Postal Service, or United Parcel Service.

4. Note the affirmative action requirement of the equal opportunity clause which may apply to the contract resulting from this solicitation.

5. See section 00 80 00.00 09, special contract requirements, clause entitled "commencement, prosecution, and completion of work".

6. See section 01 00 00.00 09, general contract requirements clause, entitled, "payment invoices" which will apply to the contract resulting from this solicitation. The federal acquisition regulation requires that the "remit to" address of the invoice match the "remit to" address on the contract or a proper notice of assignment.

7. In accordance with FAR 42.1102(e), Agencies must prepare past performance evaluations for each construction contract of $900,000 or more, and for each construction contract terminated for default regardless of contract value. Past performance evaluations may also be prepared for construction contracts below $900,000. Past performance evaluations will be prepared by the MVK at least annually and at the time the work under a contract or order is completed and will be entered into the Contractor Performance Assessment Reporting System (CPARS), the Governmentwide evaluation reporting tool for all past performance reports on contracts located at http://www.cpars.gov/

8. Electronic Funds Transfer (EFT)

All vendor direct deposit and Electronic Funds Transfer (EFT) information must be entered/maintained in the System for Award Management (SAM) located at www.SAM.gov. UFC Form 23, previously required for direct deposits/EFT payments by the Vicksburg District (MVK) is obsolete. To receive direct deposits/EFT payments, routing and banking information must be entered and maintained in the SAM. Failure to update /maintain this information in the SAM will result in vendors receiving payments via Treasury checks distributed by U.S. mail. The below links are provided for your information.

How do I update the banking information on my Sam.gov entity registration?

https://www.fsd.gov/gsafsd_sp?id=gsafsd_kb_articles&sys_id=003e5979dbe1259494439f95f39619cd

What is an Electronic Funds Transfer (EFT) indicator and how do I create one?

https://www.fsd.gov/gsafsd_sp?id=gsafsd_kb_articles&sys_id=83629ecadb69e99494439f95f3961958

If you have further questions, please visit the Federal Service Desk (FSD) at www.FSD.gov.

9. Proposals will not be accepted, nor shall proposals be withdrawn electronically or by telephone.

Prior to proposal due date, in accordance with federal acquisition regulation part 15.107(d) modification or withdrawal of bids, "Proposals may be withdrawn by written notice at any time before award."

10. All Technical inquiries and questions related to this solicitation shall be submitted via ProjNet.

Technical inquiries and questions relating to this solicitation are to be submitted via bidder inquiry in ProjNet at (https://www.projnet.org). Bidders or Offerors are encouraged to submit questions 5 days prior to bid opening to ensure adequate time is allotted to form an appropriate response and amend the solicitation, if necessary. To submit and review inquiry items, prospective vendors will need to use the bidder inquiry key presented below and follow the instructions listed below the key for access. A prospective vendor who submits a comment /question will receive an acknowledgement of their comment/question via email, followed by an answer to the comment/question after it has been processed by our technical team.

All timely questions and approved answers will be made available through ProjNet.

The solicitation number is: W912EE26RA009

The bidder inquiry key is: Z8H54A-YPCKDV

Specific instructions for ProjNet bid inquiry access:

1. From the ProjNet home page linked above, click on quick add on the upper right side of the screen.
2. Identify the agency. This should be marked as USACE.
3. Key. Enter the bidder inquiry key listed above.
4. Email. Enter the email address you would like to use for communication.
5. Click continue. A page will then open saying that a user account was not found and will ask you to create one using the provided form.
6. Enter your first name, last name, company, city, state, phone, email, secret question, secret answer, and time zone. Make sure to remember your secret question and answer as they will be used from this point on to access the ProjNet system.
7. Click add user. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Specific instructions for future ProjNet bid inquiry access:

1. For future access to ProjNet, you will not be emailed any type of password. You will utilize your secret question and secret answer to log in.
2. From the ProjNet home page linked above, click on quick add on the upper right side of the screen.
3. Identify the agency. This should be marked as USACE.
4. Key. Enter the bidder inquiry key listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Click continue. A page will then open asking you to enter the answer to your secret question.
7. Enter your secret answer and click login. Once this is completed you are now logged into the system.

11. Tax on Foreign Purchases FAR provision 52.229-11 and FAR clause 52.229-12
FAR provision 52.229-11 and FAR clause 52.229-12 are included in this solicitation. This provision and clause concern the imposition of a 2 percent Federal excise tax withholding on any resultant contract award or payment request. This rule applies to Federal Government contracts for goods or services that are awarded to foreign persons - such as foreign contractors. It implements the Department of the Treasury's final regulations published in the Federal Register at 81 FR 55133 on August 18, 2016, under section 5000C

of the Internal Revenue Code relating to the 2 percent tax on payments made by the U.S. Government to foreign persons pursuant to certain contracts. Pursuant to the FAR 52.229-3 Federal, State, and Local Taxes, taxes imposed under 26 U.S.C. 5000 C may not be included in the contract price or reimbursed.

Exemptions from this excise tax must be claimed by an Offeror when it submits, with its offer, a U.S. Department of Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/W14. If not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent on each contract payment. Failure to submit an IRS Form W-14 with each payment request will also result in an automatic withholding of 2 percent from the payment request.

When filling out the IRS Form W-14 the following information may be used to complete Part I, Lines 6 and 7.

Line 6 Contract/reference number: [W912EE26RA009]

Line 7 "Name and address of the acquiring agency": [USACE, Vicksburg District, 4155 Clay Street, Vicksburg MS. 39183]

Any exemption claimed and self-certified is subject to audit by the IRS. Any disputes concerning this tax are adjudicated by the IRS because the Section 5000C tax is a tax matter not a contract issue.

Offerors are encouraged to seek guidance from their own tax professionals for advice concerning the provision, clause, and exclusions exclusion/submission of IRS Form W-14. Additional information is also available at:
Notwithstanding the above, the USACE does not have a means of withholding this excise tax at this time. As a result, contractors are expected to comply with the instructions above and to properly complete and return the W-14 at proposal submission, and with each pay application. Whether the contractor sets the money aside for future payment to the IRS, or makes payment to the IRS, is the contractor's discretion, based on its analysis of the regulations regarding the excise tax. In the event that USACE is able to withhold during contract performance, it will notify the contractor and make such a withholding (including any catch up withholdings); no advance notice is required to the contractor prior to the withholding. Under no circumstances is USACE liable for any tax not paid by the contractor. The contractor is liable for the tax, to the extent required by law, regardless of whether USACE makes a withholding.

FAR 29.204 expressly states that "[a]gencies merely withhold the tax (section 5000C tax) for the Internal Revenue Service (IRS). All substantive issues regarding the underlying section 5000C tax, e.g., the imposition of, and exemption from the tax, are matters under the jurisdiction of the IRS." Therefore, we cannot help you determine how the tax law applies to you. We strongly recommend that you contact the IRS and/or a tax professional should you have any questions of this nature. To be clear, this information does not constitute tax advice or a representation of your tax liability. Furnishing this information does not create liability for the USACE for any Federal, state, or local taxes applicable to the above-referenced contract or any other contract.

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For submission requirements and basis of evaluation:

Executed FAR Provision 52.229-11.

Completed IRS Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, if applicable. If not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent on each payment.

Veterans Employment Emphasis for U.S. Army Corps of Engineers Contracts:

In addition to complying with the requirements outlined in FAR Part 22.13, Subpart 5122.13, FAR Clause 52.222-35, FAR Clause 52.222-37, DFARS 222.13 and Department of Labor regulations, U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant contract, USACE contractors are encouraged to seek out highly qualified veterans to perform services under this contract. The following resources are available to assist USACE contractors in their outreach efforts:

- U.S. Department of Labor Veterans' Employment and Training Service (VETS): https://www.dol.gov/vets/

- Federal Veteran Employment Information: https://www.fedshirevets.gov/

- Veterans Opportunity to Work (VOW) Program: https://www.benefits.va.gov/vow/

- U.S. Army Warrior Transition Command Employment Index: https://wct.army.mil/modules/employers/index.html

- Hiring Our Heroes: https://www.uschamberfoundation.org/hiring-our-heroes

Army Contract Writing System (ACWS) Transition Information for Contractors.

a. The Department of the Army is in the process of deploying a new solicitation and contract writing software application to Army contracting offices worldwide. Known as the Army Contract Writing System (ACWS), this modern software application will replace most existing Army contract writing systems, including the system used to create and release this Contract.

b. During this transition period, Contractors are hereby advised:

1. The Contracting Office may use any combination of contract writing systems to generate distributable copies of this contract during its period of performance, as well as any subsequent modifications or orders (if applicable). As a result

i. Subsequent documents you receive may appear noticeably different than the original award or previous contractual documents from the same Contracting Office.

ii. A change between contract writing systems may cause important information concerning contract terms and conditions to take on different formatting or appear in different parts of later documents issued.

iii. Contractors shall ensure Customer Relationship Management (CRM) systems and personnel interacting with this contract are prepared to identify and respond appropriately to differences between document versions.

2. The Government does not intend to use the shift between contract writing systems to effect any changes to Contract terms and conditions. Therefore:

i. Contractors should view changes to terms or conditions between document versions as system-generated and potentially erroneous unless accompanied by narrative(s) designating such changes as deliberate and desired.

ii. Contractors shall inform the Contracting Officer listed on the first page of the most recent document issued for guidance regarding any suspected or observed inadvertent or system-generated changes (i.e., noticing something missing in a new conformed copy).

iii. The Government will correct any inadvertent or system-generated changes, additions, or omissions discovered by either party, via bilateral modification, at no cost to the Contractor.

iv. The terms and conditions contained in the latest document reflecting deliberate action by the Contracting Officer (i.e., the last conformed copy of the award not affected by the observed issue) will take precedence until the problems are corrected.

3. In the unlikely event award information is corrupted or mutilated during system migration and replacement or re-issuance of this contract is necessary for continued contract administration, the Contracting Officer will:

i. Issue a continuation contract in accordance with DFARS PGI 204.1601(c), carrying over all terms and conditions from the last-known version of this contract to accurately reflect mutual agreement of the parties.

ii. Incorporate the last-known version of this contract to accurately reflect mutual agreement of the parties as an attachment to the replacement or continuation contract for future reference.

iii. Ensure any such reissuance or continuance is properly reported to preserve the integrity of Contractor performance measurement data, if any (i.e., FAPIIS, CPARS).

Commencement, Prosecution, and Completion of Work - Construction *(Apr 1984)*

The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 275.* The time stated for completion shall include final cleanup of the premises.

* The Contracting Officer shall specify either a number of days after the date the contractor receives the notice to proceed, or a calendar date.

(End of condition)

Site Visit (Construction) *(Feb 1995)*

(a) The conditions, Differing Site Conditions, and Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) Site visits may be arranged during normal duty hours by contacting:

Name: Greenwood Area Office

Address: 100 Moore Street, Greenwood, MS 38930-4512

Telephone: 662-453-5531

(End of Condition)

*** END OF NARRATIVE 1 ***

Section 00 45 00 - Representations and Certifications

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.223-4	Recovered Material Certification.	2008-05		

Recovered Material Certification (May 2008)

As required by the Resource Conservation and Recovery Act of 1976 (42 U.S.C. 6962(c)(3)(A)(i)), the offeror certifies, by signing this offer, that the percentage of recovered materials content for EPA-designated items to be delivered or used in the performance of the contract will be at least the amount required by the applicable contract specifications or other contractual requirements.

(End of provision)

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.229-12	Tax on Certain Foreign Procurements.	2021-02		

Tax on Certain Foreign Procurements-Notice and Representation (Feb 2021)

(a) Definitions. As used in this clause-

Foreign person means any person other than a United States person.

United States person, as defined in 26 U.S.C. 7701(a)(30), means-

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 7701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c)

(1) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract throughout the period in which this status is applicable. The excise tax withholding is applied at the payment level, not at the contract level. The Contractor should revise each IRS Form W-14 submission to reflect the exemption (if any) that applies to that particular invoice, such as a different exemption applying. In the absence of a completed IRS Form W-14 accompanying a payment request, the default withholding percentage is 2 percent for the section 5000C withholding for that payment request. Information about IRS Form W-14 and its separate instructions is available via the internet at www.irs.gov/w14.

(2) If the Contractor is a foreign person and has indicated in its offer in the provision 52.229-11, Tax on Certain Foreign Procurements-Notice and Representation, that it is fully exempt from the withholding, and certified the full exemption on the IRS Form W-14, and if that full exemption no longer applies due to a change in circumstances during the performance of the contract that causes the Contractor to become subject to the withholding for the 2 percent excise tax then the Contractor shall-

(i) Notify the Contracting Officer within 30 days of a change in circumstances that causes the Contractor to be subject to the excise tax withholding under 26 U.S.C. 5000C; and

(ii) Comply with paragraph (c)(1) of this clause.

(d) The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption. If the Contractor enters a ratio in Line 12 of the IRS Form W-14, the result of Line 11 divided by Line 10, the Government will withhold from each payment an amount equal to 2 percent multiplied by the contract ratio. If the Contractor marks box 9 of the IRS Form W-14 (rather than completes Lines 10 through 12), the Contractor must identify and enter the specific exempt and nonexempt amounts in Line 15 of the IRS Form W-14; the Government will then withhold 2 percent only from the nonexempt amount. See the IRS Form W-14 and its instructions.

(e) Exemptions from the withholding under this clause are described at 26 CFR 1.5000C-1 (d)(5) through (7). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue.

(f) Taxes imposed under 26 U.S.C. 5000C may not be-

(1) Included in the contract price; nor

(2) Reimbursed.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of clause)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective	Alternate	Variation

		Date	Deviation	Effective Date
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		

COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016)

(a) Definitions. As used in this provision-

"Controlled technical information," "covered contractor information system," "covered defense information," "cyber incident," "information system," and "technical information" are defined in clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause 252.204-7012, shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see 252.204-7012(b)(2) -

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (see http://dx.doi.org/10.6028/NIST.SP.800-171) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2)(i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of-

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

(End of provision)

Section 00 72 00 - General Conditions

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.211-12	Liquidated Damages-Construction.	2000-09		

Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of $1,529.00 [Contracting Officer insert amount] for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.228-15	Performance and Payment Bonds-Construction.	2020-06		

Performance and Payment Bonds-Construction (Jun 2020)

(a) Definitions. As used in this clause-

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) Amount of required bonds. Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation 28.102-1(a) on the date of award of this contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) Performance bonds (Standard Form 25). The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) Payment Bonds (Standard Form 25A). The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) Additional bond protection.

(i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) Furnishing executed bonds. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) Surety or other security for bonds. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the Federal Register or may be obtained from the:

U.S. Department of the Treasury,

Financial Management,

Service Surety Bond Branch,

3700 East West Highway,

Room 6 F01,

Hyattsville, MD 20782.

Or via the internet at http://www.fms.treas.gov/c570/.

(e) Notice of subcontractor waiver of protection (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of clause)

52.229-11	Tax on Certain Foreign Procurements- Notice and Representation.	2020-06

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It [ ] is [ ] is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 [ ] a full exemption, or [ ] partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)

(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

52.232-16 Progress Payments. (Deviation) 2026-02

Progress Payments (Feb 2026) (Deviation)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of $2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 80 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors-

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the

Government.

(3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).

(4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:

(i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.

(ii) Costs incurred by subcontractors or suppliers.

(iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.

(iv) Payments made or amounts payable to subcontractors or suppliers, except for-

(A) Completed work, including partial deliveries, to which the Contractor has acquired title; and

(B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.

(5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor (ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.

(6) The total amount of progress payments shall not exceed 80 percent of the total contract price.

(7) If a progress payment or the unliquidated progress payments exceed the amounts

permitted by subparagraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.

(8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than $2,500. The Contracting Officer may make exceptions.

(9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.

(b) Liquidation. Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 80 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) Reduction or suspension. The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).

(2) Performance of this contract is endangered by the Contractor's (i) failure to make progress or (ii) unsatisfactory financial condition.

(3) Inventory allocated to this contract substantially exceeds reasonable requirements.

(4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.

(5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.

(6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in subparagraph (a)(1) of this clause.

(d) Title.

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) Property, as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d)(2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract, e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall (i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not-

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) Risk of loss. Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) Control of costs and property. The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) Reports, forms, and access to records.

(1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) Special terms regarding default. If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the

Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) Reservations of rights.

(1) No payment or vesting of title under this clause shall (i) excuse the Contractor from performance of obligations under this contract or (ii) constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause (i) shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract and (ii) shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) Financing payments to subcontractors. The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to-

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

(2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.

(3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments-

(i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its Alternate I for any subcontractor that is a small business concern;

(ii) Are at least as favorable to the Government as the terms of this clause;

(iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;

(iv) Are in conformance with the requirements of FAR 32.504(e); and

(v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR Part 32;

(ii) Are in conformance with the requirements of FAR 32.504(f); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(5) If the financing payments are in the form of commercial product or commercial service financing payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial product or commercial service purchase that meets the definition and standards for acquisition of commercial products and commercial services in FAR parts 2 and 12;

(ii) Are in conformance with the requirements of FAR 32.504(g); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.

(7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.

(8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.

(9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in FAR 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.

(k) Limitations on undefinitized contract actions. Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 80 percent of costs incurred on work accomplished under undefinitized contract actions. A contract action is any action resulting in a contract, as defined in subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 80 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 80 percent of the maximum liability of the Government under the undefinitized contract action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) Due date. The designated payment office will make progress payments on the _____ [Contracting Officer insert date as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.

(m) Progress payments under indefinite-delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

Section 00 73 00 - Supplementary Conditions

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: W912EE CountryCode: USA W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES
0002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: W912EE CountryCode: USA W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES
0003	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria.

	DoDAAC: W912EE CountryCode: USA W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES
0004	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: W912EE CountryCode: USA W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES
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0006	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: W912EE CountryCode: USA W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES
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	W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES
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Overall Contract Delivery Period

0001	**Delivery Schedule** Delivery On Or Before Delivery Date 05 Jan 2027 **Quantity** 1 Job **Address and POC** Place of Performance

	DoDAAC: W912EE CountryCode: USA W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES JASON T OVERSTREET, DELIVER_TO_EMP_ID_NO Email: jason.t.overstreet@usace.army.mil
0002	**Delivery Schedule** Delivery On Or Before Delivery Date 05 Jan 2027 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: W912EE CountryCode: USA W07V ENDIST VICKSBURG KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES JASON T OVERSTREET, DELIVER_TO_EMP_ID_NO Email: jason.t.overstreet@usace.army.mil
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CountryCode: USA
W07V ENDIST VICKSBURG
KO CONTRACTING DIVISION, 4155 CLAY STREET VICKSBURG, MS 39183-3435 UNITED STATES

JASON T OVERSTREET, DELIVER_TO_EMP_ID_NO
Email: jason.t.overstreet@usace.army.mil

Section 01 00 00 - General Requirements

Requirements

MRandT, EAST BANK MISSISSIPPI RIVER LEVEES MAGNA VISTA - BRUNSWICK, MISSISSIPPI LEVEE ENLARGEMENT AND BERMS MRL ITEM 465-L SLIDE REPAIR The work consists of furnishing all plant, labor, materials and equipment, and constructing MRL Item 465-L slide repair and levee enlargement, stability berms, and ramp in Issaquena County, Mississippi. Principal features of work include mobilization and demobilization, clearing and grubbing, removing of existing surfacing, excavating and stockpiling existing levee material, semi-compacted levee embankment, semi-compacted stability berm embankment, fully compacted levee embankment, placing crushed stone surfacing, ramp construction, mowing, turfing, storm water pollution prevention, environmental protection, and all other work thereto.

In accordance with FAR 36.101-3 disclosure of the magnitude of construction projects, the estimated value of the proposed work is between $5,000,000 and $10,000,000.

0012
Product Service Code : Y1PZ
North American Industry Classification System (NAICS) : 237990

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SECTION TABLE OF CONTENTS

DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 80 00.00 09

SPECIAL CONTRACT REQUIREMENTS

-- End of Section Table of Contents --

SECTION 00 80 00.00 09

SPECIAL CONTRACT REQUIREMENTS

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this section to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

EP-1110-1-8	(2009) Construction Equipment Ownership and Operating Expense Schedule

1.2 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK

The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 275 calendar days after the date the Contractor receives the notice to proceed. The time stated for completion shall include final cleanup of the premises. (CONDITION)

1.3 LIQUIDATED DAMAGES-CONSTRUCTION

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of $1529.00 for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause. (FAR 52.211-12)

1.4 EXCEPTION TO LIQUIDATED DAMAGES

Since the Contractor's obligations specified in Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT may extend beyond the completion time specified in paragraph COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK, these periods and the additional work, if required, will be exempt from liquidated damages provided all other work has been completed.

1.5 CONTRACT DRAWINGS AND SPECIFICATIONS

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall --

(1) Check all drawings furnished immediately upon receipt;

(2) Compare all drawings and verify the figures before laying out the work;

(3) Promptly notify the Contracting Officer of any discrepancies;

(4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and

(5) Reproduce and print contract drawings and specifications as needed.

(c) In general --

(1) Large-scale drawings shall govern small scale drawings; and

(2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work which are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the INDEX TO DRAWINGS shown on Drawing No. G-001 entitled COVER SHEET.

(DFARS 252.236-7001)

1.6 CORRESPONDENCE AND ELECTRONIC COMMUNICATION

For ease and speed of communications, both the Government and Contractor shall exchange correspondence and all other documents duplicate in both hard paper copy and electronic format. Inclusion of an electronic copy is in addition to any other parts of the contract that may specify a minimum number of hard copies to be submitted, such as for shop drawing transmittals. Electronic submission can be accomplished by one of the following methods: email, file upload to the following DoD Safe website https://safe.apps.mil/, or through the Resident Management System - Contractor Mode (RMS-CM) software interface with the Resident Management System (RMS). Format for electronic submissions will be in portable document format (.pdf). File naming will be determined by the Contracting Officer and presented at the Preconstruction Conference. Documents include all general correspondence, administrative plans, all material submittals including shop drawings, progress schedules, submittal registers, requests for information (RFIs), Quality Control (QC) test results, pay requests, etc. Paper documents will govern, in the event of discrepancy with the electronic version. Generally, paper documents will also govern where effective receipt dates are required, such as contractor claims submitted under the Disputes clause of the contract and progress payment requests. However in the case of administrative plans, shop drawings and other submittals transmitted for government review, both the electronic and hard copies are required to begin the review process, so the effective date of receipt will be the date when both the electronic and hard copies are received by the government.

1.7 (S-102) CONTRACTOR SUPPLY AND USE OF ELECTRONIC SOFTWARE FOR PROCESSING DAVIS-BACON ACT CERTIFIED LABOR PAYROLLS

The contractor is encouraged to use a commercially-available electronic system to process and submit certified payrolls electronically to the Government. The requirements for preparing, processing and providing certified labor payrolls are established by the Davis-Bacon Act as stated in FAR 52.222-8, PAYROLLS AND BASIC RECORDS and FAR 52.222-13, COMPLIANCE WITH DAVIS-BACON AND RELATED ACT REGULATIONS.

If the contractor elects to use an electronic Davis-Bacon payroll processing system, then the contractor shall be responsible for obtaining and providing for all access, licenses, and other services required to provide for receipt, processing, certifying, electronically transmitting to the Government, and storing weekly payrolls and other data required for the contractor to comply with Davis-Bacon and related Act regulations. When the contractor uses an electronic Davis-Bacon payroll system, the electronic payroll service shall be used by the contractor to prepare, process, and maintain the relevant payrolls and basic records during all work under this construction contract and electronic payroll service shall be capable of preserving these payrolls and related basic records for the required 3 years after contract completion. If the contractor chooses to use an electronic Davis-Bacon payroll system, then the contractor shall obtain and provide electronic system access to the Government, as required to comply with the Davis-Bacon and related Act regulations over the duration of this construction contract. The access shall include electronic review access by the Government contract administration office to the electronic payroll processing system used by the contractor.

The contractor's provision and use of an electronic payroll processing system shall meet the following basic functional criteria: commercially available; compliant with appropriate Davis Bacon Act payroll provisions in the FAR; able to accommodate the required numbers of employees and subcontractors planned to be employed under the contract; capable of producing an Excel spreadsheet-compatible electronic output of weekly payroll records (format at http://rmssupport.helpserve.com/) for export in an Excel spreadsheet to be imported into the Contractor's Resident Management System - Contractor Mode (RMS-CM), that in turn shall export payroll data to the Government's Resident Management System (RMS); demonstrated security of data and data entry rights; ability to produce contractor-certified electronic versions of weekly payroll data; ability to identify erroneous entries and track the data/time of all versions of the certified Davis Bacon payrolls submitted to the government over the life of the contract; capable of generating a durable record copy, that is, a CD or DVD and PDF file record of data from the system database at end of the contract closeout. This durable record copy of data from the electronic Davis-Bacon payroll processing system shall be provided to the Government during contract closeout.

All contractor-incurred costs related to the contractor's provision and use of an electronic payroll processing service shall be included in the contractor's price for the overall work under the contract. The costs for Davis-Bacon Act compliance using electronic payroll processing services shall not be a separately bid/proposed or reimbursed item under this contract.

FAR 52.222-8 and FAR 52.222-13

1.8 PERFORMANCE OF WORK BY THE CONTRACTOR

The Contractor shall perform on the site and with its own organization, work equivalent to at least twenty (20) percent of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the Contractor requests a reduction and the Contracting Officer determines that the reduction would be to the advantage of the Government.

1.9 WORK TO BE PERFORMED BY CONTRACTOR'S OWN ORGANIZATION

Within 10 days after award, the successful Bidder/Contractor must furnish the Contracting Officer a description of the items of work which will be performed with its own forces and the estimated cost of those items. (See paragraph PERFORMANCE OF WORK BY THE CONTRACTOR.)

1.10 PHYSICAL DATA

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by surveys and borings.

(b) Weather Conditions. Information with respect to temperatures and precipitation may be obtained from the National Weather Service.

(c) Transportation Facilities.

(1) Roads. Mississippi State Highway No. 465, and local roads serve the general area.

(2) Railroads. The Contractor is responsible for determining the availability of railroad service.

(d) Floods.

(1) High water stages or events are not to be considered a "flood," and damages resulting therefrom are not compensable under Section 01 00 00.00 09 GENERAL CONTRACT REQUIREMENTS, paragraph DAMAGE TO WORK unless river or stream stages exceed channel capacity and overtop the natural or artificial banks. High water stages and/or high water events at stages below ordinary top bank of a river or stream are not floods, even if such water reaches the project. For example, water flowing through or over low points in the river or stream bank, such as drains, are not floods.

(e) Additional Data. Additional data consisting of records of borings are available for inspection at:

U.S. Army Engineer District, Vicksburg
4155 Clay Street

Vicksburg, Mississippi 39183-3435

(FAR 52.236-4)

1.11 PAYMENT FOR MOBILIZATION AND DEMOBILIZATION

(a) The Government will pay all costs for the mobilization and demobilization of all of the Contractor's plant and equipment at the contract job price for this item.

(1) Sixty percent of the job price upon completion of the Contractor's mobilization at the work site.

(2) The remaining forty percent upon completion of demobilization.

(b) The Contracting Officer may require the Contractor to furnish cost data to justify this portion of the bid if the Contracting Officer believes that the percentages in subparagraphs (a)(1) and (2) of this clause do not bear a reasonable relation to the cost of the work in this contract.

(1) Failure to justify such price to the satisfaction of the Contracting Officer will result in payment, as determined by the Contracting Officer, of--

(i) Actual mobilization costs at completion of mobilization;

(ii) Actual demobilization costs at completion of demobilization; and

(iii) The remainder of this item in the final payment under this contract.

(2) The Contracting Officer's determination of the actual costs in paragraph (b)(1) of this clause is not subject to appeal.

(DFARS 252.236-7004)

1.12 EQUIPMENT OWNERSHIP AND OPERATING EXPENSE SCHEDULE

(a) This special contract requirement does not apply to terminations. See 52.249-500, Basis for Settlement of Proposals and FAR Part 49.

(b) Allowable cost for construction and marine plant and equipment in sound workable condition owned or controlled and furnished by a Contractor or subcontractor at any tier shall be based on actual cost data for each piece of equipment or groups of similar serial and series for which the Government can determine both ownership and operating costs from the contractor's accounting records. When both ownership and operating costs cannot be determined for any piece of equipment or groups of similar serial or series equipment from the Contractor's accounting records, costs for that equipment shall be based upon the applicable provisions of EP 1110-1-8, Construction Equipment Ownership and Operating Expense Schedule, Region III. Working conditions shall be considered to be average for determining equipment rates using the schedule unless specified otherwise by the Contracting Officer. For equipment not included in the schedule, rates for comparable pieces of equipment may be used or a rate may be developed using the formula provided in the schedule. For forward pricing, the schedule in effect at the time of negotiations shall apply. For retroactive pricing, the schedule in effect at the time the work was performed shall apply.

(c) Equipment rental costs are allowable, subject to the provisions of FAR 31.105(d)(ii) and FAR 31.205-36, Rental Costs. Rates for equipment rented from an organization under common control, lease-purchase arrangements, and sale-leaseback arrangements, will be determined using the schedule, except that actual rates will be used for equipment leased from an organization under common control that has an established practice of leasing the same or similar equipment to unaffiliated lessees.

(d) When actual equipment costs are proposed and the total amount of the pricing action exceeds the SAT, the contracting officer shall request the Contractor to submit either certified cost or pricing data, or partial/limited data, as appropriate. The data shall be submitted on Standard Form 1411, Contract Pricing Proposal Cover Sheet.

(USACE Acquisition Instruction ("UAI") 31.105-101)

NOTE: EP-1110-1-8, "Construction Equipment Ownership and Operating Expense Schedule" is available on the Internet at http://www.publications.usace.army.mil/USACEPublications/EngineerPamphlets.aspx, then search for EP 1110-1-8, then click on the link and then choose EP_1110-1-8_Vol-03.pdf or may be purchased from the Government Printing Office on CD-ROM by calling (202) 512-1800.

1.13 GENERAL SECURITY REQUIREMENTS AND GUIDANCE

The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures, to include identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

1.14 SUSPICIOUS ACTIVITY REPORTING TRAINING (iWATCH)

All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

1.15 PRE-SCREEN CANDIDATES USING E-VERIFY PROGRAM

Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (https://www.e-verify.gov/) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/ eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

1.16 NON-U.S. CITIZENS WORKING ON GOVERNMENT CONTRACTS

Government Approval MUST be obtained PRIOR to any non-U.S. Citizen being permitted to work on a government contract. The Contractor must submit a letter requesting approval via the Contracting Officer/Contracting Officer Representative to the Vicksburg District Security Officer. The letter must include the contract number, period of performance, location(s) of work performance and attach a copy of the individual's passport and visa/work authorization documents.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION (Not Applicable)

-- End of Section --

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GENERAL CONTRACT REQUIREMENTS

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1	(2024) Safety -- Safety and Occupational Health (SOH) Requirements

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

19 CFR 24.24	Harbor Maintenance Fee
33 CFR 156	Oil and Hazardous Material Transfer Operations

1.2 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Accident Prevention Plan; G, GA

1.3 PARTNERING

The Government encourages formation of informal project partnerships on all projects. A project partnership strives to utilize a cooperative working relationship to jointly establish and effectively reach mutual project execution goals. The partnering process will in no way relax or stiffen the requirements of the contract, but will enhance the likelihood of success through improved working relationships and joint risk management. The possibility of an informal partnership may be discussed at the Pre-construction Conference for this project.

1.4 RIGHTS-OF-WAY

a. The rights-of-way for Contractor performance under this contract, within the limits indicated on the drawings, will be provided by the Government without cost to the Contractor. It is the Contractor's responsibility to carefully review and determine the scope of the rights-of-way. Any questions should be clarified with the Government prior to use. If these rights-of-way are used by the Contractor, he shall, at his own expense, do all work necessary to make such rights-of-way suitable for safe travel to and from the worksite. Upon completion of the Contractor's work, any such rights-of-way furnished by the Government shall be left in a condition satisfactory to the Contracting Officer.

b. When so directed by the Contracting Officer, the Contractor shall, without expense to the Government, promptly vacate and clean up any part of the Government grounds or rights-of-way that have been allotted to or have been in use by the Contractor.

c. The Contractor shall not obstruct any existing roads or any other means of existing ingress or egress on lands controlled by the United States except with written permission of the Contracting Officer and shall maintain such roads and other means of ingress or egress in as good condition as exists at the time of commencement of work performance under this contract.

d. Notwithstanding any language or drawings to the contrary in this contract, the United States will not provide access or rights-of-way over any public lands and will not be responsible for acquiring such.

e. The Contractor shall repair at no expense to the Government, any and all damage to any existing roads or other means of existing ingress or egress when such damage is a result of his operations under this contract.

1.5 SURVEY LAYOUT AND MARKING FOR RIGHTS-OF-WAY AND CONSTRUCTION

The contractor shall be required to obtain the services of a licensed professional surveyor that is licensed in the state of contract performance to perform the following:

a. Field verify all control before start of construction activities. The contractor's surveyor shall be required to document any discrepancies discovered and any additional control that is required to facilitate construction activities. This information shall be submitted in writing to the Contracting Officer prior to initiating construction activities.

b. The Contractor shall layout and mark the rights-of-way limits as indicated on the drawings prior to beginning any other work, unless otherwise approved. The marking shall be placed at intervals approved by the Contracting Officer. The rights-of-way limits shall be marked by stakes, flagging or other approved means. The marking shall be highly visible from a distance of at least 100 feet, and shall be maintained for the duration of the contract. If the rights-of-way marking should fade significantly in color, become damaged or lost as a result of the Contractor's operation or as a result of vandalism, or in any other way cease to function as a highly visible marker of the rights-of-way limits, the Contractor shall layout and restore the marking to the original condition. After all work is complete and upon approval of the Contracting Officer, the Contractor shall remove all marking. No separate payment will be made for layout, marking and maintaining the rights-of-way limits or for removing the marking.

c. Crown stakes referenced to the project centerline shall be placed at 100 foot intervals and at event points along the centerline alignment of the project. These stakes shall be labeled with the station number and proposed fill elevation. The stakes shall be maintained at a minimum on a monthly basis for all reaches under construction.

d. Cut and fill stakes shall be placed on all toe of slopes at 200 foot intervals at both the toe of berms and the toe of levee. The stakes shall be labeled with the proposed slope, indicate the direction of slope, and the horizontal distance from centerline. The stakes shall be maintained at a minimum on a monthly basis for all reaches under construction.

e. Stakes shall be placed at the midpoint or breakpoint of the slopes at 200 foot intervals. The midpoint stakes or breakpoint shall be labeled with the proposed grade elevation at the midpoint and the horizontal distance from the centerline levee enlargement. The stakes shall be maintained at a minimum on a monthly basis for all reaches under construction.

f. No separate payment will be made for layout, marking and maintaining the rights-of-way limits or for removing the marking.

1.6 PRECONSTRUCTION CONFERENCE

a. A preconstruction conference will be arranged by the Area Engineer as soon after contract award as possible, and the conference will be conducted before work is allowed to commence. The Area Engineer will notify the Contractor of the time, date, and location for the meeting. At this conference, the Contractor will be oriented with respect to contract administration procedures, lines of authority, opportunity for formation of project partnerships including joint risk management, and construction matters. All known subcontractors performing at least 20 percent of the contract are required to attend this conference. Additional conferences may be established by the Area Engineer for any major subcontractors unknown at the time of the initial conference.

b. Submission by the Contractor of the items listed below will determine the date of the conference. The following items shall be submitted to the Area Engineer in hard copy and electronic (pdf) format for review at least seven (7) calendar days prior to the preconstruction conference:

(1) Accident Prevention Plan

(2) Quality Control Plan

(3) Environmental Protection Plan

(4) One copy of the certified Large Construction Notice of Intent (LCNOI) for each site

(5) Submittal register

(6) Project Schedule in accordance with Section 01 32 01.00 09 PROJECT SCHEDULE

c. The Contractor shall bring to this conference, in completed form, the following:

(1) Letter of superintendent appointment and authority

(2) List of subcontractors

d. Minutes of this conference will be taken and prepared by the Area Engineer and sent to the Contractor for his concurrence and signature.

1.7 SUBMITTAL OF SUBCONTRACTING PLAN

a. This paragraph does not apply to small business concerns.

b. After bid opening, and within 7 days, the apparent low bidder, upon telephone notification by the Small and Disadvantaged Business Utilization Specialist, shall submit a Small and Disadvantaged Business Subcontracting Plan. The plan shall be submitted in accordance with the Contract Clauses SMALL BUSINESS SUBCONTRACTING PLAN - ALTERNATE I. The person responsible for administering the plan shall be named in paragraph AGENT FOR SUBMITTING SMALL BUSINESS SUBCONTRACTING PLAN of the Representations and Certifications.

1.8 NOTIFICATION OF AREA ENGINEER BEFORE BEGINNING WORK

At least 7 days before beginning work, and at least one day before resuming work after a period of 7 days or more when no work has been performed, the Contractor shall notify U.S. Army Corps of Engineers, Mr. Jason Overstreet, Area Engineer, Greenwood Area Office, 100 Moore Street, Greenwood, Mississippi 38930-4512, telephone (662) 453-5531.

1.9 PROHIBITED WORK DURING FLOOD STAGES

Any work performed during flood stages is prohibited unless approved by the Contracting Officer. Any work with the potential to threaten the integrity of the levee will not be allowed. Working in areas of heavy seepage or operations causing pumping of the material on or near the levee are some examples of activities that would be prohibited. Upon notice of forecasted flood stages, Contractor shall take actions to ensure their ongoing work does not impact the levee system. Delays due to flood stages will be considered excusable delays and granted time extensions as provided for under the DEFAULTS clause. No additional compensation will be provided for flood stage delays or impacts except as provided for under DAMAGES to work clause.

1.10 ORDER OF WORK

The work shall be carried on in accordance with the Project Schedule required by Section 01 32 01.00 09. In preparing the Project Schedule , the Contractor shall adhere to the following order of work:

a. All required BMP's shall be implemented as prescribed by the Storm Water Pollution Prevention Plan prior to any land disturbing activities.
b. Construction borrow area shall be excavated beginning at Sta. 8207+00 and continuing West and downstream to the permissible depths and to the full riverside limits shown on the drawings.

c. Ramp shall be constructed prior to beginning any levee and berm embankment or excavation to be used as a detour around the project site.

d. Prior to any levee or berm embankment excavation, borrow material specified for use in the Embankment must be stockpiled to a height not-to-exceed 8 FT, sloped to drain, and processed on the landside seepage berm in the location shown on the drawings, with the volume of stockpiled material equal-to or greater-than the volume of material required to construct the levee and berm embankment to existing Levee elevation (123.0 FT NAVD) within the excavated reach.

e. Levee excavation shall not begin until the Mississippi River is forecasted to be at 28.0 feet at the Vicksburg gage and falling. No excavation will be allowed during the exclusion period. Before demobilizing for extended periods the levee line of protection must be restored to 123' minimum.

f. During the excavation and placement of the embankment from Sta. 8183+00 to 8194+65, the Contractor may be directed by the Contracting Officer or his authorized representative to implement the Emergency Levee Closure Plan as described in SECTION 35 41 20.00 09 EMERGENCY LEVEE CLOSURE.

g. Levee excavation reach lengths shall not exceed 600 feet measured along the bottom of the fully excavated section. This limitation will result in a minimum of two excavation reaches during construction. Excavation of the second reach will not be allowed until embankment placement in the first reach has been completed to an elevation of 115.0 ft.

h. New stability berm from Sta. 8173+00 to 8183+00 shall be completed prior to any levee embankment placement on that reach.

i. Berm construction from Sta. 8183+00 to 8194+65 shall be completed concurrently with adjacent levee embankment.

j. Levee embankment placement from Sta. 8173+00 to 8183+00 can be performed concurrently with levee embankment placment from Sta. 8183+00 to 8194+65.

k. New surfacing material shall be placed on completed embankment construction in one continuous reach.

l. The existing levee crown shall not be used as a haul road. Completed levee embankment (with or without surfacing material) shall not be used as a haul road.

m. Temporary or permanent seeding of the completed levee and berm embankments will be required within 14 days of beginning work on a new reach of embankment as required by the Stormwater Permit or work must cease until the seeding is accomplished.

1.11 DESIGNATED BILLING OFFICE

The designated billing office for this contract shall be U.S. Army Corps of Engineers, Greenwood Area Office, 100 Moore Street, Greenwood, Mississippi 38930-4512.

1.12 PAYMENT INVOICES

a. The Federal Acquisition Regulation requires that the "REMIT TO" address on the invoice match the "REMIT TO" address on the contract or a proper notice of assignment. The Payment Office will verify a match of the "REMIT TO" address in the contract and Contractor's invoice prior to payment. If the addresses do not match, the invoice will be determined improper and returned to the Contractor for correction and resubmission. If an invoice is improperly returned, the original invoice receipt date shall be used as the basis for determining interest to be paid in accordance with the PROMPT PAYMENT ACT.

b. Among other things, the Contract Clause PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS requires that a proper invoice for payment include substantiation of the amounts requested. As required in Office of Management and Budget, 5 CFR Part 1315, September 29, 1999, PROMPT PAYMENT, substantiation of the amount requested for progress payments under construction contracts includes the following:

(1) An itemization of the amounts requested related to the various elements of work required by the contract covered by the payment request;

(2) A listing of the amount included for work performed by each subcontractor under the contract;

(3) A listing of the total amount of each subcontract under the contract;

(4) A listing of the amounts previously paid to each such subcontractor under the contract; and,

(5) Additional supporting data in a form and detail required by the Contracting Officer.

c. Failure to include the above information in a Contractor's invoice will result in the invoice being considered defective under the provisions of the PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS clause of the contract, and it will be returned to the Contractor for correction and resubmission.

1.13 TEMPORARY PROJECT FENCING

Temporary project fencing as required by Section 4, "Temporary Facilities", paragraph 04.A.04 of EM 385-1-1, U.S. Army Corps of Engineers Safety and Health Requirements Manual, is not required on this project.

1.14 AS-BUILT DRAWINGS

This paragraph supplements the Contract Clause SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION.

a. As-Built Contract Drawings. The Contractor shall maintain two (2) full-size sets of blueline prints of the contract drawings depicting in red a record of as-built conditions. These drawings shall be maintained in current condition at all times during the entire contract period. The blueline drawings shall be updated daily by the Contractor showing all changes from the contract plans which are made in the work, additional information which might be uncovered in the course of construction, and information for future construction reference (such as debris disposed by burying). For levee and berm construction, the riverside toe of completed levee and berm sections shall be plotted on profiles of construction drawings. Levee and berm toe profiles shall depict elevations of newly constructed slope intersection with natural ground and depressions which extend the toe line between routine section surveys. This information shall be recorded on the blueline prints accurately and neatly by means of details and notes. Each month, prior to submitting a request for progress payment, the Contractor shall review the blueline as-built drawings with the Contracting Officer, and the Contractor shall certify that the as-built drawings are accurate and up-to-date before progress payment is made. The Contractor shall deliver to the Contracting Officer the two (2) original full-size completed sets of as-built marked blueline prints at the time of the final inspection of the project. In addition, the Contractor shall provide two CD-ROM's, each containing a full-size, 400 dpi PDF (portable document format) set of as-built drawings, to the Contracting Officer at the time of final inspection. The as-built drawings shall be identified by entering the words "AS-BUILT DRAWINGS" in letters at least 3/16-inch high, placed in the lower right corner of each drawing.

b. No separate measurement or payment will be made for providing as-built drawings, electronic drawings and plates, or for any of the work required by this clause, and all costs therefor shall be included in the applicable contract prices contained in the Bidding Schedule.

1.15 PROJECT SIGN

The Contractor shall fabricate, erect and maintain one sign for project identification. The sign shall be displayed and positioned for reading by passing viewers. The exact location is subject to Contracting Officer's approval. Information for the right side of the project sign shall be as follows:

Project Title: MR&T, EAST BANK MISSISSIPPI RIVER LEVEES
MAGNA VISTA - BRUNSWICK, MISSISSIPPI
LEVEE ENLARGEMENT AND BERMS
MRL ITEM 465-L SLIDE REPAIR

Contract No: W912EE-23-C-0XXX

Contractor: (Contractor's name and city)

The project identification sign shall meet the requirements specified in the U.S. Army Corps of Engineers Sign (USACES) Standards Manual, EP 310-1-6a and EP 310-1-6b. A copy of the sign standards manual is available for review at the office of the Vicksburg District Sign Program Manager and questions concerning manufacture and installation of the project identification sign may be addressed to:

Vicksburg District Sign Program Manager (Aaron Posner)
ATTN: CEMVK-OD-MN
4155 Clay Street
Vicksburg, MS 39183-3435
Telephone: (601) 631-5287

1.16 MINIMUM REQUIRED INSURANCE

The following paragraph is applicable if the services involved are performed on a Government Installation. Government Installation is defined as property where the Government holds by fee simple title, by construction rights-of-way, or perpetual easement, etc., an interest in real property. See the Contract Clause INSURANCE-WORK ON A GOVERNMENT INSTALLATION.

a. Workmen's Compensation and Employer's Liability Insurance. The Contractor shall comply with all applicable workmen's compensation Statutes of the State of Mississippi and shall furnish evidence of Employer's Liability Insurance in an amount of not less than $100,000.

b. General Liability Insurance. Bodily injury liability insurance in the minimum limits of $500,000 per occurrence on the comprehensive form of policy.

c. Automobile Liability Insurance. Minimum limits of $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage. This insurance shall be on the comprehensive form of policy and shall cover the operation of all automobiles used in performance of the contract.

1.17 WORK IN QUARANTINED AREA

The work called for by this contract involves activities in counties quarantined by the Department of Agriculture to prevent the spread of certain plant pests which may be present in the soil. The Contractor agrees that all construction equipment and tools to be moved from such counties shall be thoroughly cleaned of all soil residues at the construction site with water under pressure and that hand tools shall be thoroughly cleaned by brushing or other means to remove all soil. In addition, if this contract involves the identification, shipping, storage, testing, or disposal of soils from such quarantined area, the Contractor agrees to comply with the provisions of ER 1110-1-5, "Plant Pest Quarantined Areas and Foreign Soil Samples" attachments, a copy of which will be made available by the Contracting Officer upon request. The Contractor agrees to assure compliance with this obligation by all subcontractors.

1.18 CERTIFICATES OF COMPLIANCE

Any certificates required for demonstrating proof of compliance of material with specification requirements shall be executed in accordance with Section 01 33 00 SUBMITTAL PROCEDURES. Each certificate shall be signed by an official authorized to certify on behalf of the manufacturing company and shall contain the name and address of the Contractor, the project name and location, and the quantity and date or dates of shipment or delivery to which the certificates apply. Copies of laboratory test reports submitted with certificates shall contain the name and address of the testing laboratory and the date or dates of the tests to which the report applies. Certification shall not be construed as relieving the Contractor from furnishing satisfactory material, if, after tests are performed on selected samples, the material is found not to meet the specific requirements.

1.19 PROCESS FOR OBTAINING CURRENT REQUIREMENTS OF THE U.S. ARMY CORPS OF ENGINEERS SAFETY AND HEALTH REQUIREMENTS MANUAL (EM 385-1-1)

Contractors are required to comply with the latest version, and all posted changes, of the U.S. Army Corps of Engineers Safety and Health Requirements Manual in effect on the issue date of this solicitation. EM 385-1-1 version 2014 and changes are available on the Internet at http://www.publications.usace.army.mil/USACEPublications/EngineerManuals.aspx, Search for EM_385-1-1, then click on EM_385-1-1 2014 english version. Prior to making an offer, offerors should check the referenced website for the latest changes. No separate payment will be made for compliance with the requirements of this paragraph, or for compliance with other safety requirements of the contract.

1.20 SAFETY SIGN

The Contractor shall fabricate, erect and maintain a safety sign at the site, as located by the Contracting Officer. The sign shall be erected as soon as practicable, but not later than 15 calendar days after the date established for commencement of work. The data required shall be current. The safety sign shall meet the requirements specified in the U.S. Army Corps of Engineers Sign (USACES) Standards Manual, EP 310-1-6a and EP 310-1-6b. A copy of the sign standards manual is available for review at the office of the Vicksburg District Sign Program Manager and questions concerning manufacture and installation of the safety sign may be addressed to:

Vicksburg District Sign Program Manager (Aaron Posner)
ATTN: CEMVK-OD-MN
4155 Clay Street
Vicksburg, MS 39183-3435
Telephone: (601) 631-5287

1.21 ACCIDENT PREVENTION PLAN

Refer to the Contract Clause ACCIDENT PREVENTION (Alternate I). Within 15 days after receipt of award of the contract, an Accident Prevention Plan shall be submitted to the Contracting Officer for review and acceptance. The plan shall be prepared as specified in Appendix A, "Minimum Basic Outline for Accident Prevention Plans" of EM 385-1-1. In addition to the requirements listed, the Contractor shall also submit the required information on the forms outlined below, which can be found on the Vicksburg District Construction Division home page, http://www.mvk.usace.army.mil/Missions/EngineeringandConstructionDivision.aspx, click on Construction Services Branch, then click on Forms.

a. An executed LMV Form 358-R, "Administrative Plan".

b. An executed MVK Form 385-359-R, "Hazard Analysis" for each definable feature of work.

c. When marine plant and equipment are in use under a contract, the method of fuel oil transfer shall be submitted on LMV Form 414R, "Fuel Oil Transfer-Floating Plant". (Refer to 33 CFR 156.)

d. The Contractor shall not commence physical work at the site until the plan has been accepted by the Contracting Officer, or his authorized representative. At the Contracting Officer's discretion, the Contractor may submit his Hazard Analysis only for the first phase of construction provided that it is accompanied by an outline of the remaining phases of construction. All remaining phases shall be submitted and accepted prior to the beginning of work in each phase. Also, refer to Section 1, "Program Management", paragraph 01.B, "Indoctrination and Training" of EM 385-1-1.

1.22 DAILY INSPECTIONS

Refer to Section 01 45 00.00 09 CONTRACTOR QUALITY CONTROL and the Contract Clause INSPECTION OF CONSTRUCTION. The Contractor shall perform daily safety inspections and record them on the forms approved by the Contracting Officer. Reports of daily inspections shall be maintained at the job site. The reports shall be records of the daily inspections and resulting actions. As a minimum each report shall include the following:

a. Phase(s) of construction underway during the inspection.

b. Locations or areas inspections were made.

c. Results of inspection, including nature of deficiencies observed and corrective actions taken, or to be taken, date, and signature of the person responsible for its contents.

1.23 ACCIDENT INVESTIGATIONS AND REPORTING

Refer to EM 385-1-1, Section 1, "Program Management", paragraph 01.D, "Accident Reporting and Recordkeeping". Accidents shall be investigated and reports completed by the immediate supervisor of the employee(s) involved and reported in writing to the Contracting Officer or his representative within one working day after the accident occurs.

1.24 ACCOMMODATIONS FOR GOVERNMENT REPRESENTATIVES

a. Accommodations. The Contractor shall furnish and maintain a temporary building for the exclusive use of the Government Representatives at an approved location. The building shall be of light, but weatherproof construction, approximately 240 square feet in size with not less than 7 feet of headroom. The building shall either be divided into two separate rooms or have a lockable storage closet on the opposite end from the workbench. It shall have a substantial workbench along one side and sufficient number of windows to admit ample working light. Windows shall be arranged to open and to be securely fastened from the inside. The door shall be of wood panel or solid core construction and be equipped with a padlock and heavy duty hasp bolted to the door. Insect screens shall be provided for windows. Glass panels in windows shall be equipped with bars or heavy mesh screens which will prevent easy access to the building through these panels. The Contractor shall heat the building by means of heaters and shall cool the building by means of an air conditioning unit. Electric current shall also be provided for operation of lights, appliances, computers, and electric calculators at 115 volts AC. Electric current may be provided by use of a portable generator. A minimum of four wall outlets and two ceiling drops shall be provided in the building. Electrical surge protection is required at all wall outlets. One office desk and a minimum of two chairs shall be provided in the building. Internet service shall be provided capable of a minimum transfer data rate of 10 Mbps for downloading and 2 Mbps for Uploading. When available, a data line shall be provided to the facility, capable of providing the required service above. When there is an unavailability of a hard data line, a wireless service shall be provided to the Government capable of providing the data transfer indicated above. Permanent toilet facilities shall be provided within the building. The building shall remain the property of the Contractor and upon completion of all work under the contract shall be removed as provided in the Contract Clause OPERATIONS AND STORAGE AREAS. An office trailer meeting the above requirements will be acceptable.

b. Janitor Services. The Contractor shall furnish daily janitorial services for the above office and perform any required maintenance of subject facility and adjacent grounds during the entire life of the contract. Toilet facilities shall be clean and sanitary at all times. Services shall be performed at such a time and in such a manner to least interfere with the operations but will be accomplished only when the office is in daily use. The Contractor shall also provide daily trash collection and cleanup of the building and adjacent outside areas, and shall dispose of all discarded debris in a manner approved.

c. No separate measurement or payment will be made for providing and maintaining the prescribed building, accommodations, utilities and janitor services, and all costs associated therewith shall be distributed throughout the existing bid items. Should the Contractor refuse, neglect, or delay compliance with the above requirements, the specific facilities may be furnished and maintained by the Contracting Officer, and the cost thereof will be deducted from any amount due or to become due the Contractor.

1.25 MACHINERY AND MECHANIZED EQUIPMENT

Machinery and mechanized equipment used under this contract shall comply with the following:

a. When mechanized equipment is operated on floating plant, the Contractor shall provide positive and acceptable means of preventing this equipment from moving or falling into the water. The type of equipment addressed by this clause includes front-end loaders, bulldozers, trucks (both on- and off-road), backhoes, hydraulic excavators (track hoes), and similar equipment. If the Contractor plans to use such equipment on floating plant, an activity hazard analysis must be developed for this feature of work. The plan must include a detailed explanation of the type or types of physical barriers, curbs, structures, etc., which will be incorporated to protect the operator and prevent the equipment from entering the water. Nonstructural warning devices may be considered for situations where the use of structural barriers is determined to be impracticable. The activity hazard analysis must thoroughly address the procedure and be submitted to the Corps for review and acceptance prior to start of this feature of work.

b. The stability of crawler, truck, and wheel-mounted cranes shall be assured.

(1) The manufacturer's load-rating chart may be used to determine the maximum allowable working load for each particular crane's boom angle provided a test load, with a boom angle of 20 degrees, confirms the manufacturer's load-rating table.

(2) Stability tests are required if:

(i) there is no manufacturer's load-rating chart securely fixed to the operator's cab;

(ii) there has been a change in boom or other structural member; or

(iii) there has been a change in the counterweight.

The test shall consist of lifting a load with the boom in the least stable undercarriage position and at an angle of 20 degrees above the horizontal. The test shall be conducted under close supervision on a firm, level surface. The load that tilts the machine shall be identified as the test load. The test load moment (in ft-lbs) shall then be calculated by multiplying the horizontal distance (in feet) from the center of rotation of the machine to the test load, times the test load (in lbs). Three-fourths of this test-load moment shall then be used to compute the maximum allowable operating loads for the boom at 20, 40, 60, and 80 degrees above horizontal. From these maximum allowable operating loads, curve shall be plotted and posted in the cab of the machine in sight of the operator. These values shall not be exceeded except in the performance test described below. The test load shall never exceed 100 percent of the manufacturer's maximum rated capacity.

(3) In lieu of the test and computations above, the crane may be load tested for stability at each of the four boom positions listed above.

c. Performance tests shall be performed in accordance with Section 18.G, "Machinery and Mechanized Equipment" of EM 385-1-1, U.S. Army Corps of Engineers Safety and Health Requirements Manual, except as specified below. Performance tests shall be conducted after each stability test, when the crane is placed in service on a project, and at least every 12 months.

(1) When conducting a performance load test which is required of a new crane or a crane in which load sustaining parts have been altered, replaced, or repaired (excluding replacement of the rope), the test load shall be as specified in ASME/ANSI B30 Series. That is, for overhead, gantry, portal, pillar, tower, monorail, and underhung cranes, the test load shall not exceed 125 percent of the manufacturer's load rating capacity chart at the configuration of the test; and for hammerhead tower, mobile, and floating cranes and boom trucks, the test load shall not exceed 110 percent of the manufacturer's load rating capacity chart at the configuration of the test.

(2) When conducting a performance load test which is required because a crane is reconfigured, or reassembled after disassembly, or because the crane requires an annual load test, the test loads shall not exceed 100 percent of the manufacturer's load rating capacity chart at the configuration of the test.

(3) All load tests are required to be conducted in accordance with the manufacturer's recommendations.

d. Inspections shall be made which will ensure a safe and economical operation of both cranes and draglines with inspection documented. Copies of the inspections and tests shall be available at the job site for review. All stability and performance tests on cranes and all complete dragline inspections shall be witnessed by the Contracting Officer or his authorized representative.

e. A complete dragline inspection shall be made:

(1) at least annually;

(2) prior to the dragline being placed in operation; and

(3) after the dragline has been out of service for more than 6 months.

f. All heavy equipment moved onto the worksite shall be inspected for compliance with this contract. The CEMVK-SO Inspection forms attached at the end of this section shall be completed by the Contractor. All completed forms, including abatement schedule of any violations, shall be maintained at the job site for continued review and update as needed.

1.26 VEHICLE WEIGHT LIMITATIONS

Vehicle weight limitations for operation on rural roads and bridges may affect the prosecution of work in this contract. The Contractor will be responsible for obtaining all necessary licenses and permits in accordance with the Contract Clause PERMITS AND RESPONSIBILITIES. Current information regarding road and bridge weight limits may be obtained by contacting the Mississippi Department of Transportation and the president of the county Board of Supervisors for the counties through which equipment and materials will be transported as a result of this contract.

1.27 PUBLIC AND PRIVATE UTILITIES

a. Unless otherwise specified, shown on the drawings, or stated in writing by the Contracting Officer, the Contractor shall not remove or disturb any public or private utilities. Such removals, alterations, and relocations, where necessary, will be made by others. The locations, if any, shown on the drawings for underground utilities are approximate only. The exact locations of such utilities shall be determined by the Contractor in the field prior to commencing construction operations in their vicinity.

b. The attention of the Contractor is directed to the possibility that he may encounter, within the right-of-way limits, utilities, some of which may be buried, and the existence of which is presently not known. Should any such utilities be encountered, the Contractor shall immediately notify the Contracting Officer so that he may determine whether they shall be removed, relocated, or altered. After such determination is made, the Contractor shall, if so directed by the Contracting Officer, remove, relocate, or alter them as required, and an equitable adjustment will be made in accordance with the Contract Clause CHANGES. In event the Contracting Officer arranges for such removals, alterations, or relocations to be performed by others, the Contractor shall cooperate with such others during the latter's removal, alteration, or relocation operations in accordance with the Contract Clause OTHER CONTRACTS.

1.28 DAMAGE TO WORK

a. The responsibility for damage to any part of the permanent work shall be as set forth in the Contract Clause PERMITS AND RESPONSIBILITIES. However, if, in the judgment of the Contracting Officer, any part of the permanent work performed by the Contractor is damaged by flood (see Section 00 80 00.00 09 SPECIAL CONTRACT REQUIREMENTS, paragraph PHYSICAL DATA, subparagraph FLOODS) or earthquake, which damage is not due to the failure of the Contractor to take reasonable precautions or to exercise sound engineering and construction practices in the conduct of the work, the Contractor shall make repairs as ordered by the Contracting Officer and full compensation for such repairs to permanent work will be made at the applicable contract unit or job prices as fixed and established in the contract. If, in the opinion of the Contracting Officer, for any part of such damaged permanent work, there is no applicable contract unit or job price, then an equitable adjustment pursuant to the Contract Clause CHANGES will be made as full compensation for the repairs for that part of the permanent work for which there is no applicable contract unit or job price.

b. Except as herein provided, damage to all work (including temporary construction), utilities, materials, equipment, and plant shall be repaired to the satisfaction of the Contracting Officer, at the Contractor's expense, regardless of the cause of such damage.

1.29 TIME EXTENSIONS FOR UNUSUALLY SEVERE WEATHER

a. This provision specifies the procedure for determination of time extensions for unusually severe weather in accordance with the Contract Clause DEFAULT (FIXED PRICE CONSTRUCTION). In order for the Contracting Officer to award a time extension under this paragraph, the following conditions must be satisfied:

(1) The weather experienced at the project site during the contract period must be found to be unusually severe, that is, more severe than the adverse weather anticipated for the project location during any given month.

(2) The unusually severe weather must actually cause a delay to the completion of the project. The delay must be beyond the control and without the fault or negligence of the Contractor.

b. The following schedule of monthly anticipated adverse weather delays is based on National Oceanic and Atmospheric Administration (NOAA) or similar data for the project location and will constitute the base line for monthly weather time evaluations. The Contractor's progress schedule must reflect these anticipated adverse weather delays in all weather dependent activities.

MONTHLY ANTICIPATED ADVERSE WEATHER DELAY
WORK DAYS BASED ON FIVE (5) DAY WORK WEEK

JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEP	OCT	NOV	DEC
(NA)	(NA)	(NA)	(NA)	(NA)	(10)	(7)	(7)	(2)	(3)	(7)	(7)

c. Upon acknowledgement of the Notice to Proceed (NTP) and continuing throughout the contract, the Contractor shall record on the daily CQC report, the occurrence of adverse weather and resultant impact to normally scheduled work. Actual adverse weather delay days must prevent work on critical activities for 50 percent or more of the Contractor's scheduled work day. The number of actual adverse weather days shall include days impacted by actual adverse weather (even if adverse weather occurred in previous month), be calculated chronologically from the first to the last day of each month, and be recorded as full days. If the number of actual adverse weather delay days exceeds the number of days anticipated in paragraph b, above, the Contracting Officer will convert any qualifying delays to calendar days, giving full consideration for equivalent fair weather work days, and issue a modification in accordance with the Contract Clause DEFAULT (FIXED PRICE CONSTRUCTION).

1.30 EXCLUSION OF PERIODS IN COMPUTING COMPLETION SCHEDULES

Except for the work required in Section 01 57 20.00 09 ENVIRONMENTAL PROTECTION, Section 01 57 23.00 09 STORM WATER POLLUTION PREVENTION PLAN, and Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT , no work will be required during the period between 1 January and 31 May inclusive, and such period has not been considered in computing the time allowed for completion. The Contractor may, however, perform work during all or any part of this period upon giving prior written notice to the Contracting Officer. Impacts occurring during the Exclusion Period will not be considered for time extensions.

1.31 CONTROL OF ACCESS TO CONSTRUCTION AREAS

a. This paragraph supplements the Contract Clauses PERMITS AND RESPONSIBILITIES and OPERATIONS AND STORAGE AREAS.

b. It shall be the responsibility of the Contractor to prevent possible injury to visitors to the project site. Only personnel engaged in contract work and others authorized by the Contracting Officer shall be permitted to enter into the construction areas. Suitable barriers, warning signs and directives shall be placed by the Contractor to direct persons not engaged in the work away from the areas of danger. The Contractor shall be responsible for effective enforcement of this paragraph during the period of this contract.

1.32 MAINTENANCE OF TRAFFIC

a. The Contractor shall conduct his operations in such manner as to offer the least possible obstruction to the safe and satisfactory movement of traffic over the existing roads and detour road during the life of the contract.

b. The Contractor shall be responsible for providing, erecting /installing, maintaining monthly, and removal of all traffic signs, barricades, and other traffic control devices necessary for maintenance of traffic. See also paragraph ACCIDENT PREVENTION PLAN of these specifications and the Contract Clause ACCIDENT PREVENTION.

c. All barricades, warning signs, lights, temporary signals, other devices, flagmen, and signaling devices shall meet or exceed the minimum requirements of Mississippi DOT, Standard Specifications for Road and Bridge Construction. See EM 385-1-1, U.S. Army Corps of Engineers Safety and Health Manual, Section 8, paragraph 08.C, "Traffic Control". The Contractor is responsible for the protection, monthly maintenance, and replacement of all existing signs, route markers, traffic control signals, and other traffic control features during the life of this contract.

d. Prior to the commencement of construction operations the Contractor shall submit for the acceptance of the Contracting Officer, complete details of his proposed plans for the maintenance of traffic and access through the construction area.

e. The requirements of this paragraph shall be met by the Contractor at no additional expense to the Government.

1.33 HARBOR MAINTENANCE FEE

a. Offerors or bidders contemplating use of U.S. ports in the performance of contract are subject to paying a harbor maintenance fee on cargo. Federal law establishes an ad valorem port use fee on commercial cargo imported into or exported from various U.S. ports. The fee is 0.125 percent (0.00125). Cargo to be used in performing work under contracts with the U.S. Government is not exempt from the fee, although certain exemptions do exist. Offerors are responsible for ensuring that the applicable fee and associated costs are taken into consideration in the preparation of their offers. Failure to pay the harbor maintenance fee may result in assessment of penalties by the Customs Service.

b. The statute is at Title 26 U.S. Code section 4461 and 4462. Department of Treasury Customs Service regulations implementing the statute, including a list of ports subject to the fee, are found at 19 CFR 24.24, Harbor Maintenance Fee. Additional information may be obtained from local U.S. Customs Service Offices or by writing to the Director, Budget Division, Office of Finance, Room 6328, U.S. Customs Service, 1301 Constitution Avenue, N.W., Washington, D.C. 20229.

1.34 ACCEPTANCE OF COMPLETED WORK

For the purpose of acceptance, the work to be done is divided into sections as follows:

a. Levee slide repair section from approximate Station 8194+65 to Station 8183+00.

b. Enlargement and berm from approximate Station 8183+00 Station 8173+00.

c. Ramp at Station 8242+85.

d. All remaining work.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION (Not Applicable)

-- End of Section --

SAFETY INSPECTION FOR CONSTRUCTION ACTIVITY U.S. Army Engineer District, Vicksburg		Date of Inspection:
Contractor or Unit	Contract No. or Activity	
Inspected by (Signature)	Witness (Signature)	

	NIGHT OPERATIONS NOTE: Safety and Health Requirements Manual (EM385-1-1) references in parentheses.	Yes	No	N/A
1	General			
a	On construction contracts, is there a designated Contractor's representative on duty during night operations? FAR Clause			
b	Are weekly safety meetings being held for night-shift employees, by field supervisors or foremen? (01.B.05)(A)(B)			
c	Are regularly scheduled safety meetings being held (at least once a month) for night supervisors? (01.B.05 (a)			
d	Are there adequate communications and/or transportation available in the event of serious injury to personnel? (03.A.01)			
e	Is there two qualified first-aid and CPR attendant per shift on duty? (03.A.02)(a)			
f	Are fire, man-overboard & abandon-ship drills (as applicable) conducted at least monthly? (19.A.04 (e)) **NOTE:** The first set of drills shall be conducted within 24 hours of the vessel's occupancy or commencement of work. (19.A..04(e) (1) Night drills shall be conducted within the first two weeks of vessel's occupancy. (19.A.04 (e) (2)).			
2	Lighting - Section 7 at Table 7-1			
a	Are haul roads properly marked for night work? (Section 7, Table 7-1)			
b	Is there adequate lighting in work areas, On decks and walkways? (07.A)			
c	Is there adequate lighting at crew boat loading area on floating plant? (07.A)			
d	Are all vehicles, construction equipment properly lighted? (16.A.11) (16.A.07)(b)			
3	Transportation to and from float plant			
a	Is boat equipped with sufficient number of life preservers? (05.H.01)(a ,b ,c ,d ,e)			
b	Are all vehicles and construction equipment properly lighted for night work? (18.A.02)			
c	If boat is less than 26 feet in length, has it been tested for flotation and stability, or does it carry BIA certification? (19.A.01)			
d	If more than 6 passengers are carried, or boat is greater than 26 feet in length, is vessel Coast Guard certified and operator licensed? (19.A.02)			
e	For boats of less than 26 feet in length, is operator licensed, and certified ? (19.A.02(b , c))			
f	Is weather deck of boat coated with non-skid material? (19.B.01)(b)			
g	Is there safe, easy access from boat to landing? (19.B.02)			
h	Do guard rails meet requirements of EM 385-1-1? (19.B.02)(c)			
i	Is the capacity of boat posted in accordance with EM 385-1-1? (19.C.02)(a)			

SAFETY INSPECTION FOR MISCELLANEOUS EQUIPMENT U.S. Army Engineer District, Vicksburg	Date of Inspection:
Contractor or Unit	Contract No. or Activity
Inspected by (Signature)	Witness (Signature)

	CRANE/DERRICK INSPECTION CHECKLIST NOTE: Safety and Health Requirements Manual (EM385-1-1) references in parentheses.	Yes	No	N/A
1	Are the following documents with the crane at all times? (16.C.02)			
1a	Is the Operating manual available from the manufacturer for the specific crane being inspected?			
	(1) Any operator aids for which the crane is equipped?			
1b	Does the load rating chart for the crane include?			
	(1) The crane make and model, serial number, and year of manufacturer?			
	(2) Load ratings for all crane operating configurations: including optional equipment?			
	(3) Recommended reeving for the hoist line?			
	(4) Operating limits in windy or cold conditions?			
1c	Does crane log book show operating hours, inspections, tests, maintenance & repair? **Note:** Has log been updated daily when crane is used, and is signed by operator & supervisor? **Note:** Mechanics shall sign after conducting maintenance or repairs. (16.C.02(d))			
2	Does operator have certification that he meets operator qualification and training as stated in 16.C.04 and Appendix G?			
3	Has a hazard analysis been conducted for set-up and set-down procedures (mobilization, assembly, dismantling, etc.)? (16.C.08)			
4	Are adequate clearances provided from electrical sources, fixed objects, and swing radius? (16.C.09)			
5	Is communications provided as required? (16.C.11)			
6	Has inspection been performed in accordance with 16.C.12 and Appendix H?			
7	Have performance load tests been in accordance with 16.C.13 and Appendix I?			
8	Are tag lines used to control loads? (16.C.16)			
9	Is critical lift plan required? (16.C.18)			
10	Are all environmental considerations of 16.C.19 being met?			
11	Is crane equipped with boom angle indicator, load indicating device, means to visually determine levelness, and anti-two block devices? (16.D.01 & 02 & 05)			
12	Are cable supported booms equipped with boom stops? (16.D.06)			
13	Are booms lowered to ground or secured when not in use? (16.D.11)			
14	Do all floating cranes and derricks meet the requirements of 16.F?			
15	Are all moving parts (gears, drums, shafts, belts, etc.) and all hot surfaces (exhaust lines, pipes, etc.) guarded? (16.B.03)			

16 Does the unit have a suitable fire extinguisher? (16.A.34) **NOTE:** Minimum 5 BC			
REMARKS:			

SAFETY INSPECTION FOR MISCELLANEOUS EQUIPMENT **U.S. Army Engineer District, Vicksburg**	Date of Inspection:
Contractor or Unit	Contract No. or Activity
Inspected by (Signature)	Witness (Signature)

	CRAWLER TRACTORS-DOZERS NOTE: Safety and Health Requirements Manual (EM385-1-1) references in parentheses.	Yes	No	N/A
1	Are inspection records kept available as part of the project files? (16.A.01 (a))			
2	Has equipment been inspected and tested by a competent person and certified to be safe? (16.A.02 (a) (b))			
3	Are only designated qualified operators assigned to operate mechanized equipment? (16.A.04)			
4	Are sufficient lights provided for night operations? (16.A.11)			
5	Is the unit shut down before refueling? (16.A.15)			
6	Does the unit have a suitable fire extinguisher - 5 BC min.? (16.A.34)			
7	Is there an effective, working, reverse alarm? (16.B.01)			
8	Are moving parts, shafts, sprockets, belts, etc., guarded? (16.B.03 (a) and 16.B.07 and 16.B.13)			
9	Is protection against contact with hot surfaces, exhaust, etc., provided? (16.B.03 (b))			
10	Are all fuel tanks located in a manner to prevent spills or overflows from running onto engine exhaust or electrical equipment? (16.B.04)			
11	Are exhaust discharges from equipment so directed that they do not endanger persons or obstruct the view of the operator? (16.B.05)			
12	Are seat belts provided? (16.B.08)			
13	Is protection (grills, canopies, screens) provided to shield operator from falling or flying objects? (16.B.10 and 16.B.11)			
14	Is adequate roll over protection provided? (16.B.12)			
REMARKS:				

SAFETY INSPECTION FOR MISCELLANEOUS EQUIPMENT U.S. Army Engineer District, Vicksburg	Date of Inspection:
Contractor or Unit	Contract No. or Activity
Inspected by (Signature)	Witness (Signature)

DRAGLINE INSPECTION CHECKLIST NOTE: Safety and Health Requirements Manual (EM385-1-1) references in parentheses.	Yes	No	N/A
1 Are the following documents with the crane at all times? (16.C.02)			
1a Operating manual from the manufacturer for the specific crane being inspected.			
(1) Any operator aids for which the crane is equipped?			
1b Load rating chart for the crane which shall include:			
(1) the crane make and model, serial number, and year of manufacturer			
(2) load ratings for all crane operating configurations: including optional equipment			
(3) wire rope type, size, and reeving; line pull, line speed and drum capacity			
(4) operating limits in windy or cold conditions			
1c Crane log book that shows operating hours, inspections, tests, maintenance & repair. **Note:** Has log been updated daily when crane is used, and is signed by operator & supervisor? **Note:** Mechanics shall sign after conducting maintenance or repairs.			
2 Does operator have certification that he meets operator qualification and training as stated in 16.C.04 and Appendix G?			
3 Has a hazard analysis for set-up and set-down procedures (mobilization, assembly, dismantling, etc.). (16.C.08)			
4 Are adequate clearances provided from electrical sources, fixed objects, and swing radius. (16.C.09)			
5 Has inspection been performed in accordance with 16.C.12 and Appendix H?			
6 Are cable supported booms equipped with boom stops? (16.D.06)			
7 Is boom lowered to ground or secured when not in use? (16.D.11)			
8 Are all moving parts (gears, drums, shafts, belts, etc.) and all hot surfaces (exhaust lines, pipes, etc.) guarded? (16.B.03)			
9 Does the unit have a suitable fire extinguisher? (16.A.34) **NOTE:** Minimum 5 BC			
REMARKS:			

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MEASUREMENT AND PAYMENT

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SECTION 01 22 00.00 09

MEASUREMENT AND PAYMENT

PART 1 GENERAL

1.1 JOB PAYMENT ITEMS

1.1.1 General

Payment items for the work of this contract for which contract job payments will be made are listed in the BIDDING SCHEDULE and described below. All costs for items of work, which are not specifically mentioned to be included in a particular job or unit price payment item, shall be included in the listed job item most closely associated with the work involved. The job price and payment made for each item listed shall constitute full compensation for furnishing all plant, labor, materials, and equipment, and performing any associated Contractor quality control, submittal procedures, storm water pollution prevention, environmental protection, meeting safety requirements, tests and reports, providing as-built drawings, for using the Government-furnished software (RMS) for electronic exchange of information and management of the contract as specified in Section 01 45 00.15 09 RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE (RMS CM), and for performing all work required for which separate payment is not otherwise provided.

1.1.2 Job Items

a. "Mobilization and Demobilization"

(1) Payment will be made for all costs associated with mobilization and demobilization, as defined in Section 00 80 00.00 09 SPECIAL CONTRACT REQUIREMENTS, paragraph PAYMENT FOR MOBILIZATION AND DEMOBILIZATION.

(2) Unit of measure: job.

b. "Clearing and Grubbing"

(1) Payment will be made for all costs associated with performing the required clearing and grubbing (including vegetation removal) of the areas as specified herein or indicated on the drawings, removing and disposing of all cleared and grubbed materials, filling holes resulting from clearing and grubbing operations, placing embankment to replace earthen materials removed as a result of clearing and grubbing operations, and all work incidental thereto.

(2) Unit of measure: job.

c. "Removal of Existing Surfacing"

(1) Payment will be made for all costs associated with demolishing, removal, and hauling, of the existing gravel and pavement surfacing as required, and all work incidental thereto.

(2) Unit of measure: job.

d. "Turfing and Mowing" and "TURFING AND MOWING, LEVEE AND LEVEE/BERM Sta. 8200+00 TO Sta. 8300+00"

(1) Payment will be made for all costs associated with establishment and maintenance of new turf; providing erosion control matting on levee ramps; and maintenance of existing turf, which includes mowing of undisturbed levee and berm embankment surfaces and all other existing turf within the rights-of-way during the life of the contract; and all work incidental thereto. After seeding and mulching is completed, the Contractor may request partial payment only. A 60% maximum payment will be provided for initial turfing operation with minimum 40% of pay item retained for final acceptance. Material certification and invoices must be provided to authorize the initial 60% payment when seeding is completed and 100% when turf is established and finally accepted in accordance with paragraph ESTABLISHMENT.

(2) Unit of measure: job.

e. "Environmental Protection Features"

(1) Payment will be made for all costs associated with furnishing, installing, and maintaining all temporary environmental protection features including silt fencing, straw wattles, diversion dikes, temporary grassing, construction entrance and exit, and other measures as necessary for compliance with all associated specifications, control plans and permits, and all work incidental thereto. Payment for this work will be made in three (3) incremental, partial payments at 50% complete, 75% complete, and 100% complete, based on overall contract completion status. Maintenance of these features includes, but is not limited to, removal of silt and contaminates, grading, repairs to silt fencing and other features, reseeding of temporary cover, and replacement of silt fencing, straw wattles and other features when necessary due to damage, storm events, contractor activities, or deterioration of silt fence fabric, or other temporary materials. Payment will be held if SWPPP is not in compliance.

(2) For progress payment purposes, payment for this job item will occur in accordance with the following breakdown:

(a) A maximum of 50% of this bid item amount will be paid for work associated with the initial installation of all temporary environmental protection features identified on the contract documents, permits, and submitted plans. This includes, but is not limited to, silt fencing, straw wattles, diversion dikes, and construction entrance/exit.

(b) A minimum of 50% of this bid item amount is reserved for payment for work associated with the maintenance, repairs, and necessary improvements to temporary environmental protection features throughout the life of the contract. Payment for this work will be made in three (3) incremental, partial payments at 50% complete, 75% complete, and 100% complete, based on overall contract completion status. Completion status shall be calculated by comparing contract earnings less stored materials, to the current contract amount at the time of payment.

(3) Unit of measure: job.

f. "Excavation and Stockpile of Existing Levee Material"

(1) Payment will be made for all costs associated with excavation of the existing levee material to the lines and grades shown in the drawings, hauling and placing the material into the stockpile locations; and all work incidental thereto.

(2) Unit of measure: job.

g. "Ramp"

(1) Payment will be made for all costs associated with constructing the levee ramps; including performing foundation preparation; excavating, hauling, placing, compacting and dressing the material; determining optimum moisture and maximum dry density; performing moisture control and field density testing; placement of 24" Corrugated Metal Pipe, including excavation, installation, joints, backfill, control of water, and all work incidental thereto.

(2) Unit of measure: job.

1.2 UNIT PRICE PAYMENT ITEMS

1.2.1 General

Payment items for the work of this contract for which contract unit price payments will be based are listed in the BIDDING SCHEDULE and described below. The unit price and payment made for each item listed shall constitute full compensation for furnishing all plant, labor, materials, and equipment, and performing any associated Contractor quality control, submittal procedures, storm water pollution prevention, environmental protection, meeting safety requirements, tests and reports, providing as-built drawings, for using the Government-furnished software (RMS) for electronic exchange of information and management of the contract as specified in Section 01 45 00.15 09 RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE (RMS CM), and for performing all work required for each of the unit price items.

1.2.2 Unit Price Items

a. "Levee Embankment, Semicompacted", "Berm Embankment, Semicompacted", and "Levee Embankment, Fully Compacted"

(1) Payment will be made at the applicable contract unit price for all costs associated with constructing the semicompacted material placed as required in levee embankment (not including materials for ramps), the semicompacted material placed as required in the semicompacted berm embankment, and the fully compacted material placed as required in levee embankment, including additional material placed by reason of foundation settlement and by reason of soft material in the foundation being forced outward from the section during construction. That price and payment shall constitute full compensation for performing foundation preparation; excavating, hauling, placing, compacting and dressing the material; determining optimum moisture and

maximum dry density;performing moisture control and field density testing; and all work incidental thereto. No separate measurement or payment will be made for placing embankment to replace material removed as a result of removal of existing gravel surfacing, and all costs therefor shall be included in the contract unit price for "Levee Embankment, Semicompacted" .

(1a) If the Contractor elects to use settlement gages as specified in Section 31 24 00.00 09 EMBANKMENT, paragraph SETTLEMENT GAGES, the cost of furnishing, installing and maintaining the gages during embankment construction, including measurements required to be made by the Contractor, shall be at the expense of the Contractor. No separate payment will be made for additional effort required for compaction of fill around and over the settlement gages or for interference with the Contractor's operations resulting from the settlement gage installations.

(1b) If the Contractor elects to use settlement gages, failure to utilize settlement gages in strict accordance with the specifications and drawings will result in a total forfeiture of any payment which may otherwise be due the Contractor for settlement of the foundation. In each case of (1) failure to recover any settlement gage, (2) construction of embankment over a settlement gage in excess of required construction lines plus the tolerance permitted in Section 31 24 00.00 09 EMBANKMENT, paragraph GRADE TOLERANCES, or (3) failure to comply with the 72 hour requirement for determining gage elevations as specified in Section 31 24 00.00 09 EMBANKMENT, paragraph SETTLEMENT GAGES, payment will be totally forfeited for the reach attributable to each gage so affected.

(1c) No separate payment will be made for additional berm material placed by reason of foundation settlement.

(1d) Payment for material which replaces soft material in the foundation of the berms forced outward from the section during construction will be made at the contract unit price for "Berm Embankment, Semicompacted".

(1e) Payment for material in ramps will be included in the contract job price for "Ramps".

(2) Unless otherwise specified, semicompacted fill and fully compacted fill as specified in Section 31 24 00.00 09 EMBANKMENT (not including material for ramps), including fill placed by reason of soft material in the foundation being forced outward from the section during construction, will be measured for payment by the cubic yard. The basis for the measurement will be original surveys of the areas to be filled taken by the Government prior to clearing, grubbing and vegetation removal operations, and prior to removal of existing gravel surfacing operations, and the theoretical gross cross section of the completed levee constructed within the specified tolerance. Quantities will be computed by the Government using the surface to surface method. There will be no separate measurement and payment for tolerances.

(2b) The basis for measurement of fill which replaces soft material in the foundation of the berms which is forced outward from the section will be a survey of the area outside the berm toe taken prior to the filling operations and a second survey of the same area after completion of the filling operations. The Contractor must request that this survey be taken, and computations will be run by the government to determine the volume of displaced foundation material using the surface to surface method.

(2c) If the Contractor elects to use settlement gages, measurement of additional levee embankment fill material placed in each settlement measurement range shown on the drawings by reason of foundation settlement, will be based on measurements on the respective settlement gage installed as specified in Section 31 24 00.00 09 EMBANKMENT, paragraph SETTLEMENT OF FOUNDATION and will be determined as follows:

(i) The settlement measured at each settlement gage will be considered to apply to the foundation area throughout the length of the settlement ranges specified herein in which the gage is located. No measurement for payment for settlement will be made in the event that embankment over a settlement gage is constructed to a height in excess of specified gross construction grade plus the tolerance permitted under Section 31 24 00.00 09 EMBANKMENT, paragraph GRADE TOLERANCES. In instances where settlement plates have been set and cannot be found after completion of the embankment, no payment for settlement will be made for the reach of the plate.

(ii) The foundation settlement under the embankment at each transverse cross section within a settlement range will be considered to vary uniformly between break points in the cross section. At each breakpoint, the settlement allowance will be based upon the proportion that the specified fill height at the break point bears to the specified fill height at the settlement gage, in accordance with the following formula: $S = (h \times sm) / hm$, where S is settlement to be computed at a break point; h is specified gross fill height at S; sm is measured or adjusted settlement at settlement gage; and, hm is specified gross fill height above settlement gage. Except as provided above and in Section 31 24 00.00 09 EMBANKMENT, paragraph SUDDEN FAILURE, no measurement for payment for additional fill materials placed by reason of foundation settlement will be made.

(3) Unit of measure: cubic yard.

b. "Levee Surfacing, Crushed Stone"

(1) Payment will be made at the contract unit price for all costs associated with constructing the new crushed stone levee and ramp surfacing. That price and payment shall constitute full compensation for blading and shaping levee crown and ramp; furnishing, hauling, placing, spreading, performing moisture control, compacting and dressing the finished surfacing; performing all required testing, furnishing scales and weighing for measurement; and all work incidental thereto.

(2) Surfacing material shall be measured for payment by being weighed by the Contractor on approved scales before being placed into the work. Each truck load shall be weighed to the nearest

0.1 ton and the final quantity rounded to the nearest whole ton. The Contractor shall furnish the scales and shall weigh the surfacing material in the presence of the Government representative, who will certify to the correctness thereof. Scales shall be of sufficient length to permit simultaneous weighing of all axle loads and shall be inspected, tested and sealed as directed by the Contracting Officer to assure an accuracy within 0.5 percent throughout the range of the scales. The scale's accuracy shall be checked and certified by an acceptable scales company representative prior to weighing any surfacing material and rechecked and recertified whenever a variance is suspected. The scales shall be located at the site of work. If commercial scales are readily available in close proximity (within 10 miles) of site of work, the Contracting Officer may approve the use of the scales. The Contracting Officer may elect to accept certified weight certificates furnished by a public weigh master in lieu of scale weights at the jobsite. Quarry weights will not be accepted.

(3) Unit of measure: ton.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION (Not Applicable)

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PROJECT SCHEDULE

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

AACE INTERNATIONAL (AACE)

AACE 29R-03	(2011) Forensic Schedule Analysis
AACE 52R-06	(2006) Time Impact Analysis - As Applied in Construction
AACE 84R-13	(2015) Planning and Accounting for Adverse Weather

AMERICAN SOCIETY OF CIVIL ENGINEERS (ASCE)

ASCE 67-17	(2017) Schedule Delay Analysis

U.S. ARMY CORPS OF ENGINEERS (USACE)

ER 1-1-11	(2017) Administration -- Project Schedules

1.2 SUBMITTALS

Government approval is required for submittals with a "G" or "S" classification. Submittals not having a "G" or "S" classification are for information only. When used, a code following the "G" classification identifies the office that will review the submittal for the Government. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Project Scheduler Qualifications; G

Preliminary Project Schedule; G

Initial Project Schedule; G

Periodic Schedule Update; G

1.3 PROJECT SCHEDULER QUALIFICATIONS

Designate an authorized representative to be responsible for the preparation of the schedule and all required updating and production of reports. The Designated Project Scheduler must have prepared and maintained at least three previous construction schedules for projects of similar size and complexity to this contract, using Primavera P6..

Representative must have a comprehensive knowledge of CPM scheduling principles and application.

PART 2 PRODUCTS

2.1 SOFTWARE

The scheduling software utilized to produce and update the schedules required herein must be capable of meeting all requirements of this specification.

2.1.1 Government Default Software

The Government uses Primavera P6. Ensure exported schedule files are compatible with the version of P6 used by the Government.

2.1.2 Contractor Software

Scheduling software used by the contractor must be commercially available from the software vendor for purchase with vendor software support agreements available. The software routine used to create the required sdef file must be created and supported by the software manufacturer.

2.1.2.1 Primavera

If Primavera P6 is selected for use, provide the "xer" export file in a version of P6 importable by the Government system. Verify at the SEKO meeting which version of P6 is in use by the Government. Export the schedule in a version of P6 no newer than that used by the Government.

2.1.2.2 Other Than Primavera

If the Contractor chooses software other than Primavera P6, that is compliant with this specification, provide for the Government's use two licenses, two computers, and training for two Government employees in the use of the software. These computers will be stand-alone and not connected to Government network. Computers and licenses will be returned at project completion.

PART 3 EXECUTION

3.1 GENERAL REQUIREMENTS

Prepare for approval a Project Schedule, as specified herein, pursuant to FAR Clause 52.236-15 Schedules for Construction Contracts. Show in the schedule the proposed sequence to perform the work and dates contemplated for starting and completing all schedule activities. The scheduling of the entire project is required. The scheduling of design and construction is the responsibility of the Contractor. Contractor management personnel must actively participate in its development. Designers, Subcontractors, and suppliers working on the project must also contribute in developing and maintaining an accurate Project Schedule. Provide a schedule that is a forward planning as well as a project monitoring tool. Use the Critical Path Method (CPM) of network calculation to generate all Project Schedules. Prepare each Project Schedule using the Precedence Diagram Method (PDM).

3.1.1 Scheduling Expectations Kickoff Meeting(SEKO)

In conjunction with the post award conference or pre construction conference the Government and the Contractor will hold a separate and distinct Scheduling Expectations Kickoff Meeting(SEKO). The intent of this meeting is for the Government to review with the contractor the requirements of the scheduling specification, communicate the Government's expectations regarding schedule development and management, and answer any questions the Contractor may have regarding the schedule requirements.

3.2 BASIS FOR PAYMENT AND COST LOADING

The schedule is the basis for determining contract earnings during each update period and therefore the amount of each progress payment. The aggregate value of all activities coded to a contract CLIN must equal the value of the CLIN. Match the progress payment "Pay Period Thru" date in RMS to the schedule data date.

3.2.1 Activity Cost Loading

Activity cost loading must be reasonable and without front-end loading. Activities with a negative cost loading is not allowed. Provide additional documentation to demonstrate reasonableness if requested by the Contracting Officer.

3.2.2 Cost Loading of Submittals

No costs are to be assigned to activities for the preparation, review, or approval of submittals, except as described under paragraph COST LOADING OF CLOSEOUT ACTIVITIES, paragraph AS-BUILT DRAWINGS, design submittals, and paragraph O&M MANUALS. No costs are to be assigned for conferences or meetings, unless specified differently elsewhere in the contract. Costs assigned to activities shall comply with FAR 52.232-7 Prompt Payment for Construction Contracts.

3.2.3 Withholdings / Payment Rejection

Failure to meet the requirements of this specification may result in the disapproval of the preliminary, initial, or periodic schedule updates and subsequent rejection of payment requests until compliance is met.

In the event that the Contracting Officer directs schedule revisions and those revisions have not been included in subsequent Project Schedule revisions or updates, the Contracting Officer may withhold 10 percent of pay request amount from each payment period until such revisions to the project schedule have been made.

3.3 PROJECT SCHEDULE DETAILED REQUIREMENTS

3.3.1 Level of Detail Required

Develop the Project Schedule to the appropriate level of detail to address major milestones and to allow for satisfactory project planning and execution. Failure to develop the Project Schedule to an appropriate level of detail will result in its disapproval. The Contracting Officer will consider, but is not limited to, the following characteristics and requirements to determine appropriate level of detail:

3.3.2 Activity Durations

Reasonable activity durations are those that allow the progress of ongoing activities to be accurately determined between update periods. Non-procurement activities Original Durations (OD) are not to exceed 20 workdays or 30 calendar days.

3.3.3 Design and Permit Activities

Include design and permit activities with the necessary conferences and follow-up actions and design package submission dates. Include the design schedule in the project schedule, showing the sequence of events involved in carrying out the project design tasks within the specific contract period. Provide a detailed level of scheduling sufficient to identify all major design tasks, including those that control the flow of work. Also include review and correction periods associated with each item.

3.3.4 Procurement Activities

Include in the schedule activities associated with the critical submittals and their approvals, procurement, fabrication, and delivery of long lead materials, equipment, fabricated assemblies, and supplies. Long lead procurement activities are those with an anticipated procurement sequence of over 90 calendar days.

3.3.5 Mandatory Activities

Include the following activities in the initial project schedule and all updates.

a. Submission, review and acceptance of SD-01 Preconstruction Submittals (individual activity for each).

b. Submission, review and acceptance of features requiring design completion Submission, review and acceptance of design packages.

c. Submission of mechanical/electrical/information systems layout drawings.

d. Submission and approval of O & M manuals.

e. Submission and approval of as-built drawings.

f. Submission and approval of DD1354 data and installed equipment lists.

g. Commissioning - Functional Performane Testing

h. Contractor's pre-final inspection.

i. Correction of punch list from Contractor's pre-final inspection.

j. Government's pre-final inspection.

k. Correction of punch list from Government's pre-final inspection.

l. Final inspection.

m. Long Lead activities.

3.3.6 Government Activities

Show in schedule, Government and other agency activities that could impact progress. These activities include, but are not limited to approvals, acceptance, design reviews, environmental permit approvals by State regulators, inspections, utility tie-in, Government Furnished Equipment (GFE) and Notice to Proceed (NTP) for phasing requirements.

3.3.7 Standard Activity Coding Dictionary

Use the activity coding structure defined in the Standard Data Exchange Format (SDEF) in ER 1-1-11. This exact structure is mandatory. Develop and assign all Activity Codes to activities as detailed herein.

The SDEF format is as follows:

Field	Activity Code	Length	Description
1	WRKP	3	Workers per day
2	RESP	4	Responsible party
3	AREA	4	Area of work
4	MODF	6	Modification Number
5	BIDI	6	Bid Item (CLIN)
6	PHAS	2	Phase of work
7	CATW	1	Category of work
8	FOW	20	Feature of work*
*Some systems require that FEATURE OF WORK values be placed in several activity code fields. The notation shown is for Primavera P6. Refer to the specific software guidelines with respect to the FEATURE OF WORK field requirements.			

3.3.7.1 Workers Per Day (WRKP)

Assign Workers per Day for all field construction or direct work activities, if directed by the Contracting Officer. Workers per day is based on the average number of workers expected each day to perform a task for the duration of that activity.

3.3.7.2 Responsible Party Coding (RESP)

Assign responsibility code for all activities to the Prime Contractor, Subcontractor(s) or Government agency(ies) responsible for performing the activity.

a. Activities coded with a Government Responsibility code include, but are not limited to: Government approvals, Government design reviews, environmental permit approvals by State regulators, Government

Furnished Property/Equipment (GFP) and Notice to Proceed (NTP) for phasing requirements.

b. Activities cannot have more than one Responsibility Code. Examples of acceptable activity code values are: DOR (for the designer of record); ELEC (for the electrical subcontractor); MECH (for the mechanical subcontractor); and GOVT (for USACE).

3.3.7.3 Area of Work Coding (AREA)

Assign Work Area code to activities based upon the work area in which the activity occurs. Define work areas based on resource constraints or space constraints that would preclude a resource, such as a particular trade or craft work crew from working in more than one work area at a time due to restraints on resources or space. Examples of Work Area Coding include different areas within a floor of a building, different floors within a building, and different buildings within a complex of buildings. Activities cannot have more than one Work Area Code.

3.3.7.4 Modification Number (MODF)

Assign a Modification Number Code to any activity or sequence of activities added to the schedule as a result of a Contract Modification, when approved by Contracting Officer. Key all Code values to the Government's modification numbering system. An activity can have only one Modification Number Code.

3.3.7.5 Bid Item Coding (BIDI)

Assign a Bid Item Code to all activities using the Contract Line Item Number (CLIN) to which the activity belongs, even when an activity is not cost loaded. An activity can have only one BIDI Code.

3.3.7.6 Phase of Work Coding (PHAS)

Assign Phase of Work Code to all activities. Examples of phase of work are design phase, procurement phase and construction phase. Each activity can have only one Phase of Work code.

a. Code proposed fast track design and construction phases proposed to allow filtering and organizing the schedule by fast track design and construction packages.

b. If the contract specifies phasing with separately defined performance periods, identify a Phase Code to allow filtering and organizing the schedule accordingly.

3.3.7.7 Category of Work Coding (CATW)

Assign a Category of Work Code to all activities. Category of Work Codes include, but are not limited to design, design submittal, design reviews, review conferences, permits, construction submittal, procurement, fabrication, weather sensitive installation, non-weather sensitive installation, start-up, and testing activities. Each activity can have no more than one Category of Work Code.

3.3.7.8 Feature of Work Coding (FOW)

Assign a Feature of Work Code to appropriate activities based on the

Definable Feature of Work to which the activity belongs based on the approved QC plan.

Definable Feature of Work is defined in Section 01 45 00.00 09 QUALITY CONTROL. An activity can have only one Feature of Work Code.

3.3.8 Contract Milestones and Constraints

Milestone activities are to be used for significant project events including, but not limited to, project phasing, project start and end activities, or interim completion dates. The use of artificial float constraints such as "zero free float" or "zero total float" are prohibited.

Mandatory constraints that ignore or affect network logic are prohibited. No constrained dates are allowed in the schedule other than those specified herein. Submit additional constraints to the Contracting Officer for approval on a case by case basis.

3.3.8.1 Project Start Date Milestone and Constraint

The first activity in the project schedule must be a start milestone titled "NTP Acknowledged," which must have a "Start On" constraint date equal to the date that the NTP is acknowledged.

3.3.8.2 End Project Finish Milestone and Constraint

The last activity in the schedule must be a finish milestone titled "End Project."

Constrain the project schedule to the Contract Completion Date in such a way that if the schedule calculates an early finish, then the float calculation for "End Project" milestone reflects positive float on the longest path. If the project schedule calculates a late finish, then the "End Project" milestone float calculation reflects negative float on the longest path.

3.3.8.3 Interim Completion Dates and Constraints

Constrain contractually specified interim completion dates to show negative float when the calculated late finish date of the last activity in that phase is later than the specified interim completion date.

3.3.8.3.1 Start Phase

Use a start milestone as the first activity for a project phase. Call the start milestone "Start Phase X" where "X" refers to the phase of work.

3.3.8.3.2 End Phase

Use a finish milestone as the last activity for a project phase. Call the finish milestone "End Phase X" where "X" refers to the phase of work.

3.3.9 Adverse Weather

Ensure anticipated adverse weather is accounted for in the Project Schedule. AACE 84R-13 provides methodologies for techniques in planning for adverse weather. The preferred methodology is the use of a weather calendar. If a method other than a weather calendar is proposed, discuss the reason during the SEKO meeting.

3.3.10 Calendars

Schedule activities on a Calendar to which the activity logically belongs. Develop calendars to accommodate any contract defined work period such as a 7-day calendar for Government Acceptance activities, concrete cure times, etc. Develop the default Calendar to match the physical work plan with non-work periods identified including weekends and holidays. Develop Seasonal Calendar(s) and assign to seasonally affected activities as applicable. See Section 01 00 00.00 09 GENERAL REQUIRMENTS, Paragraph EXCLUSION OF PERIODS IN COMPUTING COMPLETION SCHEDULES for exclusion periods for MRL contracts. Develop an Exclusion Period Calendar and assign to affected activities as applicable.

If a weather calendar is used its implementation and execution is to be in accordance with AACE 84R-13

3.3.11 Open Ended Logic

Only two open ended activities are allowed: the first activity "NTP Acknowledged" is to have no predecessor logic, and the last activity -"End Project" is to have no successor logic. Except as noted above, each activity must have at least a start-to-start or finish-to-start relationship with its predecessor and a finish-to-finish or finish-to-start relationship with its successor.

Predecessor open ended logic may be allowed in a time impact analyses upon the Contracting Officer's approval.

3.3.12 Default Progress Data Disallowed

Actual Start and Finish dates must not automatically update with default mechanisms included in the scheduling software. Updating of the percent complete and the remaining duration of any activity must be independent functions. Disable program features that calculate one of these parameters from the other. Activity Actual Start (AS) and Actual Finish (AF) dates assigned during the updating process must match those dates provided in the Contractor Quality Control Reports. Failure to document the AS and AF dates in the Daily Quality Control report will result in disapproval of the Contractor's schedule.

3.3.13 Out-of-Sequence Progress

Activities that have progressed before all preceding logic has been satisfied (Out-of-Sequence Progress) will be allowed only on a case-by-case basis subject to approval by the Contracting Officer. Propose logic corrections to eliminate out of sequence progress or justify not changing the sequencing for approval prior to submitting an updated project schedule. Address out of sequence progress or logic changes in the Narrative Report and in the periodic schedule update meetings.

3.3.14 Added and Deleted Activities

Do not delete activities from the project schedule or add new activities to the schedule without approval from the Contracting Officer. Activity ID and description changes are considered new activities and cannot be changed without Contracting Officer approval.

3.3.15 Original Durations

Activity Original Durations (OD) must be reasonable to perform the work item. OD changes are prohibited unless justification is provided and approved by the Contracting Officer.

3.3.16 Leads, Lags, and Start to Finish Relationships

Lags must be reasonable as determined by the Government and not used in place of realistic original durations, must not be in place to artificially absorb or create float, or to replace proper schedule logic.

a. Leads (negative lags) are prohibited.

b. Start to Finish (SF) relationships are prohibited.

3.3.17 Retained Logic

Schedule calculations must retain the logic between predecessors and successors ("retained logic" mode) even when the successor activity(s) starts and the predecessor activity(s) has not finished (out-of-sequence progress). Software features that in effect sever the tie between predecessor and successor activities when the successor has started and the predecessor logic is not satisfied ("progress override") are not be allowed.

3.3.18 Percent Complete

Update the percent complete for each activity started, based on the realistic assessment of earned value. Activities which are complete but for remaining minor punch list work and which do not restrain the initiation of successor activities may be declared 100 percent complete to allow for proper schedule management. Budgeted cost of activity is to be reduced by the amount needed to correct deficiency. The activity referenced in paragraph COST LOADING of CLOSEOUT ACTIVITIES must have its budgeted cost increased by this amount.

3.3.19 Remaining Duration

Update the remaining duration for each activity based on the number of estimated workdays it will take to complete the activity. Remaining duration may not mathematically correlate with percentage found under paragraph entitled Percent Complete. The remaining duration for unstarted activities are not to be less than its orginal duration.

3.3.20 Cost Loading of Closeout Activities

Cost load the "Correction of punch list from Government pre-final inspection" activity(ies) not less than 1 percent of the present contract value. Activity(ies) may be declared 100 percent complete upon the Government's verification of completion and correction of all punch list work identified during Government pre-final inspection(s).

3.3.20.1 As-Built Drawings

If there is no separate contract line item (CLIN) for as-built drawings, cost load the "Submission and approval of as-built drawings" activity not less than $35,000 or 1 percent of the present contract value, which ever is greater, up to $200,000. Activity will be declared 100 percent complete upon the Government's approval.

3.3.20.2 O & M Manuals

Cost load the "Submission and approval of O & M manuals" activity not less than $20,000. Activity will be declared 100 percent complete upon the Government's approval of all O & M manuals.

3.3.21 Early Completion Schedule and the Right to Finish Early

An Early Completion Schedule is an Initial Project Schedule (IPS) that indicates all scope of the required contract work will be completed before the contractually required completion date.

a. No IPS indicating an Early Completion will be accepted without being fully resource-loaded (including crew sizes and hours) and the Government agreeing that the schedule is reasonable and achievable.

b. The Government is under no obligation to accelerate work items it is responsible for to ensure that the early completion is met nor is it responsible to modify incremental funding (if applicable) for the project to meet the contractor's accelerated work.

3.4 PROJECT SCHEDULE SUBMISSIONS

Provide the submissions as described below. The data reports and network diagrams required for each submission are contained in paragraph SUBMISSION REQUIREMENTS. If the Contractor fails or refuses to furnish the information and schedule updates as set forth herein, the Contractor will be deemed not to have provided an estimate upon which a progress payment can be made.

Review comments made by the Government on the schedule(s) do not relieve the Contractor from compliance with requirements of the Contract Documents.

3.4.1 Preliminary Project Schedule Submission

Within 15 calendar days after the NTP is acknowledged, submit the Preliminary Project Schedule defining the planned operations detailed for the first 90 calendar days for approval. The approved Preliminary Project Schedule will be used for payment purposes not to exceed 90 calendar days after NTP. Completely cost load the Preliminary Project Schedule to balance the contract award CLINS shown on the Price Schedule. The Preliminary Project Schedule may be summary in nature for the remaining performance period. It must be early start and late finish constrained and logically tied as specified. The Preliminary Project Schedule forms the basis for the Initial Project Schedule specified herein and must include all of the required plan and program preparations, submissions and approvals identified in the contract (for example, Quality Control Plan, Safety Plan, and Environmental Protection Plan) as well as design activities, planned submissions of all early design packages, permitting activities, design review conference activities, and other non-construction activities intended to occur within the first 90 calendar days. Government acceptance of the associated design package(s) and all other specified Program and Plan approvals must occur prior to any planned construction activities. Code activities that are summary in nature, after the first 90 calendar days, with the following activity codes: Bid Item (CLIN) code (BIDI), Responsibility Code (RESP), and Feature of Work code (FOW)..

3.4.2 Initial Project Schedule Submission

Submit the Initial Project Schedule for approval within 42 calendar days after notice to proceed is issued. The schedule must demonstrate a reasonable and realistic sequence of activities which represent all work through the entire contract performance period. Include in the design-build schedule detailed design and permitting activities, including but not limited to identification of individual design packages, design submission, reviews and conferences; permit submissions and any required Government actions; and long lead item acquisition prior to design completion. Also cover in the initial design-build schedule the entire construction effort with as much detail as is known at the time but, as a minimum, include all construction start and completion milestones, and detailed construction activities through the dry-in, including all activity coding and cost loading. Include the remaining construction, including cost loading, but it may be scheduled summary in nature. As the design proceeds and design packages are developed, fully detail the remaining construction activities concurrent with the monthly schedule updating process. Constrain construction activities by Government acceptance of associated designs. When the design is complete, incorporate into the then approved schedule update all remaining detailed construction activities that are planned to occur after the dry-in milestone. No payment will be made for work items not fully detailed in the Project Schedule.

3.4.2.1 Design Package Schedule Submission

With each design package submitted to the Government, submit a fragnet schedule extracted from the then current Preliminary, Initial or Updated schedule which covers the activities associated with that Design Package including construction, procurement and permitting activities.

3.4.3 Periodic Schedule Updates

Update the Project Schedule on a regular basis, monthly at a minimum. Provide a draft Periodic Schedule Update for review at the schedule update meetings as prescribed in the paragraph PERIODIC SCHEDULE UPDATE MEETINGS. These updates will enable the Government to assess Contractor's progress. Update the schedule to include detailed construction activities as the design progresses, but not later than the submission of the final un-reviewed design submission for each separate design package. The Contracting Officer may require submission of detailed schedule activities for any distinct construction that is started prior to submission of a final design submission if such activity is authorized.

a. Update information including Actual Start Dates (AS), Actual Finish Dates (AF), Remaining Durations (RD), and Percent Complete. Updated information is subject to the approval of the Government at the meeting.

b. AS and AF dates must match the date(s) reported on the Contractor's Quality Control Report for an activity start or finish.

3.5 SUBMISSION REQUIREMENTS

Submit the following items for the Preliminary Schedule, Initial Schedule, and every Periodic Schedule Update throughout the life of the project:

3.5.1 Electronic Scheduling Data

Provide electronic scheduling data containing the current project schedule and all previously submitted schedules in the format of the scheduling software (e.g. .xer). Also include the Narrative Report and all required Schedule Reports. The electronic file is to identify the type of schedule (Preliminary, Initial, Update), full contract number, Data Date and schedule file name. Each schedule must have a unique file name and use project specific settings. Example File name: "ProjectName_v1_YYYYMMDD.xer". The date in the file name is the data date.

3.5.2 Narrative Report

Provide a Narrative Report with each schedule submission. The Schedule Narrative Report is a "stand alone" report in PDF or Word format. Title the report "Schedule Narrative Report". Show the Report date, schedule name, and contract number on the first page. Indicate who is responsible for the schedule update and narrative report. Provide a brief description of the Project Scope. The Narrative Report is expected to communicate to the Government the thorough analysis of the schedule output and the plans to compensate for problems, either current or potential, which are revealed through that analysis. Include the following information at a minimum in the Narrative Report:

a. Identify and discuss the work scheduled to start in the next update period.

b. Describe activities along the critical path in addition to activities on the next float path after the critical path.

c. Describe current and anticipated problem areas, delaying factors and their impact, and an explanation of corrective actions taken or required to be taken. Identify the party responsible for delay, if applicable.

d. Identify and explain why activities, based on their calculated late dates, should have either started or finished during the update period but did not.

e. Identify and discuss all schedule changes by activity ID and activity name including what specifically was changed and why the change was needed. Include at a minimum new and deleted activities, logic changes, duration changes, calendar changes, lag changes, resource changes, and actual start and finish date changes.

f. Identify and discuss out-of-sequence work.

g. If the longest path changes from a monthly update to the next, provide an explanation of the factors driving the change.

h. Respond to USACE Schedule Review Comments from the previous update(s).

3.5.3 Schedule Reports

The format, filtering, organizing, and sorting for each schedule report will be as directed by the Contracting Officer. Typically, reports contain Activity Numbers, Activity Description, Original Duration, Remaining Duration, Early Start Date, Early Finish Date, Late Start Date, Late Finish Date, Total Float, Actual Start Date, Actual Finish Date, and

Percent Complete. Provide the reports electronically in .pdf format. Provide 3 set(s) of hardcopy reports. The following lists typical reports that will be requested:

3.5.3.1 Activity Report

List of all activities sorted according to activity number.

3.5.3.2 Logic Report

List of detailed predecessor and successor activities for every activity in ascending order by activity number.

3.5.3.3 Total Float Report

A list of all incomplete activities sorted in ascending order of total float. List activities which have the same amount of total float in ascending order of Early Start Dates. Do not show completed activities on this report.

3.5.3.4 Earnings Report by CLIN

A compilation of the Total Earnings on the project from the NTP to the data date, which reflects the earnings of activities based on the agreements made in the schedule update meeting defined herein. Provided a complete schedule update has been furnished, this report serves as the basis of determining progress payments. Group activities by CLIN number and sort by activity number. Provide a total CLIN percent earned value, CLIN percent complete, and project percent complete. The printed report must contain the following for each activity: the Activity Number, Activity Description, Original Budgeted Amount, Earnings to Date, Earnings this period, Total Quantity, Quantity to Date, and Percent Complete (based on cost).

3.5.3.5 Scheduling and Leveling Report

Provide a Scheduling/Leveling Report generated from the current project schedule being submitted.

3.5.4 Network Diagram

The Network Diagram is required for the Preliminary, Initial and Periodic Updates. Depict and display the order and interdependence of activities and the sequence in which the work is to be accomplished. The Contracting Officer will use, but is not limited to, the following conditions to review compliance with this paragraph:

3.5.4.1 Continuous Flow

Show a continuous flow from left to right with no arrows from right to left. Show the activity number, description, duration, and estimated earned value on the diagram.

3.5.4.2 Project Milestone Dates

Show dates on the diagram for start of project, any contract required interim completion dates, and contract completion dates.

3.5.4.3 Critical Path

Show all activities on the critical path. The critical path is defined as the longest path.

3.5.4.4 Grouping and Sorting

Group and sort activities as directed to assist in the understanding of the activity sequence. Typically, this flow will group activities by major elements of work, category of work, work area and/or responsibility.

3.5.4.5 Cash Flow / Schedule Variance Control (SVC) Diagram

With each schedule submission, provide a SVC diagram showing 1) Cash Flow S-Curves indicating planned project cost based on projected early and late activity finish dates, and 2) Earned Value to-date.

3.6 PERIODIC SCHEDULE UPDATE

3.6.1 Periodic Schedule Update Meetings

Conduct periodic schedule update meetings for the purpose of reviewing the proposed Periodic Schedule Update, Narrative Report, Schedule Reports, and progress payment. Conduct meetings at least monthly within five days of the proposed schedule data date. Provide a computer with the scheduling software loaded and a projector which allows all meeting participants to view the proposed schedule during the meeting. The Contractor's authorized scheduler must organize, group, sort, filter, perform schedule revisions as needed and review functions as requested by the Contractor and/or Government. The Contractor scheduler must attend in person unless virtual attendance is approved by Contracting Officer. The meeting is a working interactive exchange which allows the Government and Contractor the opportunity to review the updated schedule on a real time and interactive basis. The meeting will last no longer than 8 hours. Submit schedule file and narrative to the Government a minimum of two workdays in advance of the meeting. The Contractor's Project Manager must attend the meeting with the authorized representative of the Contracting Officer. Superintendents, foremen and major subcontractors must attend the meeting as required to discuss the project schedule and work. Following the schedule update meeting, make corrections to the schedule and resubmit, following the required schedule naming convention. Include only those changes approved by the Government. Provide advanced notice to the Government to schedule the periodic schedule update meeting, if proposed changes include major changes, such as logic changes, duration changes, and changes that require approval from the Contracting Officer. Only approved schedules may be used to generate invoices for payment.

3.6.2 Update Submission Following Progress Meeting

Submit the complete Periodic Schedule Update of the Project Schedule containing all approved progress, revisions, and adjustments, pursuant to paragraph SUBMISSION REQUIREMENTS not later than 4 workdays after the periodic schedule update meeting.

3.7 WEEKLY PROGRESS MEETINGS

Conduct a weekly meeting with the Government (or as otherwise mutually agreed to) between the meetings described in paragraph entitled PERIODIC SCHEDULE UPDATE MEETINGS for the purpose of jointly reviewing the actual progress of the project as compared to the as planned progress and to review planned activities for the upcoming two weeks. Use the current approved schedule update for the purposes of this meeting and for the production and review of reports. At the weekly progress meeting, address the status of RFIs, RFPs and Submittals. The Contractor shall document the weekly progress meeting minutes. Meeting minutes shall be submitted with the Contractor’s daily QC report.

3.8 REQUESTS FOR TIME EXTENSIONS

ASCE 67-17 provides delay analysis guidelines. If there is a conflict between the contract and guidance provided in ASCE 67-17, the contract will govern. Provide justification of delay to the Contracting Officer in accordance with the contract provisions and clauses for approval, within 10 days of a delay occuring. Also prepare a time impact analysis for each Government request for proposal (RFP).

3.8.1 Justification of Delay

Provide a description of the event(s) that caused the delay and/or impact to the work. As part of the description, identify all schedule activities impacted. Show that the event that caused the delay/impact was the responsibility of the Government. Provide a time impact analysis that demonstrates the effects of the delay or impact on the project completion date, or interim completion date(s). Evaluate multiple impacts chronologically; each with its own justification of delay. With multiple impacts consider any concurrency of delay. A time extension and the schedule fragnet becomes part of the project schedule and all future schedule updates upon approval by the Contracting Officer.

3.8.2 Changes That Do Not Cause Delay

If it is determined that a change does not constitute a schedule time extension, a fragnet as described in paragraph FRAGMENTARY NETWORK, is to be created and inserted into the Project schedule.

3.8.3 Time Impact Analysis (Prospective Analysis)

Submit requests for time extensions based on a prospective analysis if the work involved or the impact identified has not already occurred. Where the impact is ongoing a prospective analysis may be considered. However, the Government reserves the right to require a retrospective analysis be prepared after the impact has ended.

Prepare a time impact analysis for approval by the Contracting Officer based on industry recommended practice AACE 52R-06. Utilize a copy of the last approved schedule prior to the first day of the impact or delay for the time impact analysis. If Contracting Officer determines the time frame between the last approved schedule and the first day of impact is too great, prepare an interim updated schedule to perform the time impact analysis. Unless approved by the Contracting Officer, no other changes may be incorporated into the schedule being used to justify the time impact.

3.8.4 Forensic Schedule Analysis (Retrospective Analysis)

Submit requests for time extensions based on a retrospective analysis if the work involved or the impact identified has already occurred. The analysis must account for the actual performance of both the impacted work and all other contract work in the schedule.

If a methodology is chosen from AACE 29R-03, the method must adhere to the principles identified in ASCE 67-17. If there is a conflict with the methodology chosen from AACE 29R-03 and ASCE 67-17, ASCE 67-17 will govern. Choice of methodology should be discussed prior to submission to Government.

3.8.5 Fragmentary Network (Fragnet)

Prepare a proposed fragnet for time impact analysis consisting of a sequence of new activities that are proposed to be added to the project schedule to demonstrate the influence of the delay or impact to the project's contractual dates. Clearly show how the proposed fragnet is to be tied into the project schedule including all predecessors and successors to the fragnet activities. The proposed fragnet must be approved by the Contracting Officer prior to incorporation into the project schedule.

3.8.6 Time Extension

The Contracting Officer must approve the Justification of Delay including the time impact analysis before a time extension will be granted. No time extension will be granted unless the delay consumes all available Project Float and extends the projected finish date ("End Project" milestone) beyond the Contract Completion Date. The time extension will be in calendar days.

Actual delays that are found to be caused by the Contractor's own actions, which result in a calculated schedule delay, are not a cause for an extension to the performance period, completion date, or any interim milestone date.

3.8.7 Impact to Early Completion Schedule

No extended overhead will be paid for delay prior to the original Contract Completion Date for an Early Completion IPS unless the Contractor actually performed work in accordance with that Early Completion Schedule. The Contractor must show that an early completion was achievable had it not been for the impact.

3.9 FAILURE TO ACHIEVE PROGRESS

Should the progress fall behind the approved project schedule for reasons other than those that are excusable within the terms of the contract, the Contracting Officer may require provision of a written recovery plan for approval. The plan must detail how progress will be made-up to include which activities will be accelerated by adding additional crews, longer work hours, extra workdays, etc.

3.9.1 Artificially Improving Progress

Artificially improving progress by means such as, but not limited to, revising the schedule logic, modifying, or adding constraints, shortening activity durations, or changing calendars in the project schedule is prohibited. Indicate assumptions made and the basis for any logic, constraint, duration, and calendar changes used in the creation of the recovery plan. Any additional resources, manpower, or daily and weekly work hour changes proposed in the recovery plan must be evident at the work site and documented in the daily report along with the Schedule Narrative Report.

3.9.2 Failure to Perform

Failure to perform work and maintain progress in accordance with the supplemental recovery plan may result in an interim and final unsatisfactory performance rating and may result in corrective action directed by the Contracting Officer pursuant to FAR 52.236-15 Schedules for Construction Contracts, FAR 52.249-10 Default (Fixed-Price Construction), and other contract provisions.

3.9.3 Recovery Schedule

Should the Contracting Officer find it necessary, submit a recovery schedule pursuant to FAR 52.236-15 Schedules for Construction Contracts.

3.10 OWNERSHIP OF FLOAT

Except for the provision given in the paragraph IMPACT TO EARLY COMPLETION SCHEDULE, float available in the schedule, at any time, belongs to the Project and is available for Contractor and Government use. This includes activity and project float. Activity float is the number of workdays that an activity can be delayed without causing a delay to the "End Project" finish milestone. Project float (if applicable) is the number of work days between the projected early finish and the "End Project" finish.

3.11 TRANSFER OF SCHEDULE DATA INTO RESIDENT MANAGEMENT SYSTEM

Ensure schedule data is uploaded to RMS. This data is additional supporting data in a form and detail required by the Contracting Officer pursuant to FAR 52.232-5 Payments under Fixed-Price Construction Contracts. The receipt of a proper payment request pursuant to FAR 52.232-27 Prompt Payment for Construction Contracts is contingent upon the Government receiving both acceptable and approvable hard copies and matching electronic versions of the application for progress payment.

3.12 PRIMAVERA P6 MANDATORY REQUIREMENTS

Ensure Primavera P6 settings provide a schedule capable of fulfilling the requirements of the contract. The following settings are mandatory and required in all schedule submissions to the Government:

a. Activity Codes must be Project Level, not Global or EPS level.

b. Calendars must be Project Level, not Global or Resource level.

c. Activity Duration Types must be set to "Fixed Duration & Units".

d. Percent Complete Types must be set to "Physical".

e. Time Period Admin Preferences must remain the default "8.0 hr/day, 40 hr/week, 172 hr/month, 2000 hr/year". Set Calendar Work Hours/Day to 8.0 Hour days.

f. Set Schedule Option for defining Critical Activities to "Longest Path".

g. Set Schedule Option for defining progressed activities to "Retained Logic".

h. Set up cost loading using a single job non-labor resource. The Price/Unit must be $1/hr, Default Units/Time must be "8h/d", and settings "Auto Compute Actuals" and "Calculate costs from units" un-selected.

i. Activity ID's must not exceed 10 characters.

j. Activity Names must have a verb-noun structure and contain the most defining and detailed description within the first 30 characters.

k. The daily ending hour for all work calendars must be the same.

-- End of Section --

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DIVISION 01 - GENERAL REQUIREMENTS

SECTION 01 33 00

SUBMITTAL PROCEDURES

-- End of Section Table of Contents --

SECTION 01 33 00

SUBMITTAL PROCEDURES

PART 1 GENERAL

1.1 SUBMITTAL IDENTIFICATION

Submittals are identified by SD numbers and titles within each specification section where submittals are required as follows:

SD-01 Preconstruction Submittals

SD-03 Product Data

SD-06 Test Reports

SD-07 Certificates

1.2 SUBMITTAL CLASSIFICATION

Submittals are classified as follows:

1.2.1 Government Approved

Government approval is required for extensions of design, critical materials, deviations, equipment whose compatibility with the entire system must be checked, and other items as designated by the Contracting Officer. Within the terms of the Contract Clause SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION, they are considered to be "shop drawings".

1.2.2 Information Only

All submittals not requiring Government approval will be for information only. They are not considered to be "shop drawings" within the terms of the Contract Clause referred to above.

1.3 APPROVED SUBMITTALS

The Contracting Officer's approval of submittals shall not be construed as a complete check, but will indicate only that the general method of construction, materials, detailing and other information are satisfactory. Approval will not relieve the Contractor of the responsibility for any error which may exist, as the Contractor under the Contractor Quality Control (CQC) requirements of this contract is responsible for dimensions, the design of adequate connections and details, and the satisfactory construction of all work. After submittals have been approved by the Contracting Officer, no resubmittal for the purpose of substituting materials or equipment will be considered unless accompanied by an explanation of why a substitution is necessary.

1.4 DISAPPROVED SUBMITTALS

The Contractor shall make all corrections required by the Contracting Officer and promptly furnish a corrected submittal in the form and number of copies specified for the initial submittal. If the Contractor considers any correction indicated on the submittals to constitute a change to the contract, a notice in accordance with the Contract Clause CHANGES, shall be given promptly to the Contracting Officer.

1.5 WITHHOLDING OF PAYMENT

Payment for materials incorporated in the work will not be made if required approvals have not been obtained.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION

3.1 GENERAL

The Contractor shall make submittals as required by the specifications. The Contracting Officer may request submittals in addition to those specified when deemed necessary to adequately describe the work covered in the respective sections. Units of weights and measures used on all submittals shall be the same as those used in the contract drawings. Each submittal shall be complete and in sufficient detail to allow ready determination of compliance with contract requirements. Prior to submittal, all items shall be checked and approved by the Contractor's Quality Control (CQC) System Manager and each item shall be stamped, signed, and dated by the CQC System Manager indicating action taken. Proposed deviations from the contract requirements shall be clearly identified. Submittals shall include items such as: Contractor's, manufacturer's, or fabricator's drawings; descriptive literature including (but not limited to) catalog cuts, diagrams, operating charts or curves; test reports; test cylinders; samples; O&M manuals (including parts list); certifications; warranties; and other such required submittals. Submittals requiring Government approval shall be scheduled and made prior to the acquisition of the material or equipment covered thereby. Samples remaining upon completion of the work shall be picked up and disposed of in accordance with manufacturer's Material Safety Data Sheets (MSDS) and in compliance with existing laws and regulations.

3.2 SUBMITTAL REGISTER

At the end of this section is the Submittal Register listing items of equipment and materials for which submittals are required by the specifications; this list may not be all inclusive and additional submittals may be required. Columns "c" through "f" have been completed by the Government; the Contractor shall complete columns "a", and "g" thru "i" and submit the forms in accordance with Section 01 45 00.00 09 QUALITY CONTROL, paragraph SUBMITTAL AND DELIVERABLES REVIEW AND APPROVAL to the Contracting Officer for approval within 10 calendar days after Notice to Proceed. The approved Submittal Register will become the scheduling document and will be used to control submittals throughout the life of the contract. The Submittal Register and the progress schedules shall be coordinated.

3.3 SCHEDULING

Submittals covering component items forming a system or items that are interrelated shall be scheduled to be coordinated and submitted concurrently. Certifications to be submitted with the pertinent drawings shall be so scheduled. Adequate time (a minimum of 30 calendar days exclusive of mailing time) shall be allowed and shown on the register for review and approval. No delay damages or time extensions will be allowed for time lost in late submittals.

3.4 TRANSMITTAL FORM (ENG FORM 4025-R)

The sample transmittal form (ENG Form 4025-R) attached to this section shall be used for submitting both Government approved and information only submittals in accordance with the instructions on the reverse side of the form. These forms will be furnished to the Contractor. This form shall be properly completed by filling out all the heading blank spaces and identifying each item submitted. Special care shall be exercised to ensure proper listing of the specification paragraph and/or sheet number of the contract drawings pertinent to the data submitted for each item.

3.5 SUBMITTAL PROCEDURE

Submittals shall be made as follows:

3.5.1 Procedures

Submittals shall be prepared electronically, as specified, with 3 hard copies delivered to the Contracting Officer once the submittal documentation package is approved.

Submitting the ENG 4025 transmittal document packages will be processed using an electronic process. The Contractor shall submit transmittals to the following web address: https://safe.armdec.army.mil/safe
All files posted to the website shall be in PDF format. The file name for the transmittals shall be the contract number and the transmittal number, ie 13-C-0014_00 73 05-1.pdf.

3.5.2 SD-04 Sample Transmittal Submission

For samples, the Contractor shall submit a hard copy of the ENG 4025 to the address coordinated at the preconstruction conference with the samples attached. The Contractor shall also submit an electronic ENG 4025 which shall serve as the official approval/disapproval document for the submission. The sample shall be kept by the Government unless otherwise coordinated.

3.6 CONTROL OF SUBMITTALS

The Contractor shall carefully control his procurement operations to ensure that each individual submittal is made on or before the Contractor scheduled submittal date shown on the approved "Submittal Register".

3.7 GOVERNMENT APPROVED SUBMITTALS

The Government will approve/disapprove, sign and electronically post the completed package on the SAFE Web Site at https://safe.armdec.army.mil/safe. The Contractor will receive an email notification that a file package is available for download.

3.8 INFORMATION ONLY SUBMITTALS

Normally submittals for information only will not be returned. Approval of the Contracting Officer is not required on information only submittals. The Government reserves the right to require the Contractor to resubmit any item found not to comply with the contract. This does not relieve the Contractor from the obligation to furnish material conforming to the plans and specifications; will not prevent the Contracting Officer from requiring removal and replacement of nonconforming material incorporated in the work; and does not relieve the Contractor of the requirement to furnish samples for testing by the Government laboratory or for check testing by the Government in those instances where the technical specifications so prescribe.

3.9 STAMPS

Stamps used by the Contractor on the submittal data to certify that the submittal meets contract requirements shall be 2" x 2" and similar to the following format:

CONTRACTOR
(Firm Name)
_____ Approved
_____ Approved with corrections as noted on submittal data and/or attached sheets(s).
SIGNATURE: ______________________
TITLE: ______________________
DATE: ______________________

-- End of Section --

TRANSMITTAL OF SHOP DRAWINGS, EQUIPMENT DATA, MATERIAL SAMPLES, OR MANUFACTURER'S CERTIFICATES OF COMPLIANCE

For use of this form, see ER 415-1-10; the proponent agency is CECW-CE.

DATE	TRANSMITTAL NO.

SECTION I - REQUEST FOR APPROVAL OF THE FOLLOWING ITEMS (*This section will be initiated by the contractor*)

TO:	FROM:	CONTRACT NO.	CHECK ONE: ☐ THIS IS A NEW TRANSMITTAL ☐ THIS IS A RESUBMITTAL OF TRANSMITTAL ________

SPECIFICATION SEC. NO. (*Cover only one section with each transmittal*)	PROJECT TITLE AND LOCATION	THIS TRANSMITTAL IS FOR: (*Check one*) ☐ FIO ☐ GA ☐ DA ☐ CR ☐ DA/CR ☐ DA/GA

ITEM NO. (*See Note 3*) a.	**DESCRIPTION OF SUBMITTAL ITEM** (*Type size, model number/etc.*) b.	**SUBMITTAL TYPE CODE** (*See Note 8*) c.	**NO. OF COPIES** d.	**CONTRACT DOCUMENT REFERENCE** **SPEC. PARA. NO.** e.	**DRAWING SHEET NO.** f.	**CONTRACTOR REVIEW CODE** g.	**VARIATION** Enter "Y" if requesting a variation (*See Note 6*) h.	**USACE ACTION CODE** (*Note 9*) i.

REMARKS

I certify that the above submitted items had been reviewed in detail and are correct and in strict conformance with the contract drawings and specifications except as otherwise stated.

NAME OF CONTRACTOR	SIGNATURE OF CONTRACTOR

SECTION II - APPROVAL ACTION

ENCLOSURES RETURNED (*List by item No.*)	NAME AND TITLE OF APPROVING AUTHORITY	SIGNATURE OF APPROVING AUTHORITY	DATE

INSTRUCTIONS

1. Section I will be initiated by the Contractor in the required number of copies.

2. Each Transmittal shall be numbered consecutively. The Transmittal Number typically includes two parts separated by a dash (-). The first part is the specification section number. The second part is a sequential number for the submittals under that spec section. If the Transmittal is a resubmittal, then add a decimal point to the end of the original Transmittal Number and begin numbering the resubmittal packages sequentially after the decimal.

3. The "Item No." for each entry on this form will be the same "Item No." as indicated on ENG FORM 4288-R.

4. Submittals requiring expeditious handling will be submitted on a separate ENG Form 4025-R.

5. Items transmitted on each transmittal form will be from the same specification section. Do not combine submittal information from different specification sections in a single transmittal.

6. If the data submitted are intentionally in variance with the contract requirements, indicate a variation in column h, and enter a statement in the Remarks block describing he detailed reason for the variation.

7. ENG Form 4025-R is self-transmitting - a letter of transmittal is not required.

8. When submittal items are transmitted, indicate the "Submittal Type" (*SD-01 through SD-11*) in column c of Section I.
   Submittal types are the following:

SD-01 - Preconstruction	SD-02 - Shop Drawings	SD-03 - Product Data	SD-04 - Samples	SD-05 - Design Data	SD-06 - Test Reports
SD-07 - Certificates	SD-08 - Manufacturer's Instructions	SD-09 - Manufacturer's Field Reports	SD-10 - O&M Data	SD-11 - Closeout	

9. For each submittal item, the Contractor will assign Submittal Action Codes in column g of Section I. The U.S. Army Corps of Engineers approving authority will assign Submittal Action Codes in column i of Section I. The Submittal Action Codes are:

A -- Approved as submitted.	F -- Receipt acknowledged.
B -- Approved, except as noted on drawings. Resubmission not required.	X -- Receipt acknowledged, does not comply with contract requirements, as noted.
C -- Approved, except as noted on drawings. Refer to attached comments. Resubmission required.	G -- Other action required *(Specify)*
	K -- Government concurs with intermediate design. (*For D-B contracts*)
D -- Will be returned by separate correspondence.	R -- Design submittal is acceptable for release for construction. (*For D-B contracts*)
E -- Disapproved. Refer to attached comments.	

10. Approval of items does not relieve the contractor from complying with all the requirements of the contract.

SUBMITTAL REGISTER

CONTRACT NO.

TITLE AND LOCATION
MR&T, EAST BANK BRUNSWICK, MISSISSIPPI ITEM 465-L SLIDE REPAIR

CONTRACTOR

ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH #	CLASSIFICATION	GOVT OR A/E REVWR	CONTRACTOR: SCHEDULE DATES SUBMIT	CONTRACTOR: SCHEDULE DATES APPROVAL NEEDED BY	CONTRACTOR: SCHEDULE DATES MATERIAL NEEDED BY	CONTRACTOR ACTION ACTION CODE	CONTRACTOR ACTION DATE OF ACTION	DATE FWD TO APPR AUTH/ DATE RCD FROM CONTR	APPROVING AUTHORITY DATE FWD TO OTHER REVIEWER	APPROVING AUTHORITY DATE RCD FROM OTH REVIEWER	APPROVING AUTHORITY ACTION CODE	APPROVING AUTHORITY DATE OF ACTION	MAILED TO CONTR/ DATE RCD FRM APPR AUTH	REMARKS
(a)	(b)	(c)	(d)	(e)	(f)		(g)	(h)	(i)	(j)	(k)	(l)	(m)	(n)	(o)	(p)	(q)	(r)
		01 00 00.00 09	SD-01 Preconstruction Submittals															
			Accident Prevention Plan	1.21	G	GA												
		01 32 01.00 09	SD-01 Preconstruction Submittals															
			Project Scheduler Qualifications	1.3	G													
			Preliminary Project Schedule	3.4.1	G													
			Initial Project Schedule	3.4.2	G													
			Periodic Schedule Update	3.6.2	G													
		01 35 26	SD-01 Preconstruction Submittals															
			Accident Prevention Plan (APP)	1.8	G													
			SD-06 Test Reports															
			Accident Reports	1.12.2	G													
			LHE Inspection Reports	1.12.3														
			Monthly Exposure Reports	1.5	G													
			SD-07 Certificates															
			Activity Hazard Analysis (AHA)	1.9	G													
			Hot Work Permit	1.13														
		01 45 00.00 09	SD-01 Preconstruction Submittals															
			Contractor Quality Control (CQC)	1.5.2	G													
			Plan															
			SD-06 Test Reports															
			Verification Statement	1.12.3														
		01 57 20.00 09	SD-01 Preconstruction Submittals															
			Environmental Protection Plan	1.3.1	G	GA												
		01 57 23.00 09	SD-07 Certificates															
			Filter Fabric	2.2.2														
		02 50 00.00 09	SD-07 Certificates															

SUBMITTAL REGISTER

CONTRACT NO.

TITLE AND LOCATION: MR&T, EAST BANK BRUNSWICK, MISSISSIPPI ITEM 465-L SLIDE REPAIR

CONTRACTOR

ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH #	CLASSIFICATION	GOVT OR A/E REVWR	CONTRACTOR: SCHEDULE DATES SUBMIT	CONTRACTOR: SCHEDULE DATES APPROVAL NEEDED BY	CONTRACTOR: SCHEDULE DATES MATERIAL NEEDED BY	CONTRACTOR ACTION ACTION CODE	CONTRACTOR ACTION DATE OF ACTION	DATE FWD TO APPR AUTH/ DATE RCD FROM CONTR	APPROVING AUTHORITY DATE FWD TO OTHER REVIEWER	APPROVING AUTHORITY DATE RCD FROM OTH REVIEWER	APPROVING AUTHORITY ACTION CODE	APPROVING AUTHORITY DATE OF ACTION	MAILED TO CONTR/ DATE RCD FRM APPR AUTH	REMARKS
(a)	(b)	(c)	(d)	(e)	(f)		(g)	(h)	(i)	(j)	(k)	(l)	(m)	(n)	(o)	(p)	(q)	(r)
		02 50 00.00 09	Work Plan	1.3														
		31 23 00.00 09	SD-01 Preconstruction Submittals															
			Excavation Plan	3.2.2.1	G													
		31 24 00.00 09	SD-06 Test Reports															
			QC Test Report	3.4.1	G													
		31 25 00.00 09	SD-03 Product Data															
			Fertilizer	2.1														
		32 15 00.00 09	SD-06 Test Reports															
			Material Testing	3.5														
			Evaluation Tests	2.1.2														
			SD-07 Certificates															
			Crushed Stone	2.1.1														
			Laboratory	2.1.2														
		32 92 00.00 09	SD-03 Product Data															
			Bermuda Grass Cultivar	2.5.1	G													
			SD-06 Test Reports															
			Soil Testing	3.2.2														
			SD-07 Certificates															
			Fertilizer	2.1														
			Lime	2.3														
			Bermuda grass sprigs	2.5.2														
			Bermuda grass seed	2.5.3														
		32 92 04.00 09	SD-03 Product Data															
			Erosion Control Matting	2.1.1														
			SD-07 Certificates															
			Erosion Control Matting	2.1.1														

SUBMITTAL REGISTER

CONTRACT NO.

TITLE AND LOCATION
MR&T, EAST BANK BRUNSWICK, MISSISSIPPI ITEM 465-L SLIDE REPAIR

CONTRACTOR

ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH #	CLASSIFICATION GOVT OR A/E REVWR	CONTRACTOR: SCHEDULE DATES SUBMIT	APPROVAL NEEDED BY	MATERIAL NEEDED BY	CONTRACTOR ACTION: ACTION CODE	DATE OF ACTION	DATE FWD TO APPR AUTH/ DATE RCD FROM CONTR	APPROVING AUTHORITY: DATE FWD TO OTHER REVIEWER	DATE RCD FROM OTH REVIEWER	ACTION CODE	DATE OF ACTION	MAILED TO CONTR/ DATE RCD FRM APPR AUTH	REMARKS
(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)	(j)	(k)	(l)	(m)	(n)	(o)	(p)	(q)	(r)
		33 42 29.01 09	SD-07 Certificates														
			Corrugated Metal Pipe	2.1.1													
		35 41 20.00 09	SD-01 Preconstruction Submittals														
			Levee Closure Plan	3.2	G EC-G												

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GOVERNMENTAL SAFETY REQUIREMENTS

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SECTION 01 35 26

GOVERNMENTAL SAFETY REQUIREMENTS

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

AMERICAN SOCIETY OF SAFETY PROFESSIONALS (ASSP)

ANSI/ASSP A10.34	(2021) Protection of the Public on or Adjacent to Construction Sites

INTERNATIONAL SAFETY EQUIPMENT ASSOCIATION (ISEA)

ANSI/ISEA Z89.1	(2014; R 2019) American National Standard for Industrial Head Protection

NATIONAL FIRE PROTECTION ASSOCIATION (NFPA)

NFPA 51B	(2024) Standard for Fire Prevention During Welding, Cutting, and Other Hot Work
NFPA 70	(2023) National Electrical Code
NFPA 70E	(2024) Standard for Electrical Safety in the Workplace
NFPA 241	(2022) Standard for Safeguarding Construction, Alteration, and Demolition Operations

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1	(2024) Safety -- Safety and Occupational Health (SOH) Requirements

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

29 CFR 1926	Safety and Health Regulations for Construction

1.2 DEFINITIONS

The following definitions are for the convenience of the reader. If there is a referenced document in the text of this specification section, that is the document that should define terms for that paragraph. If further clarification is needed, contact the Contracting Officer. This employee shall be on site, executing SSHO duties and responsibilities at all time work is being performed on the construction site(s).

1.2.1 Site Safety and Health Officer (SSHO)

A Prime Contractor Employee that is responsible for overseeing and ensuring implementation of the prime Contractor's Safety and Occupational Health (SOH) program according to the Contract, EM 385-1-1, applicable federal, state, and local requirements.

1.2.1.1 Level One SSHO

A designated employee with full-time SOH responsibility that meets and follows the requirements of EM 385-1-1.

1.2.1.2 Level Two SSHO

A designated employee with Level Two SSHO responsibility that meets and follows the requirements of EM 385-1-1. Level Two SSHOs cannot be assigned to projects that have a residual Risk Assessment Code (RAC) of high or extremely high.

1.2.1.3 Level Three SSHO

A designated Qualified Person or Competent Person with SSHO responsibility that meets and follows the requirements of EM 385-1-1. Level 3 SSHOs cannot be assigned to projects that have a residual RAC of high or extremely high.

1.2.1.4 Alternate SSHO

An employee directly employed by the Prime Contractor that meets the definition of the contract-required level SSHO, but is not the primary SSHO.

1.2.2 Competent Person (CP)

The CP is a person designated in writing, who, through training, knowledge and experience, is capable of identifying, evaluating, and addressing existing and predictable hazards in the working environment or working conditions that are unsanitary, hazardous, or dangerous to personnel, and who has authorization to take prompt corrective measures to eliminate them.

1.2.3 Qualified Person (QP)

The QP is a person designated in writing, who, by possession of a recognized degree, certificate, or professional standing, or extensive knowledge, training, and experience, has successfully demonstrated their ability to solve or resolve problems related to the subject matter, the work, or the project.

1.3 SUBMITTALS

Government Acceptance or Approval does not remove responsibility from the Contractors for their actions or liability.

Government approval is required for submittals with a "G" or "S" classification. Submittals not having a "G" or "S" classification are for information only. When used, a code following the "G" classification identifies the office that will review the submittal for the Government. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Accident Prevention Plan (APP); G

SD-06 Test Reports

Accident Reports; G

LHE Inspection Reports

Monthly Exposure Reports; G

SD-07 Certificates

Activity Hazard Analysis (AHA); G

Hot Work Permit

1.4 PUBLIC HEALTH EMERGENCIES

In the event of a declared public health emergency, follow safety precautions as required by the Occupational Safety and Health Administration (OSHA) www.osha.gov, the Centers for Disease Control and Prevention (CDC) www.cdc.gov, and as required by federal, state and local requirements.

1.5 MONTHLY EXPOSURE REPORTS

Provide a Monthly Exposure Report by the fifth of each month. This report is a compilation of employee-hours worked each month for all site workers, both Prime and subcontractor. Failure to submit the report may result in retention of up to 10 percent of the progress payment.

1.6 REGULATORY REQUIREMENTS

In addition to the detailed requirements included in the provisions of this Contract, comply with the most recent edition of USACE EM 385-1-1, and the following federal, state, and local laws, ordinances, criteria, rules and regulations at the date of the Solicitation for this Contract. Submit matters of interpretation of standards to the appropriate administrative agency for resolution before starting work. Where the requirements of this specification, applicable laws, criteria, ordinances, regulations, and referenced documents vary, the most stringent requirements govern.

1.7 SITE QUALIFICATIONS, DUTIES, AND MEETINGS

1.7.1 Site Safety and Health Officer (SSHO)

1.7.1.1 Qualifications of SSHO

All SSHOs will have met the training, experience requirements identified in the EM 385-1-1 and this Contract.

1.7.1.2 Duties of SSHO

All SSHOs will carry out the roles and responsibilities as identified in this Contract and the EM 385-1-1. All SSHOs will be designated on an ENG

Form 6282, provided by the Contracting Officer. Superintendent, QC Manager, and SSHO are subject to dismissal if their respective and required duties are not being effectively carried out. If either the Superintendent, QC Manager, or SSHO are dismissed, project work will be stopped and will not be allowed to resume until a suitable replacement is approved and the above duties are again being effectively carried out.

1.7.1.3 Safety Meetings

Conduct safety meetings to review past activities, plan for new or changed operations, review pertinent aspects of appropriate AHA (by trade), establish safe working procedures for anticipated hazards, and provide pertinent Safety and Occupational Health (SOH) training and motivation. Conduct meetings at least once a month for all supervisors at the project location. The SSHO must conduct meetings at least once a week for the trade workers. Document meeting minutes to include the date, persons in attendance, subjects discussed, and names of individual(s) who conducted the meeting. Maintain documentation on-site and furnish copies to the Contracting Officer on request. Notify the Contracting Officer of all scheduled meetings 7 calendar days in advance.

1.7.2 Roles and Responsibilities of Prime Contractor and SSHO

The Prime Contractor and SSHO must ensure that the requirements of all applicable OSHA and EM 385-1-1 are met for the project. The Prime Contractor must ensure an SSHO or an equally qualified Alternate SSHO(s) is at the worksite at all times to implement and administer the Contractor's safety program and Government accepted Accident Prevention Plan. If the required SSHO has to temporarily (that is, up to 24 hours / 1 day) leave the site of work due to unforeseen or emergency situations, a Level One, Two, or Three SSHO may be used in the interim and must be on the site of work at all times when work is being performed.

If the SSHO must be off-site for a period longer than 24 hours / 1 day, a qualified alternate that meets the contract requirements must be onsite. At no time shall the primary SSHO be away from the site for a consecutive period greater than 7 calendar days or absent from the job site more than 30 days total during the contract period.

Competent Person and/or Qualified Person as defined in this section shall not be allowed to substitute nor assume the duties of the Prime SSHO or an Alternate SSHO during their absence from the job site.

a. Prime contractor must ensure all SSHOs will:

(1) Are designated on an ENG Form 6282.

(2) Meet minimum training and experience requirements identified in EM 385-1-1.

(3) Execute roles and responsibilities identified in EM 385-1-1.

1.7.3 Competent Person for Confined Space Entry

Provide a CP for Confined Space Entry who meets the requirements of EM 385-1-1 and herein. The CP for Confined Space Entry must supervise the entry into each confined space in accordance with EM 385-1-1. The CP for Confined Space Entry must "directly inspect" and supervise the entry into each confined space in accordance with EM 385-1-1. This supervision shall be maintained at all times where activities requiring Confined Space Entry are taking place. The CP should develop and submit a plan for review. The CP shall be someone other than the SSHO unless otherwise approved by the COR.

1.7.4 Preconstruction Conference

a. Contractor representatives who have a responsibility or significant role in accident prevention on the project must attend the preconstruction conference and any subcontractor(s) performing work on the project site.. This includes the project superintendent, Site Safety and Occupational Health Officer, quality control manager, or any other assigned safety and health professionals who participated in the development of the APP (including the Activity Hazard Analyses (AHAs) and special plans, program and procedures associated with it).

b. Discuss the details of the submitted APP to include incorporated plans, programs, procedures and a listing of anticipated AHAs that will be developed and implemented during the performance of the Contract. This list of proposed AHAs will be reviewed and an agreement will be reached between the Contractor and the Contracting Officer as to which phases will require an analysis. In addition, establish a schedule for the preparation, submittal, and Government review of AHAs to preclude project delays. The creation of the APP and Schedule will be created after being given Notice to Proceed.

c. Deficiencies in the submitted APP, identified during the Contracting Officer's review, must be corrected, and the APP re-submitted for review prior to the start of construction. Work is not permitted to begin until an APP is established that is acceptable to the Contracting Officer.

1.8 ACCIDENT PREVENTION PLAN (APP)

1.8.1 Accident Prevention Plan (APP)

Submit the Accident Prevention Plan (APP) for review and acceptance by the Government at least 15 calendar days prior to the start, after being given Notice to Proceed. A competent person must prepare the written site-specific APP. Prepare the APP in accordance with the format and requirements of EM 385-1-1, ENG Form 6293, and herein. The APP must be job-specific and address any unusual or unique aspects of the project or activity for which it is written. The APP must interface with the Contractor's overall safety and occupational health program referenced in the APP in the applicable APP element, and made site-specific. Describe the methods to evaluate past safety performance of potential subcontractors in the selection process. Also, describe innovative methods used to ensure and monitor safe work practices of subcontractors. The Government considers the Prime Contractor to be the "controlling employer" for all worksite safety and health of the subcontractors. Contractors are responsible for informing their subcontractors of the safety provisions under the terms of the Contract and the penalties for noncompliance, coordinating the work to prevent one craft from interfering with or creating hazardous working conditions for other crafts, and inspecting subcontractor operations to ensure that accident prevention responsibilities are being carried out. The APP must be signed in accordance with the APP and ENG Form 6293 Accident Prevention Plan Worksheet. The SSHO must provide and maintain the APP and a log of signatures by each subcontractor foreman, attesting that they have read and understand the APP, and make the APP and log available on-site to the Contracting Officer. If English is not the foreman's primary language, the Prime Contractor must provide an interpreter.

Work cannot proceed without an accepted APP. Once reviewed and accepted by the Contracting Officer, the APP and attachments will be enforced as part of the Contract. Disregarding the provisions of this Contract or the accepted APP is cause for stopping of work, at the discretion of the Contracting Officer, until the matter has been rectified. Continuously review and amend the APP, as necessary, throughout the life of the Contract. Changes to the accepted APP must be made with the knowledge and concurrence of the Contracting Officer, project superintendent, SSHO and Quality Control Manager. Incorporate unusual or high-hazard activities not identified in the original APP as they are discovered. Should any severe hazard exposure (i.e., imminent danger) become evident, stop work in the area, secure the area, and develop a plan to remove the exposure and control the hazard. Notify the Contracting Officer within 24 hours of discovery. Eliminate and remove the hazard. In the interim, take all necessary action to restore and maintain safe working conditions in order to safeguard onsite personnel, visitors, the public (as defined by ANSI/ASSP A10.34), and the environment.

1.8.2 Names and Qualifications

Provide plans in accordance with the requirements outlined in EM 385-1-1, including the following:

a. Names and qualifications (resumes including education, training, experience and certifications) of site safety and health personnel designated to perform work on this project to include the designated Site Safety and Health Officer and other competent and qualified personnel to be used. Specify the duties of each position.

b. As a minimum, designate and submit qualifications of Competent Persons (CP) for each of the following major areas: excavation; scaffolding; fall protection; hazardous energy; confined space; health hazard recognition, evaluation and control of chemical, physical and biological agents; and personal protective equipment and clothing to include selection, use and maintenance. Designate and submit qualifications for additional CPs as applicable to the work performed under this Contract.

1.9 ACTIVITY HAZARD ANALYSIS (AHA)

Before beginning each activity, task or Definable Feature of Work (DFOW) involving a type of work presenting hazards not experienced in previous project operations, or where a new work crew or subcontractor is to perform the work, the Contractor(s) performing that work activity must prepare an AHA. AHAs must be developed by the Prime Contractor, subcontractor, or supplier performing the work, and provided for Prime Contractor review and approval before submitting to the Contracting Officer. AHAs must be signed by the SSHO, Superintendent, QC Manager and the subcontractor Foreman performing the work. Format the AHA in accordance with EM 385-1-1 or as directed by the Contracting Officer. Submit the AHA for review at least 15 working days prior to the start of each activity task, or DFOW. The Government reserves the right to require the Contractor to revise and resubmit the AHA if it fails to effectively identify the work sequences, specific anticipated hazards, site conditions, equipment, materials, personnel and the control measures to be implemented.

AHAs must identify competent persons required for phases involving high risk activities, including confined entry, crane and rigging, excavations, trenching, electrical work, fall protection, and scaffolding.

1.9.1 AHA Management

Review the AHA list periodically (at least monthly) at the Contractor supervisory safety meeting, and update as necessary when procedures, scheduling, or hazards change. Use the AHA during daily inspections by the SSHO to ensure the implementation and effectiveness of the required safety and health controls for that work activity.

1.9.2 AHA Signature Log

Each employee performing work as part of an activity, task or DFOW must review the AHA for that work and sign a signature log specifically maintained for that AHA prior to starting work on that activity. The SSHO must maintain a signature log on site for every AHA. Provide employees whose primary language is other than English, with an interpreter to ensure a clear understanding of the AHA and its contents.

1.10 SITE SAFETY REFERENCE MATERIALS

Maintain safety-related references applicable to the project, including those listed in paragraph REFERENCES. Maintain applicable equipment manufacturer's manuals.

1.11 EMERGENCY MEDICAL TREATMENT

Contractors must arrange for their own emergency medical treatment in accordance with EM 385-1-1. The Government has no responsibility to provide emergency medical treatment.

1.12 NOTIFICATIONS AND REPORTS

1.12.1 Accident Notification

Notify the Contracting Officer in accordance with the EM 385-1-1 Accident Reporting Timeline.

Table
Accident Reporting Required Timeline

Accident Type	**Notify KO or COR**	**Complete Final Accident Report on ENG 3394 and provide to KO or COR**
Fatality, in-patient hospitalization, amputation, eye loss, or property damage over $600,000.	Immediately, no later than (NLT) 8 Hours	Within 7 Days

Table Accident Reporting Required Timeline		
All other accidents and near misses	Immediately, no later than (NLT) 24 Hours	Within 7 Days

Within notification include Contractor name; Contract title; type of Contract; name of activity, installation or location where accident occurred; date and time of accident; names of personnel injured; extent of property damage, if any; extent of injury, if known, and brief description of accident (for example, type of construction equipment used and PPE used). Preserve the conditions and evidence on the accident site until the Government investigation team arrives on-site and Government investigation is conducted. Assist and cooperate fully with the Government's investigation(s) of any accident or near miss.

1.12.2 Accident Reports

a. Conduct an accident investigation for recordable injuries and illnesses, property damage, and near misses as defined in EM 385-1-1, to establish the root cause(s) of the accident. All accidents are reportable, regardless of whether or not it is recordable. Complete the applicable USACE Accident Report, ENG Form 3394, and provide the report to the Contracting Officer within 7 calendar days of the accident. The Contracting Officer will provide copies of any required or special forms. All accidents are reportable, regardless of whether or not it is recordable.

b. Near Misses: For Army projects, report all "Near Misses" to the COR, using local accident reporting procedures, within 24 hours. The COR will provide the Contractor the required forms. Near miss reports are considered positive and proactive Contractor safety management actions.

1.12.3 LHE Inspection Reports

Submit LHE inspection reports required in accordance with EM 385-1-1 and as specified herein with Daily Reports of Inspections.

1.13 HOT WORK PERMIT

1.13.1 Permit and Personnel Requirements

Submit and obtain a written permit prior to performing "Hot Work" (i.e., welding or cutting) or operating other flame-producing/spark producing devices, from the authority designated by the COR. Contractors are required to meet all criteria before a permit is issued. Provide at least two 20 pound 4A:20 BC rated extinguishers for normal "Hot Work". The extinguishers must be current inspection tagged, and contain an approved safety pin and tamper resistant seal. It is also mandatory to have a designated FIRE WATCH for any "Hot Work" done at this activity. The Fire Watch must be trained in accordance with NFPA 51B and remain on-site for a minimum of 1 hour after completion of the task or as specified on the hot work permit.

When starting work in the facility, require personnel to familiarize themselves with the location of the nearest fire alarm boxes and place in memory the emergency contact phone number designated by the COR. Report any fire, no matter how small, to the COR immediately.

1.13.2 Work Around Flammable Materials

Obtain permit approval from a NFPA Certified Marine Chemist, or Certified Industrial Hygienist for "Hot Work" within or around flammable materials (such as fuel systems or welding/cutting on fuel pipes) or confined spaces (such as sewer wet wells, manholes, or vaults) that have the potential for flammable or explosive atmospheres.

Whenever these materials, except beryllium and chromium (VI), are encountered in indoor operations, local mechanical exhaust ventilation systems that are sufficient to reduce and maintain personal exposures to within acceptable limits must be used and maintained in accordance with manufacturer's instruction and supplemented by exceptions noted in EM 385-1-1.

1.14 SEVERE STORM PLAN

In the event of a severe storm warning, the Contractor must comply with the applicable Storm Plan and:

a. Secure outside equipment and materials and place materials that could be damaged in protected areas.

b. Check surrounding area, including roof, for loose material, equipment, debris, and other objects that could be blown away or against existing facilities.

c. Ensure that temporary erosion controls are adequate.

PART 2 PRODUCTS

Not used.

PART 3 EXECUTION

3.1 CONSTRUCTION AND OTHER WORK

Comply with EM 385-1-1, NFPA 70, NFPA 70E, NFPA 241, the APP, the AHA, Federal and State OSHA regulations, and other related submittals and activity fire and safety regulations. The most stringent standard prevails.

PPE is governed in all areas by the nature of the work the employee is performing. Use personal hearing protection at all times in designated noise hazardous areas or when performing noise hazardous tasks. Safety glasses must be worn or carried/available on each person. Mandatory PPE includes:

a. Head Protection that meets ANSI/ISEA Z89.1

b. Long Pants

c. Appropriate Safety Footwear

d. Appropriate Class Reflective Vests

3.1.1 Worksite Communication

Employees working alone in a remote location or away from other workers must be provided an effective means of emergency communications (i.e., cellular phone, two-way radios, land-line telephones or other acceptable means). The selected communication must be readily available (easily within the immediate reach) of the employee and must be tested prior to the start of work to verify that it effectively operates in the area/environment. Develop an employee check-in/check-out communication procedure to ensure employee safety.

3.2 FALL PROTECTION PROGRAM

Establish a fall protection program, for the protection of all employees exposed to fall hazards. Within the program include company policy, identify roles and responsibilities, education and training requirements, fall hazard identification, prevention and control measures, inspection, storage, care and maintenance of fall protection equipment and rescue and evacuation procedures in accordance with EM 385-1-1.

3.2.1 Fall Protection Equipment and Systems

Enforce use of personal fall protection equipment and systems designated (to include fall arrest, restraint, and positioning) for each specific work activity in the Site Specific Fall Protection and Prevention Plan and AHA at all times when an employee is exposed to a fall hazard. Protect employees from fall hazards as specified in EM 385-1-1.

Provide personal fall protection equipment, systems, subsystems, and components that comply with EM 385-1-1 and 29 CFR 1926.

3.2.1.1 Additional Personal Fall Protection Measures

In addition to the required fall protection systems, other protective measures such as safety skiffs, personal floatation devices, and life rings, are required when working above or next to water in accordance with EM 385-1-1. Personal fall protection systems and equipment are required when working from an articulating or extendible boom, swing stages, or suspended platform. In addition, personal fall protection systems are required when operating other equipment such as scissor lifts. The need for tying-off in such equipment is to prevent ejection of the employee from the equipment during raising, lowering, travel, or while performing work.

3.2.1.2 Personal Fall Protection Equipment

Only a full-body harness with a shock-absorbing lanyard or self-retracting lanyard is an acceptable personal fall arrest body support device. The use of body belts is not acceptable. Harnesses must have a fall arrest attachment affixed to the body support (usually a Dorsal D-ring) and specifically designated for attachment to the rest of the system. Snap hooks and carabineers must be self-closing and self-locking, capable of being opened only by at least two consecutive deliberate actions and have a minimum gate strength of 3,600 lbs in all directions. Use webbing, straps, and ropes made of synthetic fiber. The maximum free fall distance when using fall arrest equipment must not exceed 6 feet, unless the proper energy absorbing lanyard is used. Always take into consideration the total fall distance and any swinging of the worker (pendulum-like motion), that can occur during a fall, when attaching a person to a fall arrest system. Equip all full body harnesses with Suspension Trauma Preventers such as stirrups, relief steps, or similar in order to provide short-term relief from the effects of orthostatic intolerance in accordance with EM 385-1-1.

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SOURCES FOR REFERENCE PUBLICATIONS

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SECTION 01 42 00

SOURCES FOR REFERENCE PUBLICATIONS

PART 1 GENERAL

1.1 REFERENCES

Various publications are referenced in other sections of the specifications to establish requirements for the work. These references are identified in each section by document number, date and title. The document number used in the citation is the number assigned by the standards producing organization (e.g., ASTM B564 Standard Specification for Nickel Alloy Forgings). However, when the standards producing organization has not assigned a number to a document, an identifying number has been assigned for reference purposes.

1.2 ORDERING INFORMATION

The addresses of the standards publishing organizations whose documents are referenced in other sections of these specifications are listed below, and if the source of the publications is different from the address of the sponsoring organization, that information is also provided.

AACE INTERNATIONAL (AACE)
1265 Suncrest Towne Centre Drive
Morgantown, WV 26505-1876 USA
Ph: 304-296-8444
Fax: 304-291-5728
Internet: https://web.aacei.org/

AMERICAN ASSOCIATION OF STATE HIGHWAY AND TRANSPORTATION OFFICIALS (AASHTO)
444 North Capital Street, NW, Suite 249
Washington, DC 20001
Ph: 202-624-5800
Fax: 202-624-5806
E-Mail: info@aashto.org
Internet: https://www.transportation.org/

AMERICAN SOCIETY OF CIVIL ENGINEERS (ASCE)
1801 Alexander Bell Drive
Reston, VA 20191
Ph: 800-548-2723; 703-295-6300
Internet: https://www.asce.org/

AMERICAN SOCIETY OF SAFETY PROFESSIONALS (ASSP)
520 N. Northwest Highway
Park Ridge, IL 60068
Ph: 847-699-2929
E-mail: customerservice@assp.org
Internet: https://www.assp.org/

AMERICAN WELDING SOCIETY (AWS)
8669 NW 36 Street, #130
Miami, FL 33166-6672

Ph: 800-443-9353
Internet: https://www.aws.org/

ASTM INTERNATIONAL (ASTM)
100 Barr Harbor Drive, P.O. Box C700
West Conshohocken, PA 19428-2959
Ph: 610-832-9500
Fax: 610-832-9555
E-mail: service@astm.org
Internet: https://www.astm.org/

INTERNATIONAL SAFETY EQUIPMENT ASSOCIATION (ISEA)
1901 North Moore Street
Arlington, VA 22209-1762
Ph: 703-525-1695
Fax: 703-528-2148
Internet: https://safetyequipment.org/

NATIONAL FIRE PROTECTION ASSOCIATION (NFPA)
1 Batterymarch Park
Quincy, MA 02169-7471
Ph: 800-344-3555
Fax: 800-593-6372
Internet: https://www.nfpa.org

U.S. ARMY CORPS OF ENGINEERS (USACE)
CRD-C DOCUMENTS available on Internet:
http://www.wbdg.org/ffc/army-coe/standards
Order Other Documents from:
Official Publications of the Headquarters, USACE
E-mail: hqpublications@usace.army.mil
Internet: http://www.publications.usace.army.mil/
or
https://www.hnc.usace.army.mil/Missions/Engineering-Directorate/TECHINFO/

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)
8601 Adelphi Road
College Park, MD 20740-6001
Ph: 866-272-6272
Internet: https://www.archives.gov/
Order documents from:
Superintendent of Documents
U.S. Government Publishing Office (GPO)
732 N. Capitol Street, NW
Washington, DC 20401
Ph: 202-512-1800 or 866-512-1800
Bookstore: 202-512-0132
Internet: https://www.gpo.gov/

PART 2 PRODUCTS

Not used

PART 3 EXECUTION

Not used

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QUALITY CONTROL

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SECTION 01 45 00.00 09

QUALITY CONTROL

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by the basic designation only.

ASTM INTERNATIONAL (ASTM)

ASTM D3740-23	(2023) Standard Practice for Minimum Requirements for Agencies Engaged in the Testing and/or Inspection of Soil and Rock as Used in Engineering Design and Construction
ASTM E329-25	(2025) Standard Specification for Agencies Engaged in Construction Inspection, Testing, or Special Inspection

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1	(2024) Safety -- Safety and Occupational Health (SOH) Requirements

1.2 PAYMENT

Separate payment will not be made for providing and maintaining an effective Quality Control program. Include all associated costs in the applicable Bid Schedule item.

1.3 SUBMITTALS

Government approval is required for submittals with a "G" or "S" classification. Submittals not having a "G" or "S" classification are for information only. When used, a code following the "G" classification identifies the office that will review the submittal for the Government. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES.

SD-01 Preconstruction Submittals

Contractor Quality Control (CQC) Plan; G

SD-06 Test Reports

Verification Statement

1.4 GENERAL REQUIREMENTS

Establish and maintain an effective quality control (QC) system that complies with FAR 52.246-12 Inspection of Construction. QC is comprised of plans, procedures, and organization necessary to produce an end product that complies with the Contract requirements. The QC system covers all construction operations, both onsite and offsite, and must be keyed to the proposed construction sequence. The Quality Control Manager, Superintendent, Site Safety and Health Officer (SSHO), and all on-site supervisors are responsible for the quality of work and are subject to removal by the Contracting Officer for non-compliance with the quality requirements specified in the Contract. The Quality Control Manager must maintain a physical presence at the work site at all times and is the primary individual responsible for all quality control.

1.5 QUALITY CONTROL (QC) PROGRAM REQUIREMENTS

Establish and maintain a QC program as described in this section. This QC program is a key element in meeting the objectives of the Commissioning Process (Cx). The QC program consists of a QC Organization, QC Plan, QC Plan Meeting(s), a Coordination and Mutual Understanding Meeting, QC meetings, three phases of control, submittal review and approval, testing, completion inspections, QC certifications, and documentation necessary to provide materials, equipment, workmanship, fabrication, construction and operations that comply with the requirements of this Contract. The QC program must cover on-site and off-site work and be keyed to the work sequence. No construction work or testing may be performed unless the QC Manager is on the work site. The QC Manager must report to an officer of the firm and not be subordinate to the Project Superintendent or the Project Manager. The QC Manager, Project Superintendent and Project Manager must work together effectively. Although the QC Manager is the primary individual responsible for quality control, all individuals will be held responsible for the quality of work on the job.

1.5.1 Meetings

1.5.1.1 Quality Control Plan Meeting

Prior to submission of the QC Plan, the Contractor may request a meeting with the Contracting Officer to discuss the QC Plan requirements of this Contract.

The purpose of this meeting is to develop a mutual understanding of the QC Plan requirements prior to plan development and submission and to agree on the Contractor's list of Definable Feature of Work (DFOW).

1.5.1.2 Coordination and Mutual Understanding Meeting

After the Preconstruction Conference, before start of construction, and prior to acceptance by the Government of the CQC Plan, meet with the Contracting Officer and discuss the Contractor's quality control system. During the meeting, a mutual understanding of the system details must be developed, including the forms for recording the CQC operations, control activities, testing, administration of the system for both onsite and offsite work, and the interrelationship of Contractor's Management and control with the Government's Quality Assurance. Minutes of the meeting will be prepared by the QC Manager and signed by the Contractor and the Government. Provide a copy of the signed minutes to all attendees. At a minimum the Coordination and Mutual Understanding Meeting must be repeated when a new QC Manager is appointed. There can be other occasions when subsequent conferences will be called by either party to reconfirm mutual understandings or address deficiencies in the CQC system or procedures which can require corrective action by the Contractor.

1.5.1.2.1 Purpose

The purpose of this meeting is to develop a mutual understanding of the QC details, including documentation, administration for on-site and off-site work, design intent, environmental requirements and procedures, coordination of activities to be performed, and the coordination of the Contractor's management, production, and QC personnel. At the meeting, the Contractor must explain in detail how three phases of control will be implemented for each DFOW, as well as how each DFOW will be affected by each management plan or requirement as listed below:

a. Environmental Protection Plan.

b. Environmental regulatory requirements.

1.5.1.2.2 Coordination of Activities

Coordinate activities included in various sections to assure efficient and orderly installation of each component. Coordinate operations included under different sections that are dependent on each other for proper installation and operation.

1.5.1.2.3 Attendees

As a minimum, the Contractor's personnel required to attend include an officer of the firm, the Project Manager, Project Superintendent, QC Manager, Alternate QC Manager, and subcontractor representatives. Each subcontractor who will be assigned QC responsibilities must have a principal of the firm at the meeting.

1.5.1.3 Quality Control (QC) Meetings

After the start of construction, conduct weekly QC meetings led by the QC Manager at the work site with the Project Superintendent, and the other personnel as necessary. The QC Manager is to prepare the minutes of the meeting and provide a copy to the Contracting Officer within 2 working days after the meeting. The Contracting Officer may attend these meetings. As a minimum, accomplish the following at each meeting:

a. Review the minutes of the previous meeting.

b. Review the schedule and the status of work and deficiencies/rework. Review the most current approved schedule (in accordance with schedule specification) and the status of work and deficiencies/rework.

c. Review the status of submittals and Request For Information (RFIs).

QC Meeting.

f. Resolve QC and production problems. Discuss status of pending change orders.

g. Address items that may require revising the QC Plan.

h. Review Accident Prevention Plan (APP) and effectiveness of the safety program.

i. Review environmental requirements and procedures.

1.5.2 Contractor Quality Control (CQC) Plan

Submit no later than 30 days after receipt of notice to proceed, the CQC Plan proposed to implement the requirements FAR 52.246-12 Inspection of Construction. Construction will be permitted to begin only after acceptance of the CQC Plan and other Contract requirements.

1.5.2.1 Content of Contractor Quality Control (CQC) Plan

Provide a CQC Plan, prior to start of construction that includes a table of contents, with major sections identified, pages numbered sequentially, and that documents the proposed methods and responsibilities for accomplishing quality control during the construction of the project. The CQC Plan must at a minimum include the following sections:

a. A description of the quality control organization and acknowledgment that the CQC staff will implement the three phase control system for all aspects of the work specified.

b. An organizational chart showing the quality control organization with individual names and job titles and lines of authority up to an executive of the company at the home office.

c. NAMES AND QUALIFICATIONS: Names and qualifications, in resume format, (including position titles and durations for qualifying experiences) for each person in the QC organization. Include the Construction Quality Management (CQM) for Contractors course certifications for the QC personnel as required by the paragraph CONSTRUCTION QUALITY MANAGEMENT TRAINING.

d. DUTIES, RESPONSIBILITY AND AUTHORITY OF QC PERSONNEL: Duties, responsibilities, and authorities of each person in the QC organization.

e. OUTSIDE ORGANIZATIONS: A listing of outside organizations, such as architectural and consulting engineering firms, that will be employed by the Contractor and a description of the services these firms will provide.

f. APPOINTMENT LETTERS: Letters signed by an officer of the firm appointing the QC Manager and Alternate QC Manager, CxC, and stating that they are responsible for implementing and managing the QC program as described in this Contract. Include in this letter the responsibility of the QC Manager and Alternate QC Manager to implement and manage the three phases of control, and their authority to stop work that is not in compliance with the Contract. Letters of direction are to be issued by the QC Manager to all other QC Specialists or quality control representatives outlining their duties, authorities, and responsibilities. Include copies of the letters in the QC Plan.

g. SUBMITTAL PROCEDURES AND INITIAL SUBMITTAL REGISTER: Procedures for reviewing, approving, scheduling, and managing submittals, including those of subcontractors, offsite fabricators, suppliers, and purchasing agents. Provide the name(s) of the person(s) in the QC organization authorized to review and certify submittals prior to approval. Provide the initial submittal of the Submittal Register as specified in Section 01 33 00 SUBMITTAL PROCEDURES.

h. TESTING LABORATORY INFORMATION: Testing laboratory information required by the paragraph ACCREDITATION REQUIREMENTS, as applicable.

i. TESTING PLAN AND LOG: A Testing Plan and Log that includes the tests required, associated feature of work required, referenced by the specification paragraph number requiring the test, the frequency, and the person responsible for each test.

j. Procedures to complete construction deficiencies from identification through acceptable corrective action. Establish verification procedures that identified deficiencies have been corrected. This phase is performed prior to beginning work on each definable feature of work, after all required plans, documents, materials are approved, and after copies are at the work site.

k. Reporting procedures, including proposed reporting formats.

l. Procedures for submitting and reviewing design changes/variations prior to submission to the Contracting Officer.

m. LIST OF DEFINABLE FEATURES: A Definable Feature of Work (DFOW) is a task that is separate and distinct from other tasks and has control requirements and work crews unique to that task. A DFOW is identified by different trades or disciplines, or it is work by the same trade in a different environment. A DFOW is by definition any item or activity on the construction schedule, and the schedule specification provides direction regarding how the DFOWs are to be structured. Include in the list of DFOWs for all activities on the Construction Schedule. Although each section of the specifications can generally be considered as a definable feature of work, there are frequently more than one definable features under a particular section. Identify the specification section number and schedule activity ID for each DFOW listed. The DFOW list will be reviewed in coordination with the construction schedule and agreed upon during the Coordination of Mutual Understanding Meeting.

n. PROCEDURES FOR PERFORMING AND TRACKING THE THREE PHASES OF CONTROL: Identify procedures used to ensure the three phases of control to manage the quality on this project. For each Definable Feature of Work (DFOW), a Preparatory and Initial phase checklist will be filled out during the Preparatory and Initial phase meetings. Conduct the Preparatory and Initial Phases and meetings with a view towards obtaining quality construction by planning ahead and identifying potential problems for each DFOW.

o. PROCEDURES FOR COMPLETION INSPECTION: Procedures for identifying and documenting the completion inspection process. Include in these procedures the responsible party for punch out inspection, pre-final inspection, and final acceptance inspection.

p. TRAINING PROCEDURES AND TRAINING LOG: Procedures for coordinating and documenting the training of personnel required by the Contract.

q. ORGANIZATION AND PERSONNEL CERTIFICATIONS LOG: Procedures for coordinating, tracking and documenting all certifications required for entities such as subcontractors, testing laboratories, suppliers, and personnel. The QC Manager will ensure that certifications are current, appropriate for the work being performed, and will not lapse during any period of the Contract that the work is being performed.

1.5.3 Acceptance of the Quality Control (QC) Plan

The Contracting Officer's acceptance of the Contractor QC Plan is required prior to the start of construction. The Contracting Officer reserves the right to require changes in the QC Plan and operations as necessary, including removal or addition of personnel, to ensure the specified quality of work. The Contracting Officer reserves the right to interview any member of the QC organization at any time to verify the submitted qualifications. All QC organization personnel are subject to acceptance by the Contracting Officer. The Contracting Officer may require the removal of any individual for non-compliance with quality requirements specified in the Contract.

1.5.4 Notification of Changes

Notify the Contracting Officer, in writing, of any proposed changes in the QC Plan or changes to the QC organization personnel. Proposed changes are subject to acceptance by the Contracting Officer.

1.6 QUALITY CONTROL (QC) ORGANIZATION

1.6.1 Personnel Requirements

The requirements for the CQC organization are a Site Safety and Health Officer (SSHO), QC Manager, and enough qualified personnel to ensure safety and Contract compliance. The SSHO reports directly to a senior project (or corporate) official independent from the QC Manager. The SSHO will also serve as a member of the CQC Staff Personnel identified in the technical provisions as requiring specialized skills to assure the required work is being performed properly. The CQC staff always maintains a presence at the site during progress of the work and have complete authority and responsibility to take any action necessary to ensure Contract compliance. The CQC staff will be subject to acceptance by the Contracting Officer. Provide adequate office space, filing systems and other resources as necessary to maintain an effective and fully functional CQC organization. Promptly complete and furnish all letters, material submittals, shop drawing submittals, schedules, and all other project documentation to the CQC organization. The CQC organization is responsible for always maintaining these documents and records at the site, except as otherwise acceptable to the Contracting Officer.

1.6.2 Quality Control (QC) Manager

1.6.2.1 Duties

Provide a QC Manager at the work site to implement and manage the QC program. The QC Manager must be employed by the Prime Contractor. The QC Manager must attend the Coordination and Mutual Understanding Meeting, perform the three phases of control, perform submittal review and approval, ensure testing is performed and provide QC certifications and documentation required in this Contract. The QC Manager is responsible for managing and coordinating the three phases of control and documentation performed by testing laboratory personnel and any other inspection and testing personnel required by this Contract. The QC Manager is the manager of all QC activities.

1.6.2.2 Qualifications

The QC Manager must be an individual with a minimum of 5 years combined experience in the following positions: Project Superintendent, QC Manager, Project Manager, Project Engineer or Construction Manager on similar size and type construction Contracts which included the major trades that are part of this Contract. The individual must have at least 2 years experience as a QC Manager. The individual must be familiar with the requirements of EM 385-1-1 and have experience in the areas of hazard identification, safety compliance, and sustainability.

The QC Manager and all members of the QC organization must be capable of reading, writing, and conversing fluently in the English language.

1.6.2.3 Construction Quality Management Training

In addition to the above experience and education requirements, the QC Manager and all members of the QC team must have completed the CQM for Contractors course. If the QC Manager does not have a current certification, obtain the CQM for Contractors course certification within 90 days of award. This course is periodically offered by the Naval Facilities Engineering Systems Command and the Army Corps of Engineers. Contact the Contracting Officer for information on the next scheduled class.

The Construction Quality Management Training certificate expires after 5 years. If the QC Manager's certificate has expired, retake the course to remain current.

1.6.3 Organizational Changes

Maintain the QC staff with personnel as required by the specification section at all times. When it is necessary to make changes to the QC staff, revise the CQC Plan to reflect the changes and submit the changes to the Contracting Officer for acceptance.

1.6.4 Alternate Quality Control (QC) Manager Duties and Qualifications

Designate an alternate for the QC Manager at the work site to serve in the event of the designated QC Manager's absence. The period of absence may not exceed 2 weeks at one time, and not more than 30 workdays during a calendar year. The qualification requirements for the Alternate QC Manager must be the same as for the QC Manager. The Alternate QC Manager must have at least 3 months experience on the project prior to acting as the Alternate QC Manager and be knowledgable of the contract QC requirements. When serving as the QC Manager, the Alternate QC Manager may not also serve as the SSHO or Superintendent unless otherwise approved by the Contracting Officer.

1.7 SUBMITTAL AND DELIVERABLES REVIEW AND APPROVAL

Procedures for submission, review and approval of submittals are described in Section 01 33 00 SUBMITTAL PROCEDURES. Procedures must include field verification of relevant dimensions and component characteristics by the QC organization prior to submittal being sent to the Contracting Officer. The CQC organization is responsible for certifying that all submittals and deliverables are in compliance with the Contract.

1.8 THREE PHASES OF CONTROL

CQC enables the Contractor to ensure that the construction, including that of subcontractors and suppliers, complies with the requirements of the Contract. At least three phases of control must be conducted by the QC Manager to adequately cover both on-site and off-site work for each definable feature of the construction work as follows:

1.8.1 Preparatory Phase

Document the results of the preparatory phase actions by separate minutes prepared by the QC Manager and attach to the daily CQC report. Instruct applicable workers as to the acceptable level of workmanship required to meet Contract specifications.

Notify the Contracting Officer at least 2 business days in advance of each preparatory phase meeting. The meeting will be conducted by the QC Manager and attended by the Project Superintendent, and the foreman responsible for the DFOW. When the DFOW will be accomplished by a subcontractor, that subcontractor's foreman must attend the preparatory phase meeting. This phase is performed prior to beginning work on each definable feature of work, after all required plans/documents/materials are approved/accepted, and after copies are at the work site. Perform the following prior to beginning work on each DFOW:

a. Review each paragraph of the applicable specification sections, reference codes, and standards. Make available during the prepatory inspection a copy of those sections of referenced codes and standards applicable to that portion of the work to be accomplished in the field. Maintain and make available in the field for use by Government personnel until final acceptance of the work.

b. Review the Contract drawings.

c. Verify that field measurements are as indicated on construction or shop drawings or both before confirming product orders, to minimize waste due to excessive materials.

d. Verify that appropriate shop drawings and submittals for materials and equipment have been submitted and approved. Verify receipt of approved factory test results, when required.

e. Review the testing plan and ensure that provisions have been made to provide the required QC testing.

f. Examine the work area to ensure that the required preliminary work has been completed and complies with the Contract and ensure any deficiencies/rework items in the preliminary work have been corrected and confirmed by the Contracting Officer.

g. Review coordination of product/material delivery to designated prepared areas to execute the work.

h. Examine the required materials, equipment and sample work to ensure that they are on hand and conform to the approved shop drawings and submitted data and are properly stored.

i. Check to assure that all materials and equipment have been tested, submitted, and approved.

j. Discuss specific controls to be used, construction methods, construction tolerances, workmanship standards, and the approach that will be used to provide quality construction by planning ahead and identifying potential problems for each DFOW. Ensure any portion of the plan requiring separate Contracting Officer acceptance has been approved.

k. Review the APP and appropriate Activity Hazard Analysis (AHA) to ensure that applicable safety requirements are met, and that required Safety Data Sheets (SDS) are submitted.

1.8.2 Initial Phase

Notify the Contracting Officer at least 2 business days in advance of each initial phase. When construction crews are ready to start work on a DFOW, conduct the initial phase with the Project Superintendent, and the foreman responsible for that DFOW. Observe the initial segment of the DFOW to ensure that the work complies with Contract requirements. Document the results of the initial phase in the daily CQC Report and in the Initial Phase Checklist. Repeat the initial phase for each new crew to work on-site when acceptable levels of specified quality are not being met. Indicate the exact location of initial phase for definable feature of work for future reference and comparison with follow-up phases. Perform the following for each DFOW:

a. Check work to ensure that it is in full compliance with Contract requirements. Review minutes of the preparatory meeting.

b. Verify adequacy of controls to ensure full Contract compliance. Verify required control inspection and testing comply with the Contract.

c. Establish level of workmanship and verify that it meets the minimum acceptable workmanship standards. Compare with required sample panels as appropriate.

d. Resolve any workmanship issues.

e. Ensure that testing is performed by the approved laboratory.

f. Check work procedures for compliance with the APP and the appropriate AHA to ensure that applicable safety requirements are met.

g. Review project specific work plans (i.e., HAZMAT Abatement, Stormwater Management) to ensure all preparatory work items have been completed and documented.

1.8.3 Follow-Up Phase

Perform the following for on-going DFOW daily, or more frequently as necessary, until the completion of each DFOW. The Final Follow-Up for any DFOW will clearly note in the daily report the DFOW is completed, and all deficiencies/rework items have been completed in accordance with the paragraph DEFICIENCY/REWORK ITEMS LIST. Each DFOW that has completed the Initial Phase and has not completed the Final Follow-up must be included on each daily report. If no work was performed on that DFOW for the period of that daily report, it must be so noted. Document all Follow-Up activities for DFOWs in the daily CQC Report:

a. Ensure the work including control testing complies with Contract requirements until completion of that particular work feature. Record checks in the CQC documentation.

b. Maintain the quality of workmanship required.

c. Ensure that testing is performed by the approved laboratory.

d. Ensure that deficiencies/rework items are being corrected. Conduct final follow-up checks and correct all deficiencies prior to the start of additional features of work which may be affected by the deficient work.

e. Do not build upon nor conceal non-conforming work.

f. Assure manufacturers' representatives have performed necessary inspections if required and perform safety inspections.

1.8.4 Additional Preparatory and Initial Phases

Conduct additional preparatory and initial phases on the same DFOW if the quality of on-going work is unacceptable, if there are changes in the applicable QC organization, if there are changes in the on-site production supervision or work crew, if work on a DFOW has not started within 45 days of the initial preparatory meeting or has resumed after 45 days of inactivity, or if other problems develop.

1.8.5 Notification of Three Phases of Control for Off-Site Work

Notify the Contracting Officer at least 2 weeks prior to the start of the preparatory and initial phases.

1.8.6 Deficiency/Rework Items List

The QC Manager must maintain a list of work that does not comply with the Contract, identifying what items need to be corrected, the activity ID number associated with the item, the date the item was originally discovered, the date the item will be corrected by, and the date the item was corrected.

The QC Manager reviews the list at each weekly QC Meeting:

a. There is no requirement to report a deficiency/rework item that is corrected the same day it is discovered.

b. No successor task may be advanced beyond the preparatory phase meeting until all deficiencies/rework items have been cleared by the QC Manager and concurred with by the Contracting Officer. This must be confirmed as part of the Preparatory Phase activities.

c. Attach a copy of the "Deficiency/Rework Items List" to the last daily CQC Report of each month.

d. The Contractor is responsible for including those items identified by the Contracting Officer.

e. All deficiencies/rework items must be confirmed as corrected by the QC Manager, and concurred by the Contracting Officer, prior to commencement of any completion inspections per paragraph COMPLETION INSPECTIONS unless specifically exempted by the Contracting Officer.

f. Non-Compliance with these requirements is grounds for removal in accordance with paragraph ACCEPTANCE OF THE QUALITY CONTROL (QC) PLAN.

g. All delays, concurrent or related to failure to manage, monitor, control, and correct deficiencies/rework items are entirely the responsibility of the Contractor and can not be made the subject, or any component of any request for additional time or compensation.

1.9 TESTING

Perform specified or required tests to verify that control measures are adequate to provide a product which conforms to Contract requirements. Upon request, furnish to the Government duplicate samples of test specimens for possible testing by the Government. Testing includes operation and acceptance tests when specified. Procure the services of an U.S. Army Corps of Engineers approved testing laboratory. Perform the following activities and record and provide the following data:

a. Verify that testing procedures comply with Contract requirements.

b. Verify that facilities and testing equipment are available and comply with testing standards.

c. Check test instrument calibration data against certified standards.

d. Verify that recording forms and test identification control number system, including all test documentation requirements, have been prepared.

e. Record results of all tests taken, both passing and failing on the CQC report for the date taken. Specification paragraph reference, location where tests were taken, and the sequential control number identifying the test. If approved by the Contracting Officer, actual test reports are submitted later with a reference to the test number and date taken. Provide an information copy of tests performed by an offsite or commercial test facility directly to the Contracting Officer. Failure to submit timely test reports as stated results in nonpayment for related work performed and disapproval of the test facility for this Contract.

1.9.1 Laboratory Accreditation Authorities

All testing laboratories must be validated by the USACE Material Testing Center (MTC) for the tests to be performed. Information on the USACE MTC with web-links to both a list of validated testing laboratories and for the laboratory inspection request for can be found at: https://mtc.erdc.dren.mil

1.9.2 Capability Check

The Contracting Officer retains the right to check laboratory equipment in the proposed laboratory and the laboratory technician's testing procedures, techniques, and other items pertinent to testing, for compliance with the standards set forth in this Contract. Laboratories utilized for testing soils, concrete, asphalt, and steel must meet criteria detailed in ASTM D3740-23 and ASTM E329-25.

1.9.2.1 Capability Recheck

If the selected laboratory fails the capability check, the Contractor will be assessed a charge of $3,000 to reimburse the Government for each succeeding recheck of the laboratory or the checking of a subsequently selected laboratory. Such costs will be deducted from the Contract amount due the Contractor.

1.9.3 Test Results

Cite applicable Contract requirements, tests or analytical procedures used. Provide actual results and include a statement that the item tested or analyzed conforms or fails to conform to specified requirements. If the item fails to conform, notify the Contracting Officer immediately. Conspicuously stamp the cover sheet for each report in large red letters "CONFORMS" or "DOES NOT CONFORM" to the specification requirements, whichever is applicable. Test results must be signed by a testing laboratory representative authorized to sign certified test reports. Furnish the signed reports, certifications, and other documentation to the Contracting Officer via the QC Manager.

1.10 COMPLETION INSPECTIONS

1.10.1 Punch-Out Inspection

Near the completion of all work or any increment thereof, established by a completion time stated in the Contract Clause entitled "Commencement, Prosecution, and Completion of Work," or stated elsewhere in the specifications, the QC Manager must conduct an inspection of the work and develop a "punch list" of items which do not conform to the approved drawings, specifications, and Contract. Include in the punch list any remaining items on the "Deficiency/Rework Items List", that were not corrected prior to the Punch-Out Inspection as approved by the Contracting Officer in accordance with the paragraph DEFICIENCY/REWORK ITEMS LIST. Include within the punch list the estimated date by which the deficiencies will be corrected. Provide a copy of the punch list to the Contracting Officer.

The QC Manager, or staff, must make follow-on inspections to ascertain that all deficiencies have been corrected. All punch list items must be confirmed as corrected by the QC Manager and concurred by the Contracting Officer. Once this is accomplished, notify the Government that the facility is ready for the Government "Pre-Final Inspection".

1.10.2 Pre-Final Inspection

The Government and QC Manager will perform this inspection to verify that the facility is complete and ready to be occupied. A Government "Pre-Final Punch List" will be documented by the QC Manager as a result of this inspection. The QC Manager will ensure that all items on this list are corrected and concurred by the Contracting Officer prior to notifying the Government that a "Final" inspection with the Client can be scheduled. All items noted on the "Pre-Final" inspection must be corrected and concurred by the Contracting Officer in a timely manner and be accomplished before the Contract completion date for the work, or any increment thereof, if the project is divided into increments by separate completion dates unless exceptions are directed by the Contracting Officer.

1.10.3 Final Acceptance Inspection

Notify the Contracting Officer at least 14 calendar days prior to the date a final acceptance inspection can be held. State within the notice that all items previously identified on the pre-final punch list will be corrected and acceptable, along with any other unfinished Contract work, by the date of the final acceptance inspection. The Contractor must be represented by the QC Manager, the Project Superintendent, and others deemed necessary. Attendees for the Government will include the Contracting Officer, other Government QA personnel, and personnel representing the Client. Failure of the Contractor to have all Contract work acceptably complete for this inspection will be cause for the Contracting Officer to bill the Contractor for the Government's additional inspection cost in accordance with the Contract Clause entitled "Inspection of Construction."

1.11 QUALITY CONTROL (QC) CERTIFICATIONS

1.11.1 Contractor Quality Control (CQC) Report Certification

Contain the following statement within the CQC Report: "On behalf of the Contractor, I certify that this report is complete and correct and equipment and material used, and work performed during this reporting period is in compliance with the Contract drawings and specifications to the best of my knowledge, except as noted in this report."

1.11.2 Completion Certification

Upon completion of work under this Contract, the QC Manager must furnish a certificate to the Contracting Officer attesting that "the work has been completed, inspected, tested and is in compliance with the Contract." Provide a copy of this final QC Certification for completion to the preparer of the Operation & Maintenance (O&M) documentation.

1.12 DOCUMENTATION AND INFORMATION FOR THE CONTRACTING OFFICER

Maintain current and complete records of on-site and off-site QC program operations and activities.

Contact the Contracting Officer for sample forms or print from RMS-QCS as needed. Prior to commencing work on construction, the Contractor must obtain a copy set of the current report forms. The report forms will consist of the Contractor Quality Control (CQC) Report, CQC Report (Continuation Sheet), Contractor Production Report, Contractor Production Report (Continuation Sheet), Preparatory Phase Checklist, Initial Phase Checklist, Testing Plan and Log, and Rework Items List. Unless otherwise provided by the Contracting Officer, Contractor may use the forms provided as related material located at https://www.wbdg.org/ffc/dod/unified-facilities-guide-specifications-ufgs/ufgs-01-45-00.

1.12.1 Construction Documentation

Reports are required for each day that work is performed and must be attached to the Contractor Quality Control Report prepared for the same day. Maintain current and complete records of on-site and off-site QC program operations and activities. Reports are required for each day work is performed. Account for each calendar day throughout the life of the Contract.

The Project Superintendent and the QC Manager must prepare and sign the Contractor Production and CQC Reports, respectively. Every space on the forms must be filled in. Use N/A if nothing can be reported in one of the spaces. The reporting of work must be identified by terminology consistent with the construction schedule. In the "Remarks" sections of the reports, enter pertinent information including directions received, problems encountered during construction, work progress and delays, conflicts or errors in the drawings or specifications, field changes, safety hazards encountered, instructions given and corrective actions taken, delays encountered, a record of visitors to the work site, quality control problem areas, deviations from the QC Plan, construction deficiencies encountered, and meetings held. For each entry in the report(s), identify the Schedule Activity No. that is associated with the entered remark.

1.12.2 Quality Control Activities

CQC and Contractor Production reports will be prepared daily to maintain current records providing factual evidence that required quality control activities and tests have been performed. Include in these records the work of subcontractors and suppliers on an acceptable form that includes, as a minimum, the following information:

a. The name and area of responsibility of the Contractors and any subcontractors.

b. Operating plant/equipment with hours worked, idle, or down for repair.

c. Work performed each day, giving location, description, and by whom. When a Network Analysis Schedule (NAS) is used, identify each item of work performed each day by NAS activity number.

d. Control phase activities performed. Preparatory, and Initial phase Checklists associated with the DFOW referenced to the construction schedule. Follow-up phase activities identified to the DFOW. If testing or specific QC Specialist activities are associated with the Follow-up phase activities for a specific DFOW note this and include those reports.

e. Test and control activities performed with results and references to specifications and drawings requirements. Identify the control phase (Preparatory, Initial, Follow-up). List of deficiencies noted, along with corrective action in accordance with the paragraph DEFICIENCY/REWORK ITEMS LIST.

f. Quantity of materials received at the site with statement as to acceptability, storage, and reference to specifications and drawings requirements.

g. Submittals and deliverables reviewed, with Contract reference, by whom, and action taken.

h. Offsite surveillance activities, including actions taken.

i. Job safety evaluations stating what was checked, results, and instructions or corrective actions.

j. Instructions given/received and conflicts in plans and specifications.

1.12.3 Verification Statement

Indicate a description of trades working on the project; the number of personnel working; weather conditions encountered; and any delays encountered. Cover both conforming and deficient features and include a statement that equipment and materials incorporated in the work and workmanship comply with the Contract.

Furnish the original and one copy of these records in report form to the Government by 10:00 AM the next working day after the date covered by the report. As a minimum, prepare and submit one report for every 7 days of no work and on the last day of a no work period. All calendar days need to be accounted for throughout the life of the Contract. The first report following a day of no work will be for that day only. Reports need to be signed and dated by the QC Manager. Include copies of test reports and copies of reports prepared by all subordinate quality control personnel within the QC Manager Report.

1.12.4 Quality Control Validation

Establish and maintain the following in an electronic folder. Divide folder into a series of tabbed sections as shown below. Ensure folder is updated at each required progress meeting.

a. CQC Meeting minutes in accordance with paragraph QUALITY CONTROL (QC) MEETINGS.

b. All completed Preparatory and Initial Phase Checklists, arranged by specification section, further sorted by DFOW referenced to the construction schedule. Submit each individual Phase Checklist the day the phase event occurs as part of the CQC daily report.

c. All milestone inspections, arranged by Activity Number referenced to the construction schedule.

d. An up-to-date copy of the Testing Plan and Log with supporting field test reports, arranged by specification section referenced to the DFOW to which individual reports results are associated. Individual field test reports will be submitted within 2 working days after the test is performed in accordance with the paragraph QUALITY CONTROL ACTIVITIES.

e. Copies of all Contract modifications, arranged in numerical order. Also include documentation that modified work was accomplished.

f. An up-to-date copy of the paragraph DEFICIENCY/REWORK ITEMS LIST.

1.12.5 Testing Plan and Log

As tests are performed, the QC Manager will record on the "Testing Plan and Log" the date the test was performed and the date the test results were forwarded to the Contracting Officer. Attach a copy of the updated "Testing Plan and Log" to the last daily CQC Report of each month. Provide a copy of the final "Testing Plan and Log" to the preparer of the Operation & Maintenance (O&M) documentation.

1.12.6 As-Built Drawings

The QC Manager must ensure the as-built drawings, required by Section 01 00 00.00 09 GENERAL CONTRACT REQUIREMENTS, paragraph 1.14 AS-BUILT DRAWINGS are kept current on a daily basis and marked to show deviations which have been made from the Contract drawings. The as-built drawings document commences with the QC Manager ensuring all amendments, or changes to the Contract prior to Contract award are accurately noted in the initial document set creating the accurate baseline of the Contract prior to any work starting. Ensure each deviation has been identified with the appropriate modifying documentation (e.g., PC No., Modification No., Request for Information No.). The QC Manager must initial each revision. Upon completion of work, the QC Manager will furnish a certificate attesting to the accuracy of the as-built drawings prior to submission to the Contracting Officer.

1.13 NOTIFICATION ON NON-COMPLIANCE

The Contracting Officer will notify the Contractor of any detected non-compliance with the Contract. Take immediate corrective action after receipt of such notice. Such notice, when delivered to the Contractor at the work site, is deemed sufficient for the purpose of notification. If the Contractor fails or refuses to comply promptly, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No part of the time lost due to such stop orders will be made the subject of a claim for extension of time for excess costs or damages by the Contractor.

1.14 DELIVERY, STORAGE, AND HANDLING

Designate receiving/storage areas for incoming material to be delivered according to installation schedule and to be placed convenient to work area in order to minimize waste due to excessive materials handling and misapplication. Store and handle materials in a manner as to prevent loss from weather and other damage. Keep materials, products, and accessories covered and off the ground, and store in a dry, secure area. Prevent contact with material that may cause corrosion, discoloration, or staining. Protect all materials and installations from damage by the activities of other trades.

PART 2 PRODUCTS

Not used.

PART 3 EXECUTION

Not used.

-- End of Section --

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RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE (RMS CM)

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SECTION 01 45 00.15 09

RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE (RMS CM)

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1	(2024) Safety and Health Requirements Manual

1.2 CONTRACT ADMINISTRATION

The Government will use the Resident Management System (RMS) to assist in its monitoring and administration of this contract. The Contractor uses the Government-furnished Construction Contractor Mode of RMS, referred to as RMS CM, to record, maintain, and submit various information throughout the contract period. The Contractor mode user manuals, updates, and training information can be downloaded from the RMS web site (http://rmsdocumentation.com). The joint Government-Contractor use of RMS facilitates electronic exchange of information and overall management of the contract. RMS CM provides the means for the Contractor to input, track, and electronically share information with the Government in the following areas:

Administration Finances Quality Control
Submittal Monitoring Scheduling
Closeout
Import/Export of Data

1.2.1 Correspondence and Electronic Communications

For ease and speed of communications, exchange correspondence and other documents in electronic format to the maximum extent feasible between the Government and Contractor. Correspondence, pay requests and other documents comprising the official contract record are also be provided in paper format, with signatures and dates where necessary. Paper documents will govern in the event of discrepancy with the electronic version.

1.2.2 Other Factors

Particular attention is directed to Contract Clause, "Schedules for Construction Contracts", Contract Clause, "Payments", Section 01 33 00 SUBMITTAL PROCEDURES, and Section 01 45 00.00 09 CONTRACTOR QUALITY CONTROL, which have a direct relationship to the reporting to be accomplished through RMS. Also, there is no separate payment for establishing and maintaining the RMS CM database, costs associated will be included in the contract pricing for the work.

1.3 RMS SOFTWARE

RMS is a Web-based program that can be run on a Windows based PC meeting the requirements as specified in Section 1.4. The Contractor shall download, install and be able to utilize the latest version of the RMS software from the Government's RMS Internet Website within 7 calendar days of receipt of Notice to Proceed from the Government. Any program updates of RMS CM will be made available to the Contractor via the Government RMS Website as the updates become available.

The Contractor must be prepared to transition from the Resident Management System (RMS) to the new Construction Management Platform (CMP) at any time during the period of performance of this contract, once the USACE enterprise implements this change. The Contractor's obligation to transition from RMS to the CMP system is a requirement of this contract. Therefore, additional time or cost increase to complete this transition will not be considered. In the event of the transition, RMS project information will be migrated to CMP by the government and available in the CMP system. After the transition, the Contractor must utilize the CMP system to perform all contract administration functions previously required in RMS, including all areas listed above. After the transition, "RMS" and "CMP" will be synonymous for all "Resident Management System" and "RMS" references in this contract's specification. To facilitate the transition from RMS to CMP, online training for the CMP system will be made available to the Contractor with enough time to train staff, prior to the transition occurring.

1.4 SYSTEM REQUIREMENTS

The following is the minimum system configuration required to run RMS and Contractor Mode:

MINIMUM RMS SYSTEM REQUIREMENTS	
HARDWARE	
Windows-based PC	1.5 GHz 2 core or higher processor
RAM	8 GB
Hard drive disk	200 GB space for sole use by the RMS CM system
Monitor	Screen resolution 1366 x 768
Mouse or other pointing device	
Windows compatible printer	Laser printer must have 4 MB+ of RAM
Connection to the Internet	minimum 4 Mbs per user
SOFTWARE	

MS Windows	Windows 7 x 64 bit (RMS requires 64 bit O/S) or newer
Word Processing software	Viewer for MS Word 2013, MS Excel 2013, or newer
Microsoft.NET Framework	Coordinate with Government QA Representative for free version required
Email	MAPI compatible
Virus protection software	Regularly upgraded with all issued manufacturer's updates and is able to detect most zero day viruses

1.5 RMS CM USER MANUAL

After contract award, download instructions for the installation and use of RMS CM from the Government RMS Internet Website.

1.6 CONTRACT DATABASE

After Notice to Proceed has been issued and prior to the pre-construction conference, the Government will provide the Contractor with basic contract award data to use for RMS. The Government will provide data updates to the Contractor as needed. These updates will generally consist of submittal reviews, correspondence status, Quality Assurance (QA) comments, and other administrative and QA data.

1.7 DATABASE MAINTENANCE

Establish, maintain, and update data in the RMS database throughout the duration of the contract. Submit data updates to the Government (e.g., daily reports, submittals, RFI's, schedule updates, payment requests) using RMS. The RMS database typically includes current data on the following items:

1.7.1 Administration

1.7.1.1 Contractor Information

The Contractor's name, address, telephone numbers, management staff, and other required items. Within 7 calendar days of receipt of Notice to Proceed from the Government, the Contractor shall enter all missing Contractor administrative data and information into RMS CM.

1.7.1.2 Subcontractor Information

The name, trade, address, phone numbers, and other required information for all subcontractors. Within 7 calendar days of receipt of Notice to Proceed from the Government, the Contractor shall enter all missing subcontractor administrative data and information into RMS CM. A subcontractor is listed separately for each trade to be performed. Assign each subcontractor/trade a unique Responsibility Code, available from within RMS. The Contractor shall enter all new subcontractor administrative data and information into RMS CM within 7 calendar days of the signing of the subcontractor agreement.

1.7.1.3 Correspondence

Identify all Contractor correspondence to the Government with a serial number. Prefix correspondence initiated by the Contractor's site office with "S". Prefix letters initiated by the Contractor's home (main) office with "H". Letters are numbered starting from 0001 (e.g., H-0001 or S-0001). The Government's letters to the Contractor will be prefixed with "C" or "RFP".

1.7.1.4 Equipment

The Contractor will enter into the RMS CM database a current list of equipment planned for use or being used on the jobsite, including the most recent and planned equipment inspection dates.

1.7.1.5 Management Reporting

RMS includes a number of reports that Contractor management will use to track the status of the project. The value of these reports is reflective of the quality of the data input, and is maintained in the various sections of RMS. Among these reports are: Progress Payment Request worksheet, Quality Assurance/Quality Control (QA/QC) comments, Submittal Register Status, Three-Phase Control checklists.

1.7.1.6 Request For Information (RFI)

Exchange all Requests For Information (RFI) using the Built-in RFI generator and tracker in RMS.

1.7.2 Finances

1.7.2.1 Pay Activity Data

Include within the RMS database a list of pay activities that the Contractor develops in conjunction with the construction schedule. The sum of pay activities equals the total contract amount, including modifications. Each pay activity must be assigned to a Contract Line Item Number (CLIN). The sum of the activities assigned to a CLIN equals the amount of each CLIN. The sum of all CLINs equals the contract amount.

1.7.2.2 Payment Requests

Prepare all progress payment requests using RMS CM. Complete the payment request worksheet, prompt payment certification, and payment invoice in RMS. Update the work completed under the contract, measured as percent or as specific quantities, at least monthly. After the update, generate a payment request report using RMS. Submit the payment request, prompt payment certification, and payment invoice with supporting data using RMS CM. If permitted by the Contracting Officer, email or an optical disc may be used to submit a payment. A signed paper copy of the approved payment request is also required and will govern in the event of discrepancy with the electronic version.

1.7.3 Quality Control (QC)

RMS CM provides a means to track implementation of the 3-phase QC Control System, prepare daily reports, identify and track deficiencies, document progress of work, and support other Contractor QC requirements. Maintain this data on a daily basis. Entered data will automatically output to the RMS generated daily report. Provide the Government a Contractor Quality Control (CQC) Plan within the time required in Section 01 45 00.00 09 CONTRACTOR QUALITY CONTROL. Within seven calendar days of Government acceptance, the Contractor shall update RMS reflecting the information contained in the accepted CQC Plan, including but not limited to: schedule; pay activities; features of work; submittal register; QC requirements; and equipment list.

1.7.3.1 Daily Contractor Quality Control (CQC) Reports

RMS CM includes the means to produce the Daily CQC Report. The Contractor can use other formats to record basic Quality Control (QC) data. However, the Daily CQC Report generated by RMS must be the Contractor's official report. Summarize data from any supplemental reports by the Contractor and consolidate onto the RMS-generated Daily CQC Report. Submit daily CQC Reports as required by Section 01 45 00.00 09 CONTRACTOR QUALITY CONTROL. Electronically submit reports to the Government within 24 hours after the date covered by the report. Also provide the Government a signed, printed copy of the daily CQC report.

1.7.3.2 Deficiency Tracking

The QC Daily Report Module is used to enter and track deficiencies. Deficiencies identified and entered into RMS by the Contractor or the Government will be sequentially numbered with a QC or QA prefix for tracking purposes. The Contractor shall enter each deficiency into RMS CM the same day that the deficiency is identified. The Contractor is responsible to monitor, track and resolve all QC and QA entered deficiencies. A deficiency is not considered to be corrected until the Government indicates concurrence in RMS.

1.7.3.3 QC Requirements

The Contractor shall develop and maintain a complete list of QC testing, transferred and installed property, and user training requirements in RMS. Update data on these QC requirements as work progresses, and promptly provide the information to the Government via RMS.

1.7.3.4 Three-Phase Control Meetings

Maintain scheduled and actual dates and times of preparatory and initial control meetings in RMS. Agendas for the three-phase control meetings can be generated within RMS.

1.7.3.5 Labor and Equipment Hours

Log labor and equipment exposure hours on a daily basis. The labor and equipment exposure data will be rolled up into a monthly exposure report.

1.7.3.6 Accident/Safety Reporting

The Government will issue safety comments, directions, or guidance whenever safety deficiencies are observed. The Government's safety comments will be provided via RMS CM. Regularly update the correction status of the safety comments. In addition, utilize RMS CM or other trackable means, such as email or serial letter as deemed appropriate to the situation, to advise the Government of any accidents occurring on the jobsite. A brief supplemental entry of an accident is not to be considered as a substitute for completion of mandatory reports, e.g., ENG Form 3394 and OSHA Form 300.

1.7.3.7 Features of Work

Include a complete list of the features of work in the RMS database. A feature of work is associated with multiple pay activities. However, each pay activity (see subparagraph "Pay Activity Data" of paragraph "Finances") will only be linked to a single feature of work.

1.7.3.8 Hazard Analysis

Use RMS CM to develop a hazard analysis for each feature of work included in the CQC Plan. The Activity Hazard Analysis will include information required by EM 385-1-1.

1.7.4 Submittal Management

The Government will provide the initial submittal register within RMS. Thereafter, the Contractor shall update RMS CM to maintain a complete and current list of submittals, including, but not limited to, dates when submittals are received and returned by the Government. Use RMS CM to track and transmit submittals. ENG Form 4025, the submittal transmittal form, and the submittal register update is produced using RMS. RMS will be used to update, store and exchange submittal registers and transmittals. In addition to requirements stated in specification Section 01 33 00 SUBMITTAL PROCEDURES, actual submittals are to be stored in RMS CM, with hard copies also provided. Exception will be where the Contracting Officer specifies only hard copies required, where size of document cannot be saved in RMS CM, and where samples, spare parts, color boards, and full size drawings are to be provided.

1.7.5 Schedule

Develop a construction schedule consisting of pay activities, in accordance with Section 01 00 00.00 09 GENERAL CONTRACT REQUIREMENTS. Input and maintain the schedule in the RMS database either manually or by using the Standard Data Exchange Format (SDEF). Include an updated schedule with each pay request.

1.7.6 Closeout

Closeout documents, processes and forms are managed and tracked in RMS by both the Contractor and the Government. The Contractor shall ensure that all warranty entry and tracking closeout documents are entered, completed and documented within RMS CM.

1.8 IMPLEMENTATION

Use of RMS CM as described in the preceding paragraphs is mandatory. Ensure that sufficient resources are available to maintain contract data within the RMS CM system. RMS CM is an integral part of the Contractor's management of quality control.

1.9 MONTHLY COORDINATION MEETING

Update the RMS CM database each workday. At least monthly, generate and submit a schedule update. At least one week prior to the submittal of a schedule update, meet with the Government representative to review the schedule changes as well as the planned progress payment data submission for errors and omissions.

1.10 NOTIFICATION OF NONCOMPLIANCE

The Contracting Officer will notify the Contractor of any detected noncompliance with the requirements of this specification. Take immediate corrective action after receipt of such notice. Such notice, when delivered to the Contractor at the work site, will be deemed sufficient for the purpose of notification.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION (Not Applicable)

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ENVIRONMENTAL PROTECTION

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SECTION 01 57 20.00 09

ENVIRONMENTAL PROTECTION

PART 1 GENERAL

1.1 DEFINITIONS

Environmental pollution and damage is defined as the presence of chemical, physical, or biological elements or agents that adversely affect human health or welfare; unfavorably alter ecological balances of importance to life; or degrade the environment for aesthetic, cultural or historical purposes. Environmental protection is the prevention and/or control of pollution that develops during normal construction practice. The control of environmental pollution and damage requires consideration of air, water, soil, and land resources; and includes management of visual aesthetics; noise; solid, chemical, and liquid waste; radiant energy and radioactive materials; and other pollutants.

1.2 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Environmental Protection Plan; G, GA

1.3 ENVIRONMENTAL PROTECTION REQUIREMENTS

A plan shall be developed to provide for environmental protective measures to prevent and/or control pollution that may develop during construction. The plan shall contain protective measures required to prevent or correct conditions that may develop during the construction. The liability for environmental noncompliance shall be borne by the Contractor.

1.3.1 Environmental Protection Plan

Within 15 days after receipt of Notice of Award of the contract and at least 7 days prior to the Preconstruction Conference, the Contractor shall submit in writing an Environmental Protection Plan. No physical work at the site shall begin until the Contracting Officer has approved the plan and provided specific authorization to start a phase of the work. Preparation and submittal of supplemental plan(s) may be necessary for later phases of work. A copy of the complete Environmental Protection Plan shall be maintained on-site at all times during the life of the contract. The environmental protection plan shall include but not be limited to the following:

1.3.1.1 Protection of Features

In accordance with the Contract Clause PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS, the Contractor shall develop methods for the protection of features to be preserved within authorized work areas. The Contracting Officer will prepare a list of resources needing protection and preservation (i.e., trees, shrubs, vines, grasses and ground cover, wetlands, landscape features, air quality, noise levels, surface and ground water quality, fish and wildlife, soil, historic, archaeological and cultural resources). The Contractor's plan shall identify methods to protect these and other resources present and specify measures to protect the environment should an accident, natural causes of pollution, or failure to follow the environmental protection plan occur during construction. The Contractor's plan shall specify how the quality and protective measures of these resources shall be monitored. Furthermore the Contractor's plan shall specify how and where waste shall be disposed.

1.3.1.2 Procedures

The Contractor shall implement procedures to provide the required environmental protection and to comply with the applicable laws and regulations. The Contractor shall set out the procedures to be followed to correct pollution of the environment due to accident, natural causes or failure to follow the procedures set out in accordance with the environmental protection plan.

1.3.1.3 Permit or License

Not withstanding the Contract Clause PERMITS AND RESPONSIBILITIES, the Government will obtain a National Pollution Discharge Elimination System (NPDES) Permit for storm water discharges from construction activities. The Contractor shall obtain all other needed permits or licenses. The Contractor shall be responsible for complying with all permits and licenses throughout the duration of this contract.

1.3.1.4 Drawings

The Contractor shall include drawings identifying the areas of limited use or nonuse and show locations of any proposed temporary excavations or embankments for haul roads, stream crossings, material storage areas, structures, sanitary facilities, stockpiles of earth materials, and disposal areas for excess earth material and unsuitable earth materials.

1.3.1.5 Recycling and Waste Prevention Plan

The Contractor shall submit as a part of the Environmental Protection Plan, a Recycling and Waste Prevention Plan.

1.3.1.6 Environmental Monitoring Plans

The Contractor shall include environmental monitoring plans for the job site which incorporate land, water, air and noise monitoring.

1.3.1.7 Traffic Control Plan

The Contractor shall include a traffic control plan for the job site. This plan shall focus on reducing erosion of temporary roadbeds by construction traffic, especially during wet weather, and reducing the amount of mud transported onto paved public roads by motor vehicles or runoff.

1.3.1.8 Surface and Ground Water

The Contractor shall establish methods of protecting surface and ground water during construction activities. These water courses, including but not limited to all rivers, streams, bayous, lakes, ponds, bogs, and wetlands, shall be protected from pollutants such as petroleum products, fuels, oils, lubricants, bentonite, bitumens, calcium chloride, acids, waste washings, sewage, chlorinated solutions, herbicides, insecticides, lime, wet concrete, cement, silt, or organic or other deleterious material. Chemical emulsifiers, dispersants, coagulants, or other cleanup compounds shall not be used without prior written approval from the Contracting Officer. Waters used to wash equipment shall be disposed to prevent entry into a waterway until treated to an acceptable quality. Fuels, oils, greases, bitumens, chemicals, and other nonbiodegradable materials shall be contained with total containment systems and removed from the site for disposal in an approved manner. Sanitary facilities shall be provided and adequately maintined during the entire course of the project until the Contracting Office Representative (COR) has accepted the project as completed.

1.3.1.9 Noise Intrusion

The Contractor shall exercise controls to minimize damage to the environment by noise from construction activities. All Contractor's, subcontractors', and suppliers' equipment used on or in the vicinity of the job site shall be equipped with noise suppression devices. Equipment not so suppressed and properly maintained must be approved for use in writing by the Contracting Officer. Areas that have noise levels greater than 85 dB continuous or 140 dB peak (unweighted) impulse must be designated as noise hazardous areas. These work areas must have caution signs displayed at the perimeter of the noise area indicating the presence of hazardous noise levels and requiring the use of hearing protection devices.

1.3.1.10 Work Area Plan

The Contractor shall include a work area plan showing the proposed activity in each portion of the area and identifying the areas of limited use or nonuse. The plan shall include measures for marking the limits of use areas.

1.3.1.11 Plan of Borrow Area(s)

All borrow areas will be furnished by the Government as shown on the drawings and as specified in Section 31 23 00.00 09 EXCAVATION. Contractor furnished borrow areas will not be permitted.

1.3.1.12 Contaminant Prevention Plan

The Contractor shall identify potentially hazardous substances to be used on the job site and intended actions to prevent accidental or intentional introduction of such materials into the air, water or ground. The Contractor shall detail provisions to be taken regarding the storage and handling of these materials. The plan shall include, but not be limited to, plans for preventing polluted runoff from plants, parked equipment, and maintenance areas from entering local surface and ground water sources.

1.3.1.13 Storm Water Pollution Prevention Plan

As required in Section 01 57 23.00 09 STORM WATER POLLUTION PREVENTION PLAN, the Contractor shall address the impact of construction upon erosion of the earth's surface and the introduction of pollutants into water courses. The Storm Water Pollution Prevention Plan shall include the Contractor's plan for controlling pollution, sediment and soil erosion and for disposing of wastes. The plan shall identify all temporary and permanent erosion and sediment control measures adopted such as soil stabilization, seeding, mulching, sprinkling, ditching, diking, draining, and constructing sedimentation basins, silt fences, straw wattles and diversion ditches.

1.4 ENVIRONMENTAL LITIGATION

a. If the performance of all or any part of the work is suspended, delayed, or interrupted due to an order of a court of competent jurisdiction as a result of environmental litigation, as defined below, the Contracting Officer, at the request of the Contractor, shall determine whether the order is due in any part to the acts or omissions of the Contractor, or a Subcontractor at any tier, not required by the terms of the contract. If it is determined that the order is not due in any part to acts or omissions of the Contractor, or a Subcontractor at any tier, other than as required by the terms of this contract, such suspension, delay, or interruption shall be considered as if ordered by the Contracting Officer in the administration of this contract under the terms of the SUSPENSION OF WORK clause of this contract. The period of such suspension, delay, or interruption shall be considered unreasonable, and an adjustment shall be made for any increase in the cost of performance of this contract (excluding profit) as provided in that clause, subject to all the provisions thereof.

b. The term "Environmental Litigation", as used herein, means a lawsuit alleging that the work will have an adverse effect on the environment or that the Government has not duly considered, either substantively or procedurally, the effect of the work on the environment.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION

3.1 PROTECTION OF ENVIRONMENTAL RESOURCES

The Contractor shall protect the environmental resources, such as, but not limited to, historic, archaeological and cultural resources; land, water (rivers, streams, bayous, lakes, ponds, bogs, and wetlands), and air resources; and fish and wildlife resources within the project boundaries and those affected outside the limits of permanent work under this contract.

3.1.1 Protection of Land Resources

In accordance with the Contract Clause PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS, the land resources within the project boundaries and those affected outside the limits of work under this contract shall be preserved in their present condition or be restored to an equivalent condition upon completion of the work. Prior to initiating any construction, the Contractor shall identify all land resources to be preserved within the work area, including those identified by the Contracting Officer. The Contractor shall not remove, cut, deface, injure, or destroy land resources including trees, shrubs, vines, grasses, topsoil, and landforms without permission from the Contracting Officer unless otherwise specified. No ropes, cables, or guys shall be fastened to or attached to any trees for anchorage unless specifically authorized. Where such special emergency use is permitted, the Contractor shall provide effective protection for land and vegetation resources at all times and shall be responsible for any subsequent damage as defined in the following subparagraphs.

3.1.1.1 Work Area Limits

Prior to any construction, the Contractor shall mark the areas within the designated work areas that are not required to accomplish work to be performed under this contract and which are to be protected. Isolated areas within the general work area which are to be saved and protected shall be marked or fenced. Monuments and markers shall be protected during construction. Where construction operations are to be conducted during darkness, the markers shall be visible. The Contractor shall convey to his personnel the purpose of marking and protecting all necessary objects.

3.1.1.2 Protection of Landscape

Trees, shrubs, vines, grasses, landforms and other landscape features, indicated and defined on the drawings to be preserved shall be clearly identified by marking, fencing, or wrapping with boards, or any other approved techniques.

3.1.1.3 USDA Quarantined Considerations

See Section 01 00 00.00 09 GENERAL CONTRACT REQUIREMENTS, paragraph WORK IN QUARANTINED AREA.

3.1.1.4 Location of Contractor On-Site Facilities

The Contractor's on-site field offices, staging areas, stockpile storage, and temporary buildings shall be placed in approved areas. Temporary movement or relocation of Contractor on-site facilities shall be only on approval by the Contracting Officer.

3.1.1.5 Borrow Areas

Borrow areas shall be managed by the Contractor to minimize erosion and to prevent sediment from entering rivers, streams, bayous, lakes, ponds, bogs, and wetlands, or affecting known or discovered cultural resource properties.

3.1.1.6 Disposal Areas on Government Property

Material disposal on government property shall be limited to those areas as specified in Section 31 11 00.00 09 CLEARING AND GRUBBING, paragraph BURYING, and Section 31 23 00.00 09 EXCAVATION, paragraph UNSUITABLE MATERIALS. The disposal areas shall be managed and controlled to prevent erosion of soil or sediment from entering rivers, streams, bayous, lakes, ponds, bogs, and wetlands. Special emphasis shall be placed on avoiding impacts to wetlands. Disposal areas shall be developed and managed in accordance with the grading plan indicated on the contract drawings or as approved.

3.1.1.7 Disposal of Solid Wastes

Solid wastes (not including clearing debris) shall be any waste excavated or generated by the Contractor. Solid waste shall be placed in accessible containers and disposed on a regular schedule to prevent the accumulation of waste on-site. All handling and disposal shall be conducted to prevent spillage and contamination. The Contractor shall transport all solid waste off government property and dispose properly. The Contractor shall participate in any State or local recycling programs to reduce the volume of solid waste materials at the source whenever practical. The location of on-site waste receptacles cannot be placed on project drawings due to the linear nature of the project. The location of solid waste receptacles is expected to move with the progress of the project.

3.1.1.8 Disposal of Hazardous Wastes

Hazardous waste shall be stored, removed from the work area, and disposed of in accordance with all applicable Federal, State, and local laws and regulations. Hazardous waste shall not be dumped onto the ground; into storm sewers; or open water courses, including but not limited to all rivers, streams, bayous, lakes, ponds, bogs, and wetlands; or into the sanitary sewer system. Fueling and lubrication of equipment and motor vehicles shall be conducted in a manner that affords the maximum protection against spills and evaporation.

3.1.1.9 Disposal of Discarded Materials

Discarded materials that cannot be included in the solid waste category shall be handled as approved.

3.1.1.10 Disposal of Used Oils

Used oils and/or lubricants shall be disposed of in accordance with all Federal, State, and local laws and regulations. The Contractor shall collect used oil and/or lubricants in leak-tight containers, ensure that all openings on the containers are tightly sealed (including the drum ring and bung closures), and label the containers to clearly indicate contents. Disposal through a used oil recycler is required. The Contractor shall ensure that the recycler has all appropriate State and Federal permits.

3.1.1.11 Refueling Facilities and Equipment Maintenance Areas

Fuel tanks should have secondary containment measures to ensure that fuel does not leave the construction site and enter into nearby water bodies or wetlands. The contractor shall provide a Spill Prevention, Control, and Countermeasure (SPCC) Plan for fuel tanks that will be stored on-site. Necessary controls to implement the SPCC Plan shall be on-site in an accessible location for use if a spill does occur. All refueling operations shall be performed in a manner as to prevent fuels from leaving the construction site and entering water bodies or wetlands. Equipment maintenance operations shall also be performed in a manner to prevent fuel, oils, and grease from leaving the site and entering water bodies or wetlands. The location of on-site fueling operations and maintenance activities are not on project drawings due to the linear nature of the project. The location of the refueling and maintenance activities is expected to move with the progress of the project.

3.1.1.12 Storage of Herbicides, Pesticides, and Fertilizers

Herbicides, Pesticides, and Fertilizers that are to be used in the construction of the project shall be either stored off-site or in a waterproof container to prevent the movement of these chemicals off-site from stormwater. Due to the linear nature of the project, the location of the storage facilities for herbicides, pesticides, and fertilizers is not shown on the project drawings.

3.1.2 Historical, Archaeological and Cultural Resources

The Contractor shall take precautions to preserve existing historical, archaeological and cultural resources. The Contractor shall install protection for these resources and shall be responsible for their preservation during this contract. If during construction activities the Contractor observes items that may have archaeological or historic value (e.g., when Native American human remains and associated objects are discovered), the Contractor shall stop work in the area, leave the items undisturbed, and immediately report the find to the Contracting Officer. Such items may include historic artifacts of glass, metal and ceramics, or prehistoric artifacts such as stone tools, ceramics, bone, and shell. The Contractor shall not judge the potential significance of any suspected cultural material, but shall report all findings to the Contracting Officer.

3.1.3 Protection of Water Resources

The Contractor shall keep construction activities under surveillance, management, and control to avoid pollution of surface and ground waters, including but not limited to all rivers, streams, bayous, lakes, ponds, bogs, and wetlands. All construction activities shall meet the requirements of the National Pollutant Discharge Elimination System (NPDES) General Permits for Storm Water Discharges from Construction Sites. Discharges of any pollutant into the water courses is strictly prohibited, unless accepted by the Contracting Officer.

3.1.3.1 Waste Water

Waste water directly derived from washing equipment, or any other construction activities shall not be discharged into any natural water areas, including but not limited to all rivers, streams, bayous, lakes, ponds, bogs, and wetlands.

3.1.3.2 Monitoring of Water Areas Affected by Construction Activities

The Contractor shall be responsible for monitoring all water areas affected by construction activities. In the event that water quality violations result from the Contractor's operation, the Contractor shall suspend the operation or operations causing the pollution, and such suspension shall not form the basis for a claim against the Federal government.

3.1.4 Protection of Aquatic and Wildlife Resources

The Contractor shall keep construction activities under surveillance, management, and control to prevent interference with, disturbance to, and damage to aquatic resources and/or wildlife, including but not limited to all rivers, streams, bayous, lakes, ponds, bogs, and wetlands. Special emphasis shall be placed on protecting wetlands. Species that require specific attention as defined by law or specified by the Contracting Officer, along with measures for their protection, shall be listed by the Contractor prior to beginning of construction operations.

3.1.5 Protection of Air Resources

The Contractor shall keep construction activities under surveillance, management and control to minimize pollution of air resources. Special management techniques as set out below shall be implemented to control air pollution by the construction activities.

3.1.5.1 Particulates

Dust particles, aerosols, and gaseous by-products from all construction activities, disturbed areas, and/or processing and preparation of materials, such as from asphaltic batch plants, shall be controlled at all times, including weekends, holidays, and hours when work is not in progress. The Contractor shall maintain all excavations, stockpiles, haul roads, permanent and temporary access roads, plant sites, disposal sites, borrow areas, and all other work areas within or outside the project boundaries free from particulates which would cause air pollution standards specified in paragraph PROTECTION OF AIR RESOURCES to be exceeded or which would cause a hazard or a nuisance. Sprinkling, chemical treatment of an approved type, light bituminous treatment, baghouse, scrubbers, electrostatic precipitators, or other methods will be permitted to control particulates in the work area. Sprinkling shall be repeated at such intervals as to keep the disturbed area damp at all times.

3.1.5.2 Hydrocarbons and Carbon Monoxide

Hydrocarbons and carbon monoxide emissions from equipment shall be controlled to Federal, State, and local allowable limits at all times.

3.1.5.3 Volatile Organic Compound (VOC)

The Contractor shall comply with Federal, State, and local laws and regulations pertaining to emission of VOC vapors at all times.

3.1.5.4 Odors

Odors shall be controlled at all times for all construction activities, including processing and preparation of materials.

3.1.5.5 Monitoring Air Quality

Monitoring of air quality at the construction site(s) shall be the responsibility of the Contractor.

3.2 NONCOMPLIANCE

If the Contracting Officer notifies the Contractor in writing of any observed noncompliance with contract requirements or Federal, State, or local laws, regulations, or permits, the Contractor shall take all necessary action to correct the noncompliance. Such notice, when delivered to the Contractor at the worksite, shall be deemed sufficient for the purpose of notification. If the Contractor fails to comply promptly, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action is taken. No time extensions will be granted or costs or damage allowed to the Contractor for any such suspension. (See also the Contract Clause PERMITS AND RESPONSIBILITIES.)

3.3 CONTAINMENT AND CLEANUP OF CONTAMINANT RELEASES

The Contractor shall provide the Contracting Officer for approval, a contaminant containment and cleanup plan including the procedures, instructions, and reports to be used in the event of an unforeseen substance release. This plan shall include as a minimum:

a. The name of the individual who will be responsible for implementing and supervising the containment and cleanup.

b. A list of materials and equipment to be immediately available at the job site, tailored to cleanup work of the potential hazard(s) identified.

c. The names and locations of suppliers of containment materials and locations of additional fuel oil recovery, cleanup, restoration, and material placement equipment available in case of an unforeseen spill emergency.

d. The methods and procedures to be used for expeditious contaminant cleanup.

e. The name of the individual who will report any spills or hazardous substance releases and who will follow up with complete documentation. This individual shall immediately notify the Contracting Officer in addition to the legally required reporting channels when a reportable quantity spill of oil or hazardous substance occurs.

3.4 POSTCONSTRUCTION CLEANUP

The Contractor shall clean up areas used for construction and remove all signs of temporary construction facilities; Contractor office, storage and staging areas; quarry and borrow areas, and all other areas used by the Contractor during construction. Furthermore, the disturbed areas shall be graded and filled as approved by Contracting Officer. Restoration of original contours is not required unless specified in another section. (See also the Contract Clause CLEANING UP.)

3.5 RESTORATION OF LANDSCAPE DAMAGE

All landscape features damaged or destroyed during construction operations that were not identified for removal shall be restored. Any vegetation or landscape feature damaged shall be restored as nearly as possible to its original condition. (See also the Contract Clause PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS.)

3.6 MAINTENANCE OF POLLUTION FACILITIES

The Contractor shall maintain all constructed facilities and portable pollution control devices for the duration of the contract or for the length of time construction activities create the particular pollutant.

3.7 TRAINING OF CONTRACTOR PERSONNEL IN POLLUTION CONTROL

Contractor personnel shall be trained in environmental protection and conduct environmental protection meetings monthly. The training and meeting agenda shall include methods of detecting and avoiding pollution, wetland identification, familiarization with pollution standards, both statutory and contractual, and installation and care of facilities (vegetative covers, and instruments required for monitoring purposes) to insure adequate and continuous environmental pollution control. Personnel are to be informed of provisions for hazardous and toxic materials container labeling and for managing Material Safety Data Sheets (MSDS). Anticipated hazardous or toxic chemicals shall also be reviewed. Other items to be discussed shall include recognition and protection of archaeological sites, artifacts, and wetlands. The Contractor shall include training topics discussed and attendance as a part of his daily CQC Report.

3.7.1 STAFF TRAINING REQUIREMENTS FROM MDEQ GENERAL PERMIT

Each operator, or group of multiple operators, must assemble a "stormwater team" to carry out compliance activities associated with the requirements in this permit prior to the commencement of construction activities. The permitee must ensure that the following personnel on the stormwater team understand the requirements of this permit and their specific responsibilities with respect to those requirements:

1. Personnel who are responsible for the design, installation, maintenance, and/or repair of stormwater controls (including pollution prevention controls).

2. Personnel responsible for the application and storage of treatment chemicals (if applicable).

3. Personnel who are responsible for conducting inspections as required in ACT6, S-5; and

4. Personnel who are responsible for taking corrective actions as required in ACT6, S-2.

The permitee is responsible for ensuring that all activities on the site comply with the requirements of this permit. The permitee is not required to provide or document formal training for subcontractors or other outside service providers, but the permitee must ensure that such personnel understand any requirements of this permit that may be affected by the work they are subcontracted to perform.

At a minimum, members of the stormwater team must be trained to understand the following if related to the scope of their job duties (e.g., only personnel responsible for conducting inspections need to understand how to conduct inspections):

The permit deadlines associated with installation, maintenance, and removal of stormwater controls and with stabilization;

The location of stormwater controls on the site required by this permit and how they are to be maitained;

The proper procedures to follow with respect to the permit's pollution prevention requirements;

And when and how to conduct inspections, record applicable findings, and take corrective actions.

Each member of the stormwater team must have easy access to an electronic or paper copy of applicable portions of this permit, the most updated copy of the SWPPP, and other relevant documents or information that must be kept with the SWPPP.

-- End of Section --

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STORM WATER POLLUTION PREVENTION PLAN

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SECTION 01 57 23.00 09

STORM WATER POLLUTION PREVENTION PLAN

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by basic designation only.

ASTM INTERNATIONAL (ASTM)

ASTM D4354-12	(2020) Standard Practice for Sampling of Geosynthetics and Rolled Erosion Control Products (RECPs) for Testing
ASTM D4439-25	(2025) Standard Terminology for Geosynthetics
ASTM D4491/D4491M-22	(2022) Standard Test Methods for Water Permeability of Geotextiles by Permittivity
ASTM D4533/D4533M-15	(2023) Standard Test Method for Trapezoid Tearing Strength of Geotextiles
ASTM D4632/D4632M-15a	(2023) Standard Test Method for Grab Breaking Load and Elongation of Geotextiles
ASTM D4751-21a	(2021) Standard Test Method for Determining Apparent Opening Size of a Geotextile
ASTM D4759-11	(2024) Standard Practice for Determining the Specification Conformance of Geosynthetics
ASTM D4873/D4873M-17	(2021) Standard Guide for Identification, Storage, and Handling of Geosynthetic Rolls and Samples

1.2 SYSTEM DESCRIPTION

All construction activities conducted by the Contractor shall be performed in full compliance with the latest version of the State of Mississippi Large Construction Storm Water General Permit for storm water discharges from construction activities. Pursuant to the State of Mississippi Large Construction Storm Water General Permit for storm water discharges from construction activities, the requirements contained herein shall constitute the Storm Water Pollution Prevention Plan, hereafter called the SWPP Plan for this contract. The Contractor shall implement and diligently pursue all measures required herein. The purpose of the SWPP Plan is to control storm water volume and velocity within the site to minimize the soil erosion resulting from construction activities under this contract to prevent sediment from accumulating in existing drainage ditches,leaving the contract rights-of-way,or enteringthe Mississippi River,and to minimize the downstream channel and stream bank erosion. Requirements under this section of the specifications are supplemental to and shall become part of the overall Environmental Protection Plan required by Section 01 57 20.00 09 ENVIRONMENTAL PROTECTION.

1.2.1 Process for Viewing Current Mississippi Large Construction Storm Water General Permit

The latest permit and applicable forms are available on the Internet at http://www.deq.state.ms.us/MDEQ.nsf/page/epd_epdgeneral?OpenDocument. Prior to making an offer, offerors should view the referenced website for the latest permit requirements and applicable forms. No separate payment will be made for complying with the requirements of this Section, or for complying with requirements of the current Mississippi Large Construction Storm Water General Permit, or for obtaining and complying with any other permits required for this contract.

1.2.2 Permit Notifications

The Contractor shall notify the permitting agency by certifying and submitting a Prime Contractor Certification Form and Notice of Termination as required by the Large Construction Storm Water General Permit for storm water discharges for this project as stated below. The Contractor shall maintain copies of all correspondence with the permitting agency with the SWPP Plan for the duration of this contract.

1.2.3 Prime Contractor Certification Form

A Large Construction Notice of Intent (LCNOI) and the SWPPP required by the State of Mississippi will be filed by the Government with the permitting agency prior to the award of this contract. The Contractor shall complete the Prime Contractor Certification form indicating that he takes responsibility for permit compliance and meeting permit conditions prior to the commencement of construction activities. The Contractor shall certify and submit the Prime Contractor Certification form to the permitting agency at least 48 hours prior to beginning work. The Contractor shall furnish two (2) copies of the submitted documentation to the Contracting Officer.

1.2.4 Notice of Termination (NOT) of Coverage

Upon successful completion of all permanent erosion and sediment controls for this project, and at the direction of the Contracting Officer, the Contractor shall submit a Notice of Termination (NOT) of Coverage to the Mississippi Department of Environmental Quality stating that all permanent erosion and sediment controls have been completed. The Contractor shall also provide three copies of the submitted documentation to the Contracting Officer and one copy to U.S. Army Corps of Engineers, Vicksburg District, 4155 Clay Street, Vicksburg, Mississippi 39183-3435, Attn: Water Quality Section.

1.2.5 Inspection Suspension Form

The Contractor may request the suspension of weekly inspection and monthly reporting requirements on portions of the project area if the Contractor certifies that: (1) land disturbing activities have temporarily ceased; (2) no further land disturbing activities are planned for a period of at least 6 months; (3) the site is stable with no active erosion; and (4) vegetative cover has been established.

The Contractor shall submit to the permitting agency a completed Inspection Suspension Form along with color photographs representative of the site as stipulated in the Large Construction Storm Water General Permit. The Contractor shall notify MDEQ once construction activities are resumed and the weekly inspections shall commence immediately and as required by the permit. The Contractor shall still be responsible for all permit conditions during any suspension period.

1.3 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-07 Certificates

Filter Fabric

The Contractor shall submit a certificate of compliance attesting that the filter fabric meets the specified requirements.

1.4 SITE DESCRIPTION

1.4.1 Nature of Construction Activity

The work consists of furnishing all plant, labor, materials, equipment, appurtenances, incidentals and other items and effort required to construct Item 465-L Slide Repair, Levee Enlargement and Berms, at Magna Vista - Brunswick, Mississippi. Principal features of the work include, but are not limited to, mobilization and demobilization; clearing and grubbing; excavation; levee and berm embankment, semicompacted; levee embankment, compacted; ramps; demolition, removal of existing pavement and granular base course; levee surfacing; existing turf maintenance and new turf establishment; erosion control; erosion control matting; stormwater pollution prevention; and environmental protection.

1.4.2 Major Activities Which Disturb Soils

The major activities which will disturb the soil at the site include clearing and grubbing, excavation, embankment construction, and grading.

1.4.3 Estimated Areas Affected

The total area of the construction site is approximately 132.3 acres. The area of soil that will be disturbed is approximately 26.2 acres.

1.4.4 Runoff Coefficient

The estimated runoff coefficient at the site will be 0.40 after construction activities are completed.

1.4.3 Contract Drawings and Specifications

The following features are shown on or can be determined from the contract drawings and specifications:

a. The approximate slopes after the major construction activities.

b. Areas of soil disturbance.

c. The location where stabilization practices are required.

d. Surface waters.

e. Locations where storm water is discharged into a surface water.

f. Typical best management practices which are anticipated to be used in the control of sediment and erosion control.

1.4.4 Waters Affected

The surface waters which may be affected by this contract are Albemarle Lake, Chotard Lake and the Mississippi River. A review of the State of Mississippi latest 303(d) List of Impaired Water Bodies identifies the Yazoo Basin as having approved TMDL's for pesticides. Albemarle and Chotard Lakes, which are located in the Yazooo River Basin, and the Mississippi River are not identified as being impaired. This project along with the proposed BMP's will not contribute to the impairment of the nearby waterbodies.

1.4.5 Non-Storm Water Discharges

1.4.5.1 Allowable Non-Storm Water Discharges

a. Discharges from actual fire-fighting activities.

b. Fire hydrant flushing.

c. Water used to control dust.

d. Potable water sources including uncontaminated water line flushing.

e. Routine external building wash down that does not use detergents.

f. Pavement wash waters where spills or leaks of toxic or hazardous materials have not occurred (unless all spilled material has been removed) and where detergents are not used.

g. Uncontaminated air conditioning or compressor condensation.

h. Uncontaminated ground water or spring water.

i. Foundation or footing drains where flows are not contaminated with process materials such as solvents.

j. Landscape irrigation.

k. Water used to wash vehicles, wheel wash water and other wash waters where detergents are not used.

1.4.5.2 Prohibited Non-Storm Water Discharges

a. Wastewater from washout of concrete (unless managed by appropriate control).

b. Wastewater from washout and cleanout of stucco, paint, form release oils, curing compounds and other construction materials

c. Fuels, oils, or other pollutants used in vehicle and equipment operation and maintenance.

d. Soaps or solvents used in vehicle and equipment washing.

e. Wastewater from sanitary facilities, including portable toilets.

f. Dewatering activities, including discharges from dewatering of trenches and excavations unless managed by BMP's.

1.5 CONTROLS

The controls and measures required by the Contractor are described below.

1.5.1 Erosion and Sediment Controls

The contractor is responsible for the management of storm water.

The Contractor shall maintain a log of the dates when major grading activities occur, (e.g. clearing and grubbing, excavation, embankment construction, and grading); when construction activities temporarily or permanently cease on a portion of the site; and when stabilization practices are initiated.

1.5.1.1 Stabilization Practices

a. General - The stabilization practices required to be implemented shall include permanent seeding or sprigging,mulching,erosion control matting,protection of trees, preservation of mature vegetation, etc. However, the Contractor may, at his option and at no additional cost to the Government, provide a fall and winter temporary erosion control measure by seeding with rye grass or other approved winter grasses. The Contractor shall maintain a log of the dates when the major grading activities occur, (e.g. clearing and grubbing, excavation, embankment construction, and grading); when construction activities permanently cease on a portion of the site; and when stabilization practices are initiated, and shall attach this log to the SWPP Plan. Vegetative stabilization measures must be initiated immediately whenever any land disturbing activities have temporarily or permanently ceased on any portion of the site and will not resume for a period of fourteen (14) calendar days or more.

b. Interim Stabilization Practices - The interim stabilization practices required are described below.

(1) Only trees that are within the indicated limits to construct the permanent work shall be removed.

(2) Existing vegetative cover shall be preserved to the extent possible to reduce erosion.

c. Permanent Stabilization Practices - The permanent stabilization practices to be implemented are described below.

(1) Permanent seeding (erosion control) shall be performed within 7 days after the final grading is completed in accordance with Section 31 25 00.00 09 EROSION CONTROL.Permanent seeding or sprigging (establishment of turf) shall be performed in accordance with Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT.

(2) Mulch shall be placed on areas of permanent turfing treatment as specified.

(3) Erosion control matting shall be provided on areas as indicated on the drawings and in accordance with Section 32 92 04.00 09 EROSION CONTROL MATTING.

1.5.1.1 Structural Practices

a. General - Structural practices shall be implemented to divert flows from exposed soils, temporarily store flows, or otherwise control runoff in order to prevent sediments from accumulating in existing drainage ditches, leaving the contract rights-of-way, or entering the Yazoo River. The Contractor shall implement the required structural practices and the necessary structural practices as may be required to control runoff for his construction methods and procedures. The installation of these measures may be subject to Section 404 of the Clean Water Act. The Contractor shall be responsible for obtaining the Section 404 permit if required for any structural practice he proposes to implement. Structural practices shall be implemented at the start of the construction process or at the start of each phase of construction to minimize erosion and sediment runoff. Structural practices shall be removed after they have served their intended purpose and after their removal has been approved by the Contracting Officer.

b. Devices - Structural practices may include but shall not be limited to the following devices (typical details are shown on the drawings):

(1) Silt fences

(i) General

Filter fabric shall meet the requirements of PART 2 PRODUCTS, paragraph FILTER FABRIC.

Filter fabric shall contain ultraviolet ray inhibitors and stabilizers to provide a minimum of six months of expected usable construction life at a temperature range of 0 degrees F to 120 degrees F.

If wooden stakes are utilized for silt fence construction, they shall have a minimum diameter of 2 inches when oak is used and 4 inches when pine is used. Wooden stakes shall have a minimum length of 5 feet.

If steel posts (standard "U" or "T" section) are utilized for silt fence construction, they shall have a minimum weight of 1.33 pounds per linear foot and a minimum length of 5 feet.

Wire fence reinforcement for silt fences using standard strength filter fabric shall be a minimum of 14 gauge and shall have a maximum mesh spacing of 6 inches.

(ii) Installation

The height of a silt fence shall be a minimum of 16 inches above the ground surface and shall not exceed 34 inches above the ground surface.

The filter fabric shall be purchased in a continuous roll cut to the length of the barrier to avoid the use of joints. When joints are unavoidable, filter fabric shall be spliced together only at a support post with a minimum 6 inch lap and securely sealed.

A trench shall be excavated approximately 4 inches wide and 4 inches deep on the upslope side of the proposed location of the measure.

When wire support is used, standard-strength filter fabric may be used. Posts for this type of installation shall be placed a maximum of 10 feet apart. The wire mesh fence shall be fastened securely to the upslope side of the posts using heavy duty wire staples at least 1 inch long, tie wires or hog rings. The wire shall extend into the trench a minimum of 2 inches and shall not extend more than 34 inches above the ground surface. The standard strength fabric shall be stapled or wired to the wire fence, and 8 inches of the fabric shall be extended into the trench. The fabric shall not be stapled to existing trees.

When wire support is not used, extra-strength filter fabric shall be used. Posts for this type of fabric shall be placed a maximum of 6 feet apart. The filter fabric shall be fastened securely to the upslope side of the posts using 1 inch long (minimum) heavy-duty wire staples or tie wires and 8 inches of the fabric shall be extended into the trench. The fabric shall not be stapled to existing trees.

The 4 inch by 4 inch trench shall be backfilled and the soil compacted over the filter fabric.

Silt fences shall be removed upon approval by the Contracting Officer.

(2) Straw Wattles.

(i) Installation

Wattles shall be installed in a two inch deep trench that is constructed along the contour, perpendicular to the slope or direction of the flow. Ends of the wattles shall be turned up to the slope, to catch water runoff, reduce water velocity, and control sediment transport under low to medium flow conditions.

Wattles shall be secured to the subgrade by crossing wooden stakes spaced every three linear feet across the length of the wattle. Anchoring wood stakes shall be sized, spaced, driven, and be of a material that effectively secures the wattle (do not anchor through wattle netting). Stakes shall be placed within one foot of the end of the wattle. The placement interval between wattle ditch checks shall be one hundred feet unless shown otherwise on the plans or erosion control plan approved by the Contracting Officer. When joining two wattles, tightly abut both ends or overlap the wattles approximately six inches (wattles shall be overlapped six inches in channelized flow applications). If wattles are joined together by abutting the ends, tie the ends together using heavy twine or plastic locking ties.

When installing in a channel bottom, installation shall continue three feet above the anticipated high water mark.

Wattles shall remain in place until fully established vegetation and root systems are present and can survive on their own. Wattles that are not removed will degrade in place.

(3) Temporary Diversion Dikes

Temporary diversion dikes shall have a maximum channel slope of 2 percent and shall be adequately compacted to prevent failure. The minimum height measured from the top of the dike to the bottom of the channel shall be 18 inches. The minimum base width shall be 6 feet and the minimum top width shall be 2 feet. Temporary diversion dikes shall be located to minimize damages caused by construction operations and traffic.

(4) Sedimentation Basins

General: For drainage areas that serve an area of 10 acres or greater, a temporary sedimentation basin will be provided until final stabilization is achieved. The sediment basin should provide at least 3,600 cubic feet of storage per acre drained.

The contractor shall submit his plans for the location, construction, operation, and maintenance of the temporary sedimentation basin along with the necessary calculations for the outfall structure for review at the time of the pre-construction meeting.

Installation: The sedimentation basin will be installed prior to major site grading. The outlet structure for the sediment basin shall withdraw water from the surface and will be designed for the 2-year, 24 hour storm event.

Due to the linear nature of the project, sediment basins will not be used due to the narrow ROW and the lack of a common drainage area serving 10 or more acres.

(5) Rock Check Dam

General: A small temporary dam constructed across a swale or ditch to slow the velocity of water to reduce erosion and off-site transport

Installation: Check dams should be constructed of stones. Silt fence material is acceptable for use as check dams. The check dam should be no higher than 2 feet with the center of the check dam a minimum of 6 inches lower than the outer edges of the check dam.

The complete width of the swale or the drainage ditch should be covered with the check dam such that run-off will not flow around the edges of the check dam. Subsequent check dams should be placed so that the center of the next check dam is the same elevation as the bottom of the previous dam immediately upstream.

(6) Floating Turbidity Barrier

Floating turbidity barriers will not be used with the project because no construction work is to occur within a waterbody.

c. Device Applicability

(1) Straw wattles, silt fences, earth dikes, and drainage swales for diversion of runoff upstream from work areas.

(2) Straw wattles, silt fences and earth dikes for retention of flow in drains.

(3) Stone outlet protection at culverts.

(4) Sediment containment by providing straw wattles or silt fences along the toe of fill and cut slopes.

(5) Earth dikes for temporary sediment basins in major drainage channels downstream from work areas.

Structural practices shall be properly placed to effectively retain sediment immediately after completing each phase of work (e.g. clearing and grubbing, excavation, embankment construction, and grading) in each independent runoff area (e.g. after clearing and grubbing in an area between a ridge and drain). Structural practices shall be placed, and as work progresses, removed/replaced/relocated as needed for work to progress in each runoff area. Structural practices, to the extent necessary to prevent sediment from accumulating in existing drainage ditches, leaving the contract rights-of-way, or entering the Yazoo River, shall be implemented as follows:

(1) Along the downhill perimeter edge of disturbed areas.

(2) Along the top of the slope or top bank of drainage ditches, channels, swales, etc. that traverse disturbed areas.

(3) Along the toe of cut slopes and fill slopes of the construction areas.

(4) Perpendicular to the flow in the bottom of existing drainage ditches, channels, swales, etc. that traverse disturbed areas or carry runoff from disturbed areas. Rows of straw wattles or silt fences shall be spaced a maximum of 100 feet apart in such existing drains that are within the limits of the work.

(5) Perpendicular to the flow in the bottom of new drainage ditches, channels, and swales. Rows of straw wattles or silt fences shall be spaced a maximum of 200 feet apart in drains with slopes equal to or less than 5 percent and 100 feet apart in drains with slopes steeper than 5 percent.

(6) At the entrance to culverts that receive runoff from disturbed areas.

1.5.2 Storm Water Management

1.5.2.1 Management Practices

The storm water management practices that shall be permanently installed under this contract are as follows:

a. Establishment of new turf.
b. Erosion control.
d. Erosion Control Matting.
e. Sequential systems, which combine several practices.

1.5.2.2 Methods

a. Establishment of new turf shall be in accordance with Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT.

b. Erosion control matting shall be in accordance with Section 32 92 04.00 09 EROSION CONTROL MATTING.

c. All areas lacking adequatee vegetation not specifically designed to receive NEW TURF shall receive seeding, fertilizing, and mulch in accordance with Section 31 25 00.00 09 TEMPORARY EROSION CONTROL.

d. Flow attenuation by use of open vegetated swales and natural depressions.

1.5.3 Other Controls

1.5.3.1 Waste Disposal

No solid materials, including building materials, shall be discharged to waters of the United States, except as authorized by a Section 404 permit. Other requirements are included in Section 01 57 20.00 09 ENVIRONMENTAL PROTECTION.

1.5.3.2 Off-site Vehicle Tracking

Off-site vehicle tracking of sediments shall be minimized.

1.5.3.3 Compliance with Regulations

The Contractor shall ensure and demonstrate compliance with applicable State or local waste disposal, sanitary sewer or septic system regulations.

PART 2 PRODUCTS

2.1 FILTER FABRIC FOR SILT SCREEN FENCE

The geotextile, as defined by ASTM D4439-25, shall consist of polymeric filaments which are formed into a stable network such that filaments retain their relative positions. The filament shall consist of a long-chain synthetic polymer composed of at least 85 percent by weight of ester, propylene, or amide, and shall contain stabilizers and/or inhibitors added to the base plastic to make the filaments resistance to deterioration due to ultraviolet and heat exposure. The geotextile shall conform to the physical property requirements in paragraph ACCEPTANCE REQUIREMENTS, subparagraph TESTING.

2.2 ACCEPTANCE REQUIREMENTS

2.2.1 General

All brands of geotextile to be used will be accepted on the following basis.

2.2.2 Mill Certificates or Affidavits

The mill certificate or affidavit shall attest that the filter fabric and factory seams meet chemical, physical, and manufacturing requirements specified. The mill certificate of affidavit shall specify the actual Minimum Average Roll Values and shall identify the fabric supplied by roll identification numbers.

2.2.3 Testing

If requested by the Contracting Officer, Government personnel shall collect filter fabric samples in accordance with ASTM D4354-12 for testing to determine compliance with any or all of the requirements specified pursuant to ASTM D4759-11 and the following table:

EXTRA STRENGTH FILTER FABRIC FOR SILT SCREEN FENCE

PHYSICAL PROPERTY	TEST PROCEDURE	REQUIREMENTS
Grab Tensile Strength	ASTM D4632/D4632M-15a	100 lbs. min.
Elongation (%)	ASTM D4632/D4632M-15a	30 % max.
Trapezoid Tear	ASTM D4533/D4533M-15	55 lbs. min.
Permittivity	ASTM D4491/D4491M-22	0.2 sec-1 min.
AOS (U.S. Std Sieve)	ASTM D4751-21a	20-100

NOTE: Standard strength filter fabric for silt screen fence shall meet the same minimum requirements for AOS and Permittivity as the extra strength filter fabric, but may have lower strengths for the remaining properties listed in the table.

2.3 IDENTIFICATION, STORAGE AND HANDLING

Filter fabric shall be identified, stored and handled in accordance with ASTM D4873/D4873M-17.

PART 3 EXECUTION

3.1 MAINTENANCE

The Contractor shall maintain the temporary and permanent vegetation, erosion and sediment control measures, and other protective measures in good and effective operating condition by performing routine inspections to determine condition and effectiveness, by restoration of destroyed vegetative cover, and by repair of erosion and sediment control measures and other protective measures. The following procedures shall be followed to maintain the protective measures identified in the SWPP Plan.

a. Silt Fences

Silt fences shall be inspected in accordance with paragraph INSPECTIONS. Any required repairs shall be made promptly. Close attention shall be paid to the repair of damaged silt fence resulting from end runs and undercutting. Should the fabric on a silt fence decompose or become ineffective, and the barrier is still necessary, the fabric shall be replaced promptly. Sediment deposits shall be removed when deposits reach one-third of the height of the barrier or a maximum height of 9 inches. When a silt fence is no longer required, it shall be removed. The immediate area occupied by the fence and any sediment deposits shall be shaped to an acceptable grade. The areas disturbed by this shaping shall be seeded in accordance with Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT, paragraph SEEDING, except that the coverage requirements in paragraph ESTABLISHMENT do not apply to these areas.

b. Straw Wattles

Straw wattle barriers shall be inspected in accordance with paragraph INSPECTIONS. Close attention shall be paid to the repair of damaged wattles, end runs and undercutting beneath wattles. Necessary repairs to barriers or replacement of wattles shall be accomplished promptly. Sediment deposits shall be removed when deposits reach one-half of the height of the barrier. When a straw wattle barrier is no longer required, it shall be removed. The immediate area occupied by the wattles and any sediment deposits shall be shaped to an acceptable grade. The areas disturbed by this shaping shall be seeded in accordance with Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT, paragraph SEEDING, except that the coverage requirements in paragraph ESTABLISHMENT do not apply to these areas.

c. Temporary Diversion Dikes

Temporary diversion dikes shall be inspected in accordance with paragraph INSPECTIONS. Close attention shall be paid to the repair of damaged temporary diversion dikes and necessary repairs shall be accomplished promptly. When temporary diversion dikes are no longer required, they shall be shaped to an acceptable grade. be seeded in accordance with Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT, paragraph SEEDING, except that the coverage requirements in paragraph ESTABLISHMENT do not apply to these areas.

d. Defficiency Corrections

Any poorly functioning erosion control or sedimentation control measures, non-compliant discharges, or any other difficiencies observed during the inspections required under this permit shal be corrected as soon as possible, but not to exceed 24 hours after the inspection unless prevented by unsafe weather conditions as documented on the inspection form.

3.2 INSPECTIONS

3.2.1 General

Disturbed areas of the construction site, areas used for storage of materials that are exposed to precipitation that have not been finally stabilized, stabilization practices, structural practices, other controls, and areas where vehicles exit the site shall be inspected by the Contractor at least weekly for a minimum of four inspections per each month; and as often as necessary to ensure that appropriate erosion and sediment controls have been properly constructed and maintained, and to determine if additional or alternative control measures are required. The Contractor shall perform a "walk through" inspection of the construction site before anticipated storm events. Where sites have been finally stabilized, such inspection shall be conducted at least once every month.

3.2.2 Field Inspections

Disturbed areas and areas used for material storage that are exposed to precipitation shall be inspected for evidence of, or the potential for, pollutants entering the drainage system. Erosion and sediment control measures identified in the SWPP Plan shall be observed to ensure that they are operating correctly. Discharge locations or points shall be inspected to ascertain whether storm water pollution prevention measures are effective in preventing significant impacts to receiving waters. Locations where vehicles exit the site shall be inspected for evidence of offsite sediment tracking.

3.2.3 Inspection Reports

For each inspection conducted, the Contractor shall complete a Inspection and Certification Form for Erosion and Sediment Controls. The report shall be signed by the Contractor. The report shall be furnished to the Contracting Officer within 24 hours of the inspection as a part of the Contractor's daily CQC REPORT. A complete log of the inspections shall be maintained on the job site and become a part of the SWPP Plan.

3.2.4 Revisions to the SWPP Plan

Based on the results of the inspection and immediately after the inspection, the Contractor shall provide to the Contracting Officer any recommended changes to the SWPP Plan. The Contracting Officer will approve or disapprove the proposed changes within seven (7) calendar days after receipt. Changes to the SWPP Plan shall be implemented within seven (7) calendar days following approval.

-- End of Section --

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DIVISION 02 - EXISTING CONDITIONS

SECTION 02 50 00.00 09

REMOVAL OF EXISTING PAVEMENT

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SECTION 02 50 00.00 09

REMOVAL OF EXISTING PAVEMENT

PART 1 GENERAL

1.1 GENERAL REQUIREMENTS

The work requires the removal and disposal of existing asphalt pavement, granular base, and shoulder material. Debris shall be removed to an offsite disposal area unless otherwise directed.

1.2 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-07 Certificates

Work Plan

Submit proposed procedures for the safe conduct of the work.

1.3 WORK PLAN

The procedures proposed shall provide for safe conduct of the work, including procedures and methods to provide careful removal and disposition of materials specified and protection of property which is to remain undisturbed. The procedures shall include a detailed description of the methods and equipment to be used for each operation, and the sequence of operations in accordance with Section 01 00 00.00 09, GENERAL CONTRACT REQUIREMENTS paragraph PROCESS FOR OBTAINING CURRENT REQUIREMENTS OF THE U.S. ARMY CORPS OF ENGINEERS SAFETY AND HEALTH REQUIREMENTS MANUAL (EM 385-1-1).

1.4 DUST CONTROL

The amount of dust resulting from removal operations shall be controlled to prevent spread of dust to other portions of the construction site and to avoid creation of a nuisance in the surrounding area. Use of water will not be permitted when it will result in, or create, hazardous or objectionable conditions such as ice, flooding and pollution.

1.5 PROTECTION

1.5.1 Protection of Existing Property

Before beginning any removal work, the Contractor shall survey the site and examine the drawings and specifications to determine the extent of the work. The Contractor shall take necessary precautions to avoid damage to existing guardrail, piezometers, and any items to remain in place. Any damaged items shall be repaired or replaced as approved by the Contracting Officer.

1.5.2 Environmental Protection

The work shall comply with the requirements of Section 01 57 20.00 09 ENVIRONMENTAL PROTECTION.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION

3.1 EXISTING ASPHALT PAVEMENT

Existing asphalt pavement shall be removed to the limits indicated.

3.2 EXISTING GRANULAR BASE

Existing granular base shall be removed to the depth and section indicated.

3.3 EXISTING SHOULDER MATERIAL

Existing shoulder material shall be reshaped and/or removed to provide drainage away from roadbed.

3.4 DISPOSITION OF MATERIAL

The debris resulting from removal operations shall be removed to an offsite disposal area.

3.5 CLEAN UP

Debris resulting from removal operations shall be removed and transported in a manner that prevents spillage on streets or adjacent areas. Federal, State, and local regulations regarding hauling and disposal shall apply.

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CLEARING AND GRUBBING

-- End of Section Table of Contents --

SECTION 31 11 00.00 09

CLEARING AND GRUBBING

PART 1 GENERAL (Not Applicable)

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION

3.1 GENERAL REQUIREMENTS

All clearing and grubbing work, including vegetation removal, for all required excavations and embankment construction shall be completed at least 500 feet in advance of the required work. If regrowth of vegetation or trees occurs after clearing and grubbing and before beginning excavation or placement of fill, the Contractor will be required to clear and grub the area again prior to beginning the work, and no payment will be made for this additional clearing and grubbing.

3.2 CLEARING

3.2.1 General

Clearing shall be limited to those areas within the rights-of-way as specified herein. Existing trees and vegetation not required to be cleared shall be preserved to the maximum extent practicable and shall not be damaged. Clearing, unless otherwise specified, shall consist of the complete removal above the ground surface of all trees, saplings, stumps, down timber, snags, brush, vegetation, old piling, loose stone, abandoned structures, abandoned fencing, fencing, drift, trash, and similar debris.

3.2.2 Trees

Trees shall be felled in such a manner so as to avoid damage to trees to be left standing, to existing structures and installations, and to those under construction, and with due regard for the safety of employees and others.

3.2.3 Vegetation Removal

Vegetation to be removed shall consist of crops, grass, bushes and weeds. Close-growing grass and other vegetation shall be removed from levees to be degraded and from areas to receive semicompacted and compacted fill to provide a completely bare earth surface immediately prior to beginning excavation and foundation preparation. Removal of vegetation from the side of the existing levees shall be limited to 1,000 feet in advance of embankment placement. Acceptance of the vegetation removal operation shall precede the initiation of foundation preparation in the area from which vegetation has been removed. If the required 15 wide strips contiguous to new and existing levee and berm toes are covered by grass, vegetation removal as defined herein is not required. It is intended that the grass on these strips shall be preserved to the extent practicable, except as necessary for required clearing and grubbing of trees, saplings, stumps, etc.

3.2.4 Areas to be Cleared

3.2.4.1 General

The entire area to be occupied by the required levee embankment, berm embankment,and ramps, together with strips 5 feet wide contiguous to each of these areas, shall be cleared. An additional 10 feet wide strip adjacent to and beyond the 5 feet wide strips contiguous to the new levee embankment, berm embankment and ramps shall also be cleared, except that grass shall not be removed from this 10 feet wide strip to the extent practicable. Clearing shall also be performed within strips 15 feet wide contiguous to the all existing riverside and landside levee and berm toes where no new embankment is required, except that grass shall not be removed from this 15 feet wide strip to the extent practicable.

3.2.4.2 Borrow Areas

Only those portions of borrow areas from which borrow material will actually be obtained under this contract shall be cleared, and this clearing shall be to the extent necessary to provide materials free from unsuitable matter as described in Section 31 24 00.00 09 EMBANKMENT, paragraph UNSUITABLE MATERIALS. Certain stumps and areas containing masses of organic matter or other unsuitable material may be left in place upon approval of the Contracting Officer.

3.2.4.3 Other Areas

Clearing of the area between the 15 feet strip contiguous to the levee embankment and berm embankment and the borrow area, and traverses left between borrow areas, shall be limited to the minimum required for construction operations.

3.3 GRUBBING

3.3.1 General

Grubbing shall consist of the removal of all stumps, roots, buried logs, old paving, old foundations, pipes, drains, and other unsuitable matter as described in Section 31 24 00.00 09 EMBANKMENT, paragraph UNSUITABLE MATERIALS.

3.3.2 Areas to be Grubbed

3.3.2.1 General

Grubbing shall be performed within the limits of the required levee embankment, berms, and ramps, together with strips 15 feet wide contiguous to each of these areas. Grubbing shall also be performed within strips 15 feet wide contiguous to the all existing riverside and landside levee and berm toes where no new embankment is required. All roots and other projections over 1-1/2 inches in diameter shall be removed to a depth of 3 feet below the natural surface of the ground or surface of existing embankments. The areas to be grubbed are those specific areas, within the limits specified herein, from which trees, stumps, down timber, snags, and other projections have been removed.

3.3.2.2 Ditches

All stumps and exposed roots and other obstructions shall be removed from within the limits of all ditches to be constructed.

3.3.2.3 Berms

Areas which are to be occupied by berms shall shall be grubbed in accordance with paragraph AREAS TO BE GRUBBED, subparagraph GENERAL.

3.3.3 Borrow Areas

Only those portions of borrow areas from which borrow material will actually be obtained under this contract shall be grubbed, and this grubbing shall be to the extent necessary to provide materials free from unsuitable matter as described in Section 31 24 00.00 09 EMBANKMENT, paragraph UNSUITABLE MATERIALS.

3.3.4 Pipes and Drains

The Contractor shall inform the Contracting Officer of all pipes and drains not shown on the drawings which are encountered during grubbing. Such pipe and drains shall not be removed or disturbed until so directed by the Contracting Officer. Material excavated in the process of removing pipes and drains shall be disposed of as specified in Section 31 23 00.00 09 EXCAVATION, paragraph DISPOSITION OF MATERIALS.

3.3.5 Filling of Holes

All holes caused by clearing and grubbing operations and removal of pipes and drains, excluding holes in borrow areas, shall be backfilled with suitable material in 12 inch layers to the elevation of the adjacent ground surface, and each layer shall be compacted to a density at least equal to that of the adjoining undisturbed material.

3.4 DISPOSAL OF DEBRIS

3.4.1 General

The primary method of disposing of all debris resulting from clearing and grubbing operations shall be burning as specified in paragraph BURNING. The following additional methods will also be permitted: burying in the borrow area in accordance with paragraph BURYING, or removal from the site in accordance with paragraph REMOVAL FROM SITE OF WORK.

3.4.2 Burning

In accordance with the Contract Clause PERMITS AND RESPONSIBILITIES, the Contractor shall obtain any permit which may be required for burning. Subject to applicable Federal, State and local laws and burning restrictions, the Contractor may burn material within the contract area at any time within the contract period. The Contractor shall thoroughly burn clearing and grubbing debris and continue burning until as much debris as practicable is completely reduced to ashes. Burning operations shall be conducted so as to prevent damage to standing timber or other flammable growth. The Contractor shall be responsible for any damage to life and property resulting from fires that are started by his employees or as a result of his operations. The Contractor shall furnish adequate fire fighting equipment at the site of burning operations to properly equip his personnel for fighting fires. Fires shall be guarded at all times and shall be under constant surveillance until they have been extinguished.

3.4.3 Burying

Upon approval, the Contractor will be allowed to bury debris that is unburnable and debris that has been thoroughly burned but cannot be further reduced to ashes. The Contracting Officer will determine which debris is unburnable and which debris cannot be further reduced to ashes. The area available for burial will be adjacent to the riverside limit of excavation within the riverside borrow areas. All material disposed of by burying shall be covered with a minimum of 24 inches of earth. No material shall be buried within 20 feet of any standing timber.

3.4.4 Removal from Site of Work

The Contractor may elect to remove all or part of the debris from the site of the work. Such disposal shall comply with all applicable Federal, State and local laws. The Contractor is precluded from retaining for his own use or disposal by sale or otherwise, any such materials of value. If debris from clearing operations is placed on adjacent property, the Contractor shall obtain, without cost to the Government, additional rights-of-way for such purposes in accordance with Section 01 00 00.00 09 GENERAL CONTRACT REQUIREMENTS, paragraph RIGHTS-OF-WAY. Such material shall be so placed as not to interfere with roads, drainage or other improvements and in such a manner as to eliminate the possibility of its entering into channels, ditches, or streams. The Contracting Officer reserves the right to approve or disapprove the use of Contractor-furnished disposal areas based on the location of the areas and a determination of the overall impact the proposed disposal areas will have on the environment or the integrity of the levee. Contractor-furnished disposal areas shall not be located in woodlands or wetlands. Disapproval by the Contracting Officer of Contractor-furnished disposal areas shall not form the basis of a claim against the Government.

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EXCAVATION

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SECTION 31 23 00.00 09

EXCAVATION

PART 1 GENERAL

1.1 SUBMITTALS

Government approval is required for submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Excavation Plan; G

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION

3.1 HAUL ROADS

Haul roads between borrow areas and fill areas shall meet the minimum requirements specified herein. At no additional cost to the Government, the Contractor shall increase the minimum specified requirements as necessary, due to job site conditions, to assure safe operations. Whenever practical, one-way haul roads shall be used. Haul roads used for this work shall comply with the following:

(a) One-way haul roads for off-the-road haulage equipment; (e.g., belly dumps, scrapers, and off-the-road trucks) shall have a minimum usable width of 25 feet. One-way haul roads for over-the-road haulage equipment (e.g., dump trucks, etc.) shall have a minimum usable width of 15 feet.

When it is impractical to obtain the specified minimum widths for one-way haul roads (e.g., a road on top of a levee), a usable width of not less than 10 feet may be approved, provided a positive means of traffic control is implemented. Such positive means shall include signs, signals, or signalmen and an effective means of speed control.

(b) Two-way haul roads for off-the-road haulage equipment shall have a minimum usable width of 60 feet. Two-way haul roads for over-the-road haulage equipment shall have a minimum usable width of 30 feet.

(c) Haul roads shall be maintained to keep the surface free from potholes, ruts and similar conditions that could result in unsafe conditions. Haul roads shall be maintained free of all construction related debris, including loose riprap.

(d) Curves and changes in grade shall allow a minimum sight distance of 200 feet for one-way haul roads and 300 feet for two-way haul roads. Sight distance is defined as the centerline distance an equipment operator (4.5 feet above the road surface) can see an object 4.5 feet above the road surface. When conditions make it impractical to obtain the required minimum sight distances (e.g., ramps over levees), a positive means of traffic control shall be implemented.

(e) Dust abatement shall permit observation of objects on the roadway at a minimum distance of 300 feet.

(f) Haul roads shall have the edges of the usable portion marked with posts at intervals not greater than 50 feet on curves and not greater than 200 feet elsewhere. Such markers shall extend 6 feet above the road surface, and for nighttime haulage shall be provided with reflectors in both directions.

(g) Haul roads shall not block or impede drainage in or through the right-of-way. The Contractor is responsible for any damages resulting from haul roads blocking or impeding drainage. (See the Contract Clause PERMITS AND RESPONSIBILITIES.)

3.2 EXCAVATION IN BORROW AREAS

3.2.1 General

The rights-of-way and earth materials for constructing the work will be furnished without cost to the Contractor, at locations specified herein and shown on the drawings. Notwithstanding any other provision of this contract, the Contractor is required to obtain all borrow material from the Government furnished borrow areas, ditches and other required excavations. Contractor furnished borrow areas will not be permitted.

3.2.1.1 Equipment

The Contractor shall provide the types of equipment as necessary to perform the required excavation according to the in situ conditions of the borrow area.

3.2.2 Borrow Areas

3.2.2.1 Requirements

Borrow areas shall conform to requirements prescribed herein and as shown on the drawings. The material necessary for the construction of the embankments shall be procured from borrow areas and required excavations by haulage or otherwise. The permissible excavation depths in the borrow areas are indicated on the drawings, but the right is reserved, in accordance with the Contract Clause CHANGES, to modify the permissible depths in accordance with subsurface conditions determined as the work proceeds. Excavation to the permissible depths may require excavation below the ground water table. The bottom of the borrow areas excavated under this contract shall be dressed to the extent necessary to provide a reasonably smooth surface that can readily be traversed by a 50 to 60-horsepower farm tractor pulling a rotary-type pasture mower and sloped to provide surface drainage to the low side of the borrow area as soon as all usable materials have been removed or the Contractor has completed the use of the borrow area. Abrupt changes in grade shall be avoided. Unsuitable material wasted in the borrow areas shall be sloped to drain. Any excavation below the depths and slopes specified herein or shown on the drawings shall be backfilled by the Contractor, at no cost to the Government, to the specified permissible excavation line, with suitable material placed and compacted in accordance with Section 31 24 00.00 09 EMBANKMENT, paragraph SEMICOMPACTED EMBANKMENT. The borrow areas excavated under this contract shall be drained of water regardless of its source, including subsurface water, and kept free of water during excavation, as excavation will not be permitted in water nor shall excavated material be scraped, dragged or otherwise moved through water. Drainage of borrow areas shall be accomplished by sump pumping or other approved methods. The borrow areas excavated under this contract and inundated from high river stages shall be drained and allowed to dry to a workable condition as quickly as practicable after the high river stage has passed. No additional payment will be made for keeping the borrow areas drained and free of water during excavation. Rights-of-way for drainage will be furnished by the Government at the locations shown on the drawings. Except as required by variable right-of-way widths, abrupt changes in borrow area alignment shall be avoided. To conserve arable land and make optimum use of available borrow, the excavation of the borrow areas, shall be made continuous throughout the length of the borrow areas to the permissible borrow depths, and at the width necessary to provide the required quantity of suitable material, and in such manner that all suitable available material within the required width will be utilized. The Contractor shall submit an Excavation Plan for approval by the Contracting Officer and shall not begin excavation until the Contracting Officer's approval has been received. The plan shall contain, as a minimum, the following:

a. The Contractor's proposals for implementing Section 01 57 20.00 09 ENVIRONMENTAL PROTECTION insofar as that section applies to borrow areas.

b. The Contractor's proposed methods for draining and keeping the borrow areas free of water during excavation under this contract.

c. The Contractor's proposed methods for draining borrow areas excavated under this contract which may be inundated by high river stages.

d. A statement indicating whether the Contractor proposes to use:

(1) Government-furnished rights-of-way for drainage;

(2) Contractor-furnished rights-of-way for drainage; or

(3) A combination of Government-furnished and Contractor-furnished rights-of-way for drainage.

e. For Contractor-furnished rights-of-way for drainage, the plan shall contain all of the information required by paragraph REQUIREMENTS and the Contractor's proposals for implementing Section 01 57 20.00 09 ENVIRONMENTAL PROTECTION, insofar as that section applies to rights-of-way for drainage.

f. The Contractor's proposals for conserving arable land and for making optimum use of available borrow, including the Contractor's proposed methods for smoothing the bottom of the borrow areas after having completed use of the borrow areas.

3.2.2.2 Riverside Borrow Area Locations

Riverside borrow areas shall be located as shown on the drawings.

3.3 DISPOSITION OF MATERIALS

3.3.1 Suitable Materials

Excavated materials which are suitable for incorporation in the levee embankment, and berm embankment, or other required fill or backfill, shall either be placed directly therein, or stockpiled and subsequently used in the levee embankment and berm embankment or other required fill or backfill.

3.3.2 Unsuitable Materials

Materials from required excavation which, as defined in Section 31 24 00.00 09 EMBANKMENT, paragraph UNSUITABLE MATERIALS, are unsuitable for levee embankment, and berm embankment or other required fill or backfill material will be ordered wasted and shall be disposed of in abandoned portions of borrow areas. This unsuitable material shall be shaped so that its surface is free from abrupt changes in grade and shall be sloped to drain. Where possible, unsuitable materials in borrow areas shall not be removed.

3.3.3 Temporary Stockpiles

A stockpile is defined as any material that is not in it's original borrow location, or it's final placement location. Temporary stockpile areas within the footprint of the existing levee or berm shall be as shown on the drawings. All other temporary stockpile areas shall be approved by the Contracting Officer before being used.

3.4 EXCAVATION IN OTHER AREAS

3.4.1 General

Excavation from other areas shall consist of removal of material in preparing the levee embankment and berm embankment foundations to the lines and grades shown on the drawings, removal of materials from ditches , and removal of unsuitable materials as defined in Section 31 24 00.00 09 EMBANKMENT, paragraph UNSUITABLE MATERIALS. Whenever unsuitable foundation material is encountered, the unsuitable material shall be removed to the depth directed by the Contracting Officer. Care shall be exercised by the Contractor in excavating to the lines and grades shown and in removing unsuitable materials so as not to excavate below the grades specified or depth directed. Excavation below the lines and grades specified or the depth directed shall be backfilled by the Contractor at no cost to the Government. Such backfill shall be brought to grade with suitable material with each layer placed and compacted as specified in Section 31 24 00.00 09 EMBANKMENT, paragraph SEMICOMPACTED EMBANKMENT . Excavated materials shall be disposed of as specified in paragraph DISPOSITION OF MATERIALS.

3.4.2 Acceptance

Prior to the acceptance of the work, the Contractor shall excavate sediments from channels and ditches as necessary to restore them to grade and section. Disposal of such material shall be as directed by the Contracting Officer. No separate payment will be made for this work.

3.5 DEGRADING EXISTING LEVEES

3.5.1 Levees to be Degraded

Between the stations listed below, the existing levee shall be degraded to elevations shown on the drawings. Suitable material excavated from the existing levee shall be used in levee embankment, and berm embankment, or other required fill or backfill. Unsuitable material and excess suitable material excavated from the existing levee shall be disposed of as specified in paragraph UNSUITABLE MATERIALS. The degradation of the levee crown and the embankment excavation will be limited to 600 feet maximum reaches. The embankment within the reach must be constructed to the existing levee elevation before any excavation of the successive reach. Contractor, at all times, shall have on-hand/available, on landside seepage berm, enough processed material to close levee excavation - restored to original levee crown elevation (El. 123.0 NAVD) minimum.

STATION TO STATION
8183+00 to 8194+65

3.5.2 Embankments Not to be Disturbed

Existing levees, parts of levees, sublevees, spurs, or other embankments shall not be disturbed unless it is specifically stated in paragraph LEVEES TO BE DEGRADED or shown on the drawings that they may be degraded.

3.5.3 Unauthorized Excavation of Existing Levee or Berm

Excavation of any portion of the existing levee or berm without written authorization by the Contracting Officer is expressly prohibited. Should such unauthorized excavation occur, the Contractor will be required to cease construction operations and to restore the levee or berm to its original grade and section before further construction operations will be permitted. The restoration shall be made with suitable levee embankment material, placed and compacted as provided in Section 31 24 00.00 09 EMBANKMENT, paragraph SEMICOMPACTED EMBANKMENT, and by and at the expense of the Contractor.

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EMBANKMENT

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SECTION 31 24 00.00 09

EMBANKMENT

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by basic designation only.

ASTM INTERNATIONAL (ASTM)

ASTM D1556/D1556M-24	(2024) Standard Test Method for Density and Unit Weight of Soil in Place by Sand-Cone Method
ASTM D2216	(2019) Standard Test Methods for Laboratory Determination of Water (Moisture) Content of Soil and Rock by Mass
ASTM D2487	(2017; E 2020) Standard Practice for Classification of Soils for Engineering Purposes (Unified Soil Classification System)
ASTM D4318	(2017; E 2018) Standard Test Methods for Liquid Limit, Plastic Limit, and Plasticity Index of Soils
ASTM D4643	(2017) Standard Test Method for Determination of Water Content of Soil and Rock by Microwave Oven Heating
ASTM D6938-23	(2023) Standard Test Method for In-Place Density and Water Content of Soil and Soil-Aggregate by Nuclear Methods (Shallow Depth)
ASTM D698-12	(2021) Standard Test Methods for Laboratory Compaction Characteristics of Soil Using Standard Effort (12,400 ft-lbf/cu. ft. (600 kN-m/cu. m.))
ASTM E329-25	(2025) Standard Specification for Agencies Engaged in Construction Inspection, Testing, or Special Inspection

1.2 SUBMITTALS

Government approval is required for submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-06 Test Reports

QC Test Report; G

1.3 DEFINITIONS

1.3.1 Embankment

The term "embankment" as used in these specifications is defined as the earth fill portions of the levee structure or other fills related to the levee structure and includes all types of earth fill for the levee and all other fills within the limits of the levee as shown on the project drawings. .

1.3.1.1 Compacted Embankment

The term "compacted embankment" as used in these specifications is defined as any type of embankment material that is subject to moisture control and compaction requirements.

1.3.2 Lift

A lift shall consist of placing a layer of suitable embankment material, whereas, after compaction the complete layer is not greater than the required specified thickness during embankment construction.

PART 2 PRODUCTS

2.1 EMBANKMENT MATERIALS

2.1.1 General

The levee embankment, berm embankment, ramps, and other required fill or backfill shall be constructed of earth obtained from the borrow areas, the existing levee, and other required excavations as prescribed in Section 31 23 00.00 09 EXCAVATION and to the extent shown on the drawings. Contractor furnished borrow areas will not be permitted. The levee embankment, berm embankment, ramps, and other required fill or backfill shall be constructed of earth that is free from unsuitable and frozen materials as defined in paragraphs UNSUITABLE MATERIALS and FROZEN MATERIALS. Material classified in accordance with ASTM D2487 as gravels (GW, GP, GM) and sands (SW, SP, SM) shall not be used for any required embankment construction.

2.1.2 Unsuitable Materials

Materials which are classified as unsuitable for levee embankment, berm embankment, ramps, or fill or backfill material are defined as masses of organic matter, sticks, branches, roots, and other debris. Blending of suitable soils will not be permitted to improve unsuitable soils as defined in this paragraph. As earth from the designated borrow area may contain excessive amounts of wood, isolated pieces of wood will not be considered objectionable in the embankment provided their length does not exceed 1 foot, their cross-sectional area is less than 4 square inches, and they are distributed throughout the fill. However, not more than one half of 1 percent (by volume) of wood smaller than objectionable size may be contained in each in-place cubic yard of the levee or berm section. Pockets and/or zones of wood shall not be placed in the embankment. If, in the opinion of the Contracting Officer, wood smaller than the objectionable size is excessive, wood volume testing may be performed by the Government to determine specification compliance. All visible objectionable size wood shall be removed from the fill prior to compaction. If, in the opinion of the Contracting Officer's Representative, amounts of wood in the fill brought to the site are excessive, inspections of the lifts prior to compaction shall be held by the Contractor and documented in the QC reports.

2.1.3 Frozen Materials

Under no circumstances shall frozen earth, snow, or ice be placed in any required embankment. The Contracting Officer may require the wasting of frozen material in order that construction may proceed and such material wasted, if directed by written order of the Contracting Officer, will be paid for as specified in Section 31 23 00.00 09 EXCAVATION, paragraph WASTE MATERIALS.

PART 3 EXECUTION

3.1 EMBANKMENT FOUNDATION PREPARATION

3.1.1 General

After clearing and grubbing and any required excavation of the levee embankment and berm embankment foundation, test areas and other similar cavities and depressions shall be broken down to flatten out the slopes. The entire earth surface on or against which compacted fill is to be placed, except areas as specified in paragraph DRAINAGE, shall be thoroughly broken to a depth of 6 inches. If for any cause, this broken surface becomes compacted in such a manner that, in the opinion of the Contracting Officer, a plane of seepage or weakness might be induced, it shall again be adequately scarified before depositing material thereon. For levee enlargement work, both the natural surface of the ground and the surface of the existing levee to be occupied by the new work shall be prepared as specified above. All scarifying and breaking of ground surface shall be done parallel to the centerline of the levee. All of the foregoing work shall be completed at least 200 feet but not greater than 2,500 feet in advance of the levee embankment and berm embankment construction.

3.1.2 Drainage

The foundation receiving fill and all partially completed fill shall be kept thoroughly drained.

Drainage to areas outside the right-of-way limits will not be allowed.

3.1.3 Frozen Ground

No fill shall be placed upon frozen ground.

3.2 EMBANKMENT CONSTRUCTION

3.2.1 Fully Compacted Embankment

The location of the fully compacted embankment shall be as shown on the drawings. Fully compacted embankment shall not be placed in water. The materials for fully compacted fill shall be placed or spread in lifts not more than 5 inches in thickness after compaction. Lifts shall be started full out to the edge of semicompacted fill and shall be carried horizontal and parallel to the levee centerline with sufficient crown or slope to provide satisfactory drainage during construction. Each compacted lift shall be adequately scarified before the next lift is placed thereon such that it bonds properly with the succeeding lift.

3.2.2 Semicompacted Embankment

The location and extent of the semicompacted embankment shall be as shown on the drawings. Semicompacted embankment fill shall not be placed in water. The materials for semicompacted embankment shall be placed or spread in lifts, the first lift not more than 4 inches in thickness after compaction and the succeeding lifts not more than 8 inches in thickness after compaction. Lifts shall be started full out from the levee toe and shall be carried in lifts horizontal and parallel to the levee centerline with sufficient crown or slope to provide satisfactory drainage during construction. Benching into the slope of the existing levee embankment is required in order to place and compact the material in horizontal lifts. The vertical face of the existing embankment resulting from the benching operation shall be a minimum of 1 foot in height but shall not exceed 2 feet in height. Each compacted lift shall be adequately scarified before the next lift is placed thereon such that it bonds properly with the succeeding lift. If for any cause, this broken surface becomes compacted in such a manor that, in the opinion of the Contracting Officer, a plane of seepage or weakness might be induced, it shall again be adequately scarified before depositing material thereon. The elevation of the levee embankment shall not exceed the elevation of the adjacent stability berm embankments by more than 2 feet until the stability berm has reached its full design section as shown in the construction drawings.

3.3 EMBANKMENT WORK ADVANCEMENT

The Contractor shall prosecute the embankment work such that no more than 1100 linear feet of levee shall be under embankment construction at any time between the limits of the approved levee cross section that has been fertilized, seeded and mulched and the farthest extent of levee clearing ahead of the embankment work. If the Contractor elects to perform embankment work in multiple locations within the total contract length, the sum of the lengths of the multiple embankment construction locations allowed shall not exceed the above given total length of 1100 linear feet. The limits of embankment work for each of the multiple locations as they fall within the total contract length, shall be between the limits of the approved levee cross section that has been fertilized, seeded and mulched and the farthest extent of levee clearing ahead of the embankment work as pertinent to that particular location.

3.4 QUALITY CONTROL

3.4.1 General

The Contractor shall establish and maintain quality control for embankment construction operations to assure compliance with contract requirements, and maintain records of its quality control for all construction operations including but not limited to the following:

(1) Equipment. Type, size, and suitability for construction of the prescribed work.

(2) Foundation Preparation. Breaking surface in advance of

embankment construction, and during fill placement when necessary, drainage of foundation and partially completed fill.

(3) Materials. Applicable tests, location of material testing sites.

(4) Construction. Layout, maintaining existing drainage, moisture control, thickness of lifts, spreading and compacting.

(5) Grade and Cross Section. Crown width, crown slope, side slopes, and grades.

(6) Roads and Ramps. Location of temporary roads to fields or buildings, location and placement of fills for ramps in accordance with specified dimensions and grades.

(7) Grade Tolerances. Check fills to determine if placement conforms to prescribed grade and cross section.

(8) Settlement of Foundation. Location of settlement gages established or measurements taken to determine settlement, location of sudden failures.

(9) Slides. Location and limits; methods and equipment used where remedial work has been directed.

(10) Control Testing.

The Contractor shall perform all control testing such as soil classification, moisture content, control compaction curves, and in-place density. The Contractor shall notify the COR of the results of all tests within 48 hours of sampling. To ensure contract compliance, the Contractor shall submit the test reports within 5 days of when the sample was taken for control compaction curves, in-place density tests, moisture content tests, and one-point compaction tests to the Contracting Officer's Representative by email and attach test results to the daily reports recorded the day the same was taken. Testing shall be performed by a Government approved testing agency, or field laboratory including on-site testing labs operated by QC personnel. Criteria used for obtaining Government approval shall be in accordance with ASTM E329-25. No additional payment will be made for control testing required in this paragraph. All costs in connection therewith shall be included in the contract unit price for "Levee Embankment, Semicompacted", "Levee Embankement, Fully Compacted", or "Berm Embankment, Semicompacted". Documentation of sampling locations for the following tests shall be clearly defined by levee station and offset and also by lift number or elevation as well as GPS coordinates. As a minimum, the following tests are required:

1. Soil Classification Tests. Determination of soil classification shall be in accordance with ASTM D2487. Atterberg Limits Test required for soil classification shall be performed in accordance with ASTM D4318. One Atterberg test shall be obtained from the sample material used for each control compaction curve and one shall be obtained from the sample material used for every 10th in-place density test. If the Nuclear Method is used, the material to be tested shall come from within a radius of 12 inches of the center of the in-place density test site. The soil

classification obtained from in-place density tests will serve as the basis for determining the applicable control compaction curves.

2. Control Compaction Curves. Control compaction curves shall be established in accordance with ASTM D698-12 (Standard Test Methods for Laboratory Compaction Characteristics of Soil Using Standard Effort). A control compaction curve will be required for each type of material from each source or a minimum of one compaction control curve every 25,000 cubic yards of compacted fill placed. Additionally, the natural moisture content shall be determined from each control compaction curve material sample in accordance with ASTM D2216. Where construction operations result in blending of several types of material prior to or during fill placement within the embankment design sections, two control compaction curves will be required for each resulting blend of material taken from the in-place lift and will be utilized in lieu of those required for the "unblended materials." The samples collected for the resultant blended material shall be collected from separate locations. If the borrow or source of fill material changes, new Compaction Control Curves shall be performed. Material test samples for Compaction Control Curves shall be prepared by air-drying, rewetting, and curing. The average of the two tests shall be the controlling optimum moisture content and maximum dry density.

3. In-Place Density Tests. In-place density tests for compacted embankment material shall be made in accordance with ASTM D6938-23 (Nuclear Method) or ASTM D1556/D1556M-24 (Sand Cone Method) and shall be made at a minimum frequency of one density test per lift per 1500 cubic yards of compacted embankment placed in the levee, but not less than one density test per 500 feet per lift. At least one test shall be performed in any lift that compacted fill is placed. A lift on any one side of the existing embankment will be considered one lift. The location of the test shall be representative of the area being tested or as directed by the Contracting Officer. For each in-place density test, the Contractor shall determine the percentage of ASTM D698-12 maximum dry density and the deviation from optimum water content in percentage points (plus or minus), using the control compaction curves for the same type of material. The appropriate control compaction curve shall be selected by using the one-point compaction test when available.

If the Nuclear Method is selected for field density testing, the dry density shall be determined by using the value of wet density reported by the nuclear density equipment and the value of moisture content obtained from ASTM D2216 or ASTM D4643. The Contractor shall not use the value of dry density reported by the nuclear density equipment.

The Sand-Cone Method shall be used to confirm the accuracy of the Nuclear Method. This can be accomplished by performing an initial comparison test of the two methods at the start of construction. If the Nuclear Method wet density is within 3 percent of the Sand Cone Method, no correction of the Nuclear Method wet density will be required and the testing may continue with the Nuclear Method. The Nuclear Method wet density shall be verified throughout the project at a rate of one Sand-Cone test for every ten nuclear tests thereafter. If the variance at any time exceeds 3 percent, a correction factor will be required to be determined prior to any further testing. For comparison purposes, the nuclear and sand-cone wet densities should represent the same lift thickness within the testing area selected. When a nuclear density result is in doubt, the sand-cone density test shall be used for acceptance.

The correction factor shall be determined by conducting five comparison tests (five ASTM D6938-23 and five ASTM D1556/D1556M-24) and calculating the average difference (correction) for each soil type encountered. The developed correction shall be used for adjusting the nuclear wet density readings. The results of the in-place density, moisture content, and one point compaction test shall be reported to the Contracting Officer's representative by the end of the working day following the in-place density test.

4. One-Point Compaction Test. As a minimum, the Contractor shall perform a one-point compaction test at every tenth (10th) in-place density test. If the Nuclear Method is used for in-place testing, every one-point compaction test shall be performed at the sand-cone verification test location on a sample from the same material location as the in-place density test in accordance with ASTM D698-12. The material shall be compacted at the same water content as the field test if it is estimated to be on the dry side of optimum laboratory water content. If the field water content is estimated to be above the optimum water content, the corresponding lab sample shall be dried to an estimated water content which is not more than 3 percent dry of the actual optimum water content. The water content/dry density point on the one-point compaction test shall be plotted on the family of curves for the same soil type from the same borrow source. The compaction control curve is estimated by projecting a curve that is parallel to the adjacent compaction curves. The optimum water content and maximum dry density shall be estimated from the control compaction curve. If the laboratory data plots outside of the available family of compaction curves, the Contractor shall perform a complete compaction test in accordance with ASTM D698-12.

5. Moisture Content Tests. Compacted fill moisture content tests at each density test location shall be taken to assure compliance with requirements for fill placement within the design sections as specified in paragraph "Moisture Control." Determination of compacted fill moisture content shall be performed in accordance with ASTM D2216 or ASTM D4643 with the following exception: every tenth (10th) moisture content test shall be performed in accordance with ASTM D2216. Determination of moisture content shall not be performed in accordance with ASTM D6938-23 (Nuclear Method). At least one test shall be performed in any lift that compacted fill is placed.

6. Additional Tests. In addition to the above frequency of tests, additional tests are required as follows:

a. Where the Contracting Officer's Representative has reason to doubt the adequacy of the compaction or moisture control.

b. Where the Contractor is concentrating fill operations over a relatively small area.

c. When, in the opinion of the Contracting Officer, embankment materials change substantially, the Contracting Office may direct additional testing.

d. Where non-traditional compaction procedures/equipment are being used.

e. When areas are found not meeting the specified in-place density or moisture limits the Contractor shall retest at no additional cost to the Government after corrective measures have been applied.

(12) Soil Test Log. At a minimum, the soil test log shall show all proctors and their values, all soil density tests (nuclear and sand cone), all one point proctors, moisture tests, classification, and plasticity range (LL and PI). These tests shall state failure or passing and shall show the applicable retest for any failing test. The testing logs shall be submitted to the government with each invoice where the contractor has placed embankment. If the Contractor fails to provide the soil testing log as described in this paragraph with the invoice, the pay request will not be accepted. Upon completion of embankment placement and testing, the Contractor shall provide a QC Test Report including the soil test log and all test reports.

3.4.2 Reporting

The original and two (2) copies of these records of inspections and tests, as well as the records of corrective action taken, shall be furnished the Government within 5 days of the date the sample was taken. Format of the report shall be as prescribed in Section 01 45 00.00 09 CONTRACTOR QUALITY CONTROL. Based upon the results of inspections and tests, corrective action shall be taken as required within 48 hours of sampling and corresponding reports provided within 5 days of sampling.

3.4.3 Moisture Control

The Contractor shall control the moisture content of the compacted embankment material. The optimum moisture content shall be determined in accordance with paragraph 3.4.1 "General", subparagraph (10). The Contractor shall perform the necessary work in moisture control to bring the borrow material within the moisture content range shown below. These ranges apply to all sub-types of compacted embankment required in this contract.

MOISTURE CONTENT OF COMPACTED EMBANKMENT MATERIAL		
TYPE OF MATERIAL	MAXIMUM	MINIMUM
CLAY (CH)	+5%	-3%
CLAY (CL)	+4%	-3%
SILT (ML)	+3%	-3%

NOTE: See Unified Soil Classification Chart for explanation of symbols and Plasticity Chart for classification determination, both shown on the contract drawings.

*** FOR EXAMPLE ONLY ***			
MOISTURE CONTENT			
TYPE OF MATERIAL	OPTIMUM	MAXIMUM	MINIMUM
CLAY (CH)	26%	31%	23%
CLAY (CL)	20%	24%	17%
SILT (ML)	17%	20%	14%

Borrow material is considered too wet to be placed directly upon the levee and berm(s) compacted fill footprint if it has a moisture content greater than the maximum percentage points above the optimum moisture content shown below, resulting from the Standard Proctor Compaction Test ASTM D698 -12. If the borrow material is too wet, it shall either be stockpiled and allowed to drain and/or the wet material shall be processed by disking and harrowing, if necessary, until the moisture content is reduced sufficiently before being placed within the levee or berm(s) section.

When it is discovered that wet fill has been placed over existing levee or newly constructed compacted fill footprint, the incident lift and previous lift will be tested in a minimum of two locations for density and moisture compliance. If the top or contact surfaces of a partially filled section becomes too wet to permit suitable bond between these surfaces and the additional backfill to be placed thereon, the wet material shall be scarified and permitted to dry, assisted by disking or harrowing. The material shall be recompacted in accordance with the applicable requirements of paragraph "Compaction".

Borrow material is considered too dry to be placed directly upon the levee and berm(s) compacted fill footprint, if it has a moisture content greater than the minimum percentage points below the optimum moisture content shown below, resulting from the Standard Proctor Compaction Test ASTM D698 -12. If the borrow material is too dry, it shall be prewet in the source area before being placed within the levee or berm(s) section.

MOISTURE CONTENT OF BORROW MATERIAL		
TYPE OF MATERIAL	MAXIMUM	MINIMUM
CLAY (CH)	+15%	-5%
CLAY (CL)	+10%	-5%
SILT (ML)	+8%	-5%

If the top or contact surfaces of a partially filled section becomes too dry to permit suitable bond between these surfaces and the additional fill to be placed thereon, the Contractor shall loosen the dried materials by scarifying, disking, or other approved methods, and shall recompact this lift in accordance with the applicable requirements of paragraph "Compaction". No additional payment will be made for any moisture control required in this paragraph.

3.4.4 Compaction

3.4.4.1 Fully Compacted Embankment

The first and each successive lift of fully compacted embankment fill material shall be compacted to at least 95 percent of maximum dry density as determined by ASTM D698-12 (Standard Proctor Compaction Test) at a moisture content within the limits shown in paragraph "Moisture Control" as determined from ASTM D4643 or ASTM D2216.

3.4.4.2 Semicompacted Embankment

The first and each successive lift of semicompacted embankment fill material shall be compacted to at least 93 percent of maximum dry density as determined by ASTM D698-12 (Standard Proctor Compaction Test) at a moisture content within the limits shown in paragraph "Moisture Control" as determined from ASTM D4643 or ASTM D2216.

3.4.5 Dressing

The entire embankment shall be brought to not less than the prescribed gross cross section, within allowable tolerance, at all points. Unreasonable roughness of the surface shall be dressed out to permit fertilizing and seeding operations.

3.4.6 Quality Assurance

As a control, the Government will perform assurance and check tests for maximum dry density for all materials in accordance with ASTM D698-12. If values for maximum dry density as determined by the Contractor and as determined by the Government do not agree, the Government will determine the values to be used. The Government will also perform check and assurance testing of the other control testing required by the Contractor in paragraph "Quality Control". The contractor may be required to pause his operation or assist the Government's QA efforts as deemed resonable by the Contracting Officer's Representative. Any expenses occasioned by modifying the operation to allow the Government to fulfill its QA responsibilities or incidental to supporting the Government's QA will not be a basis for a claim by the Contractor.

3.5 EQUIPMENT

3.5.1 General

Compaction equipment shall be capable of properly compacting the soil so that no planes of weakness or laminations are formed in the fill. Equipment shall be capable of compacting a layer of soil not less than 12 inches thick to the requirements specified herein.

3.5.2 Miscellaneous Equipment

Scarifiers, disks, spring-tooth or spike-tooth harrows, spreaders, power tampers, and other equipment shall be types suitable for construction of embankment.

3.5.3 Sprinkling Equipment

Sprinkling equipment shall be designed to apply water uniformly and in controlled quantities to variable widths of surface.

3.6 CROSS SECTIONS AND ZONING OF MATERIALS

3.6.1 Levee Embankment Sections

Unless otherwise specified, the dimensions and slopes shall conform to the applicable gross grade and cross sections shown on the drawings, within allowable tolerance.

3.6.2 Zoning of Materials for Levee Construction

In general, the levee section, including berms, shall be homogeneous; however, where materials of varying permeabilities are encountered in the borrow areas, the more impervious material shall be placed toward the riverside slope, and the more pervious material toward the landside slope.

3.6.3 Berms

Berms shall be constructed at the locations and to the grade and cross section shown on the drawings.

3.7 ACCESS ROADS, RAMPS, AND DETOURS

3.7.1 Access Roads

3.7.1.1 Location

The Contractor's access roads within the rights-of-way shall be located and constructed as approved by the Contracting Officer. They shall be designed to maintain the intended traffic, to be free draining and shall be constructed by placement of fill as specified in paragraph SEMICOMPACTED EMBANKMENT and shall be maintained in good condition throughout the contract period. No separate payment will be made for this work, and all costs therefore shall be included in the applicable bid items as listed in the Bidding Schedule.

3.7.2 Ramps

3.7.2.1 General

Ramp shall be constructed at the location shown on the drawings by placement of a fill as specified in paragraph SEMICOMPACTED EMBANKMENT. Ramp shall be constructed only by adding material to the levee crown and slopes. Ramp shall have an 18 foot crown width, a grade not to exceed 10 percent, and 1V on 4.0H side slopes. Ramps shall be constructed within the specified tolerances; however, ramps shall be shaped and bladed to drain toward the levee centerline, and shall be constructed such that a shallow ditch is formed at the intersection of the ramp surface and the levee slope approximately 9 inches deep and 4 feet wide measured at the elevation of the ramp surface. Ramp shall be surfaced with Crushed Stone Surfacing at the rate indicated in the drawings. Ramp shall include Corrugated Metal Pipe placement for drainage conveyance at the size, length, location, and orientation indicated in the drawings, and all work incidental thereto. Payment for materials used for ramp construction will be included in the contract job price for "Ramps" .

3.7.2.2 Changes in Ramp Dimensions or Locations

The Contracting Officer reserves the right to modify the dimensions and shift the locations of the ramps, to eliminate ramp construction, and to order the construction of additional ramps at other locations subject to the provisions of the Contract Clause CHANGES.

3.7.3 Detours

A detour ramp shall be constructed by placement of fill as specified in paragraph SEMICOMPACTED EMBANKMENT and will not be removed. No separate payment will be made for this work, and all costs therefore shall be included in the applicable bid items as listed in the Bidding Schedule. Contractor must provide and maintain suitable detours, conforming to the existing standard requirements of the owner of the roads for which the detours are to be provided.

3.8 DITCHES AND DEPRESSIONS

All sloughs, ditches or depressions beyond the limits of the levee and/or berm foundation but within the rights-of-way shall be filled with suitable material to the natural surface of the ground or to a height sufficient to ensure drainage after shrinkage of the fill, whichever is higher. The material for the fill shall be placed as specified in paragraph UNCOMPACTED EMBANKMENT.

3.9 GRADE TOLERANCES

3.9.1 Levee Embankment

All levee embankment shall be constructed to the gross grade and cross section shown on the drawings. For semicompacted levee embankment, a tolerance of 2/10 of 1 foot above the prescribed gross grade and cross section shown will be permitted in the final dressing within the limits of the levee crown before placement of levee surfacing. At all other points within the embankment section, a tolerance of 2/10 of 1 foot above or below the prescribed gross grade and cross section shown will be permitted in the final dressing provided that the crown of the levee drains, there are no abrupt humps or depressions in surfaces or bulges in the width of the crown, and the side slopes are uniform. For levee embankment, the extreme minus tolerance provided herein shall not be continuous over an area greater than 1,000 square feet and abrupt changes from one extreme to the other will not be permitted. Any partial fill or temporarily stockpiled material placed within the gross section shall not exceed the gross grade or gross slopes of the embankment by more than 2 feet, and shall have side slopes not steeper than 1V on 3H.

3.9.2 Berm Embankment

All berm embankment shall be constructed to the grade and section shown on the drawings. For semi-compacted berm fill, at all points, a tolerance of 3/10 of 1 foot above or below the grades and cross section shown will be permitted in the final dressing provided that there are no abrupt humps or depressions in surfaces. The extreme minus tolerance provided herein shall not be continuous over an area greater than 1,000 square feet, and abrupt changes from one extreme to the other will not be permitted.

3.10 SETTLEMENT OF FOUNDATION

3.10.1 Settlement Gages

Should the Contractor desire payment for placing additional levee fill due to foundation settlement during construction, he shall furnish and install settlement gages for determination of such settlement. Prior to placing of levee fill material, each gage shall be installed on the prepared foundation at the location shown on the applicable typical cross section at intervals not to exceed 300 feet, and shall be maintained during construction. Settlement gages at each end of the work shall be placed within 150 feet of the upper and lower limits of the work. Each gage shall be set on a smooth level surface on undisturbed ground. Leveling of gage beds shall be accomplished by removing the minimum amount of earth necessary to produce an even foundation and in such manner that the density of gage beds will remain at the same density as the undisturbed adjacent ground. Leveling of gage beds by the addition of levee fill will not be permitted. The gages shall be steel plates with minimum dimensions of 2 feet by 2 feet by 1/4 inch thick. The Contractor shall determine elevations of the gages prior to placing of levee fill material, and again within 72 hours after final cross sections have been taken over the completed embankment at the sites of the gages to determine settlement of the foundation. The 72 hour requirement is an absolute pre-condition for payment for settlement of the foundation. The initial and final elevation of the gages will be verified by the Contracting Officer's representative at the site. Measurement of additional levee fill material placed by reason of settlement of the foundation will be as stated in Section 01 22 00.00 09 MEASUREMENT AND PAYMENT, paragraph UNIT PRICE ITEMS. Installation of and measurement on gages shall be at the option and expense of the Contractor.

3.10.2 Sudden Failure

In clearly established cases of sudden failure of the foundation, either where no provision has been made for the measurement of settlement or where settlement measuring devices have been installed, but the nature of settlement is such as to destroy their utility, the method of correction will be determined by the Contracting Officer. In case the sudden settlement is caused through the fault or negligence of the Contractor, the prescribed corrective operations shall be performed at no additional cost to the Government. In case the sudden settlement is not caused through the fault or negligence of the Contractor the corrective operations will be paid for in accordance with the Contract Clause CHANGES.

3.10.3 Omitting Work

Where settlement of the foundation develops to such an extent as to make it inadvisable, in the opinion of the Contracting Officer, to continue to add material, and advisable in his opinion, to postpone until a considerably later date all attempts to bring that portion of the embankment to full grade and cross section, the Contracting Officer shall have the right to omit further work on that portion of the embankment and to accept it as complete. In the event a portion of the embankment is omitted under the provisions of this paragraph, measurement and payment for the portion of the embankment accepted as complete will be based on the original ground survey, an as-constructed survey, and the settlement provisions of the contract. Payment will be made at the applicable contract unit price for the embankment.

3.11 SLIDES

Should sliding occur in any part of the embankment during its construction, or after its completion, but prior to its acceptance, the Contractor shall upon written order of the Contracting Officer, either cut out and remove the slide from the embankment and then rebuild that portion of the embankment, or construct a stability berm of such dimensions, and placed in such manner as the Contracting Officer shall prescribe. In case the slide is caused through the fault or negligence of the Contractor, the foregoing operations shall be performed at no additional cost to the Government. In case the slide is not caused through the fault or negligence of the Contractor, the material ordered removed and the material replaced. Fill material for stability berms will be paid for in accordance with the Contract Clause CHANGES in addition to any payment due the Contractor for materials previously placed. The method of slide correction will be determined by the Contracting Officer.

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DIVISION 31 - EARTHWORK

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TEMPORARY EROSION CONTROL

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SECTION 31 25 00.00 09

TEMPORARY EROSION CONTROL

PART 1 GENERAL

1.1 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-03 Product Data

Fertilizer

The Contractor shall submit signed copies of invoices from suppliers which show quantities and the percentages of nitrogen, phosphorous, and potash.

1.2 AREAS TO RECEIVE TEMPORARY EROSION CONTROL

Within the period specified in paragraph COMMENCEMENT, the Contractor shall provide temporary erosion control for reaches of levee embankment and berm embankment that have been completed and accepted in accordance with Section 01 00 00.00 09 GENERAL CONTRACT REQUIREMENTS, paragraph ACCEPTANCE OF COMPLETED WORK, but upon which the Contractor has not begun required permanent turfing in accordance with Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT.

PART 2 PRODUCTS

2.1 FERTILIZER

Fertilizer shall meet the requirements of the State of Mississippi for commercial fertilizer. Fertilizer shall have a minimum analysis of 13 percent nitrogen, 13 percent phosphorus, and 13 percent potash (13-13-13). Duplicate signed copies of invoices from suppliers shall be furnished to the Contracting Officer upon delivery to the worksite. Invoices shall show quantities and percentages of nitrogen, phosphorus, and potash.

2.2 SEED

Seed shall be labeled in accordance with the U.S. Department of Agriculture Rules and Regulations under the Federal Seed Act in effect on the date of purchase. The seed shall have a minimum purity of 90 percent and a minimum germination rate of 80 percent. Fifty (50) pounds of Rye grass seed shall be planted per acre.

2.3 MULCH

The mulch shall be a vegetative mulch consisting of grain straw (oats, wheat, or rice) or grass hay.

PART 3 EXECUTION

3.1 TEMPORARY EROSION CONTROL

3.1.1 Commencement

The Contractor shall begin temporary erosion control operations not less than 7 days after September 15 of each year for completed and accepted reaches of embankment, and within 7 days after acceptance for reaches completed and accepted after September 15 of each year. Temporary erosion control is not required after January 31 of each year.

3.1.2 Dressing

The areas to receive temporary erosion control shall be dressed by the cutting off of high points and the filling of depressions to the extent necessary to provide a reasonably smooth surface that can be readily traveled by a farm tractor pulling a rotary type mower.

3.1.3 Application

After dressing, the areas to receive temporary erosion control shall be fertilized and seeded. Fertilizer shall be uniformly distributed at a rate of 200 pounds per acre over areas to be seeded and shall be incorporated into the soil to a depth of at least 4 inches by disking, harrowing, or other acceptable methods. After dressing has been completed and fertilizer incorporated, surfaces shall be seeded by uniformly distributing the Rye grass seed as specified in paragraph SEED per each acre. After the seed has been distributed, the entire finished surface shall be compacted by two passes of a conventional tractor-drawn cultipacker.

3.1.4 Mulching

Mulching shall be performed within 24 hours after seeding. Mulch shall be applied uniformly on the soil surface at the rate of 1-1/2 tons (approximately 60 bales) per acre. The mulch shall be anchored into the soil with a mulch crimper. The mulch crimping equipment shall have straight, notched, dull blades no more than 10 inches apart and shall be equipped with scrapers.The mulching material shall be anchored at least 1-inch into the soil. Anchoring the mulch shall be performed along the contour of the ground surface. The mulch shall be applied by means of approved equipment suitable for such work.

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DIVISION 32 - EXTERIOR IMPROVEMENTS

SECTION 32 15 00.00 09

LEVEE SURFACING

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SECTION 32 15 00.00 09

LEVEE SURFACING

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by basic designation only.

AMERICAN ASSOCIATION OF STATE HIGHWAY AND TRANSPORTATION OFFICIALS (AASHTO)

AASHTO T 27	(2020) Standard Method of Test for Sieve Analysis of Fine and Coarse Aggregates
AASHTO T 89	(2002; R 2006) Standard Method of Test for Determining the Liquid Limit of Soils
AASHTO T 90	(2020) Standard Method of Test for Determining the Plastic Limit and Plasticity Index of Soils
AASHTO T 104	(1999; R 2007) Standard Method of Test for Soundness of Aggregate by Use of Sodium Sulfate or Magnesium Sulfate

ASTM INTERNATIONAL (ASTM)

ASTM C127-24	(2024) Standard Test Method for Density, Relative Density (Specific Gravity), and Absorption of Coarse Aggregate
ASTM C131/C131M	(2020) Standard Test Method for Resistance to Degradation of Small-Size Coarse Aggregate by Abrasion and Impact in the Los Angeles Machine
ASTM C88/C88M-24	(2024) Standard Test Method for Soundness of Aggregates by Use of Sodium Sulfate or Magnesium Sulfate
ASTM D1556/D1556M-24	(2024) Standard Test Method for Density and Unit Weight of Soil in Place by Sand-Cone Method
ASTM D3740-23	(2023) Standard Practice for Minimum Requirements for Agencies Engaged in the Testing and/or Inspection of Soil and Rock as Used in Engineering Design and Construction
ASTM D6938-23	(2023) Standard Test Method for In-Place Density and Water Content of Soil and

	Soil-Aggregate by Nuclear Methods (Shallow Depth)
ASTM D698-12	(2021) Standard Test Methods for Laboratory Compaction Characteristics of Soil Using Standard Effort (12,400 ft-lbf/cu. ft. (600 kN-m/cu. m.))

1.2 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-06 Test Reports

Material Testing

Required testing and reporting shall be in accordance with paragraph MATERIAL TESTING.

Evaluation Tests

Quality tests on the crushed stone material in accordance with paragraph EVALUATION TESTING shall be the responsibility of the Contractor and submitted prior to delivery of such material to the worksite.

SD-07 Certificates

Crushed Stone

Certificates of compliance attesting that the surfacing materials meet specification requirements shall be submitted to the Contracting Officer.

Laboratory

A copy of the testing laboratory's certification and inspection report shall be submitted along with actions taken to correct deficiencies.

1.3 LOCATIONS AND DIMENSIONS

The locations and dimensions of the new crushed stone surfacing shall be as shown on the drawings.

PART 2 PRODUCTS

2.1 MATERIALS

2.1.1 Crushed Stone

Crushed stone shall conform to the following gradation:

U.S. STD. SQUARE MESH SIEVE DESIGNATIONS	PERCENTAGE BY WEIGHT PASSING (AASHTO T 27)
1 1/2	100
1 inch	90 - 100
3/4 inch	70 - 100
1/2 inch	58 - 90
No. 4	35 - 71
No. 10	25 - 52
No. 40	12 - 32
No. 200	6 - 16

All material passing the No. 40 sieve shall have a liquid limit of not more than 35 in accordance with testing methods prescribed in AASHTO T 89. Also, this material shall have a plasticity index of not more than 9 as determined in accordance with testing methods prescribed in AASHTO T 90.

The crushed stone shall be well graded between the limits shown. All points on the individual grading curves obtained from representative samples of material shall lie between the boundary limits as defined by smooth curves drawn through the tabulated gradation limits plotted on ENG Form 2087 (Exhibit A) or similar form. The individual gradation curves within these limits shall not exhibit abrupt changes in slope denoting either skip grading or scalping of certain sizes or other irregularities which would be detrimental to the proper functioning of the material. Prior to beginning any deliveries, the crushed stone shall be subject to the testing requirements contained in paragraph EVALUATION TESTING, as directed by the Contracting Officer and at no additional cost to the Government.

2.1.2 Evaluation Testing

The Contractor shall have evaluation tests performed on stone samples collected from the proposed source. A registered geologist or registered engineer shall perform the quarry investigation. The tests to which the crushed stone shall be subjected include bulk specific gravity (SSD), unit weight, absorption (ASTM C127-24), Los Angeles Abrasion Test (ASTM C131/C131M) and Soundness Test (ASTM C88/C88M-24 or AASHTO T 104).

The laboratory to perform the required testing shall be validated based on relevant paragraphs of ASTM D3740-23, and no work requiring testing shall be permitted until the laboratory has been inspected and validated. The first inspection of the facilities shall be at the expense of the Government and any subsequent inspections required because of failure of the first inspection shall be at the expense of the Contractor.

a. Unit Weight and Absorption. Stone shall weigh more than 155 pounds per cubic foot and have a bulk specific gravity, saturated surface dry, greater than 2.48. The stone shall have an absorption less than 2 percent unless other tests and service records show that the stone is satisfactory. The method of test for unit weight and absorption shall be ASTM C127-24, except the unit weight shall be calculated in accordance with Note No. 5 using bulk specific gravity, saturated surface dry.

b. Soundness Test. The soundness loss of course aggregate shall not exceed 15 percent when subjected to 5 cycles of the magnesium sulfate soundness test in accordance with ASTM C88/C88M-24 or AASHTO T 104.

c. Los Angeles Abrasion Test. Crushed stone shall be evaluated in accordance with ASTM C131/C131M. The course aggregate shall have a percentage of wear less than 40 percent.

2.2 DELIVERY VEHICLES

The new crushed stone shall be delivered in vehicles approved by the Contracting Officer. Each vehicle shall bear a plainly legible identification mark that shall match the ID number shown on the load ticket. If excess moisture is present, a percentage cannot be deducted.

2.2.1 DELIVERY TICKETS

The contractor shall provide serialized delivery tickets with each load delivered. These tickets shall be in duplicate and contain a carbon sheet or an equivalent method of transferring notations thereon from one ticket to its copy. At a minimum, the following information shall be shown on each ticket;

Contractor's Name
Delivery Vehicle ID Number
Ticket Serial Number
Date of Delivery
Contract Number
Location of Delivery (including county)
Quantity Loaded on Truck (in tons)

In addition to this information, the ticket shall have sufficient space for the Government representative to indicate thereon the amount measured as delivered, the time of delivery, and signature. After delivery and measurement, the Contractor shall provide the delivery ticket to the on-site Government representative for this notation and signataure, whereupon the Government representative will keep the original and give the copy back to the Contractor. The Government representative will not sign a delivery ticket where it is apparent the material does not meet the requirements of this contract or under circumstances whee other conditions of this contract were violated. Also, signatures on a delivery ticket by anyone other than the authorized Government representative may represent improper measurement and inspection and be subject to the improper measurement and inspection procedures as described in Section 01 22 00.00 09 MEASUREMENT AND PAYMENT.

PART 3 EXECUTION

3.1 PREPARATION

The crown of the levee, temporary roadway connector, and ramps shall be bladed and shaped prior to the placement of the new crushed stone surfacing. The ramps shall be shaped and bladed to drain toward the shallow ditch that is required at the intersection of the ramp surface and the levee slope. The centerline of the levee roadway shall be approximately 4 inches higher than the outer edge of the roadway crown and the crown shall be heeled to each side into a windrow that can be dressed against the new surfacing to hold it in place.

3.2 PLACING NEW SURFACING MATERIAL

The surfacing course of new crushed stone material shall be placed and spread uniformly on the crown of the levee, temporary roadway connector, and ramps. The Contractor shall not dump any load until it has been inspected and weighed in accordance with Section 01 22 00.00 09 MEASUREMENT AND PAYMENT. The new surfacing shall be placed in one layer of crushed stone, at 1.05 TN/LF for superelevated levee crown, 0.7 TN/LF normal levee crown, and 0.5 TN/LF ramp crown, at the widths shown on the drawings. The surfacing shall not be placed on a wet surface. The new surface course shall be compacted as specified in paragraph COMPACTION REQUIREMENTS. After the new surfacing material has been placed and compacted, it shall be dressed with a motor grader or similar equipment to present a uniform appearance and a smooth riding surface, without sharp breaks or depressions which will collect or hold water. Any damage to the finished surfacing caused by the Contractor's hauling operations or other construction operations shall be repaired at the Contractor's expense by adding levee surfacing material, compacting, and blading as necessary to obtain the required roadway section.

3.3 COMPACTION REQUIREMENTS

The surfacing material shall be compacted with approved compaction equipment. The Contractor shall perform the necessary work in moisture control to bring the surfacing material to a moisture content within plus or minus 2 percent of optimum moisture. When the moisture content and conditions of the spread layer is satisfactory, the material shall be compacted to not less than 96 percent of maximum density. Optimum moisture content and maximum density shall be determined by the Contractor from representative samples of each type of material from laboratory tests conducted in accordance with ASTM D698-12. Laboratory test results shall be provided to the Government prior to compaction of surfacing material.

3.4 FIELD DENSITY TESTING

Density shall be measured in the field in accordance with ASTM D1556/D1556M -24 or ASTM D6938-23. At least one density test shall be performed on each 500 linear feet of surfacing material placed. For the method presented in ASTM D1556/D1556M-24 the base plate as shown in the drawing shall be used. For the method presented in ASTM D6938-23 the calibration curves shall be checked and adjusted, if necessary, using only the sand cone method as described in paragraph Calibration of the ASTM publication. Tests performed in accordance with ASTM D6938-23 result in a wet unit weight of soil and when using this method, ASTM D6938-23 shall be used to determine the moisture content of the soil. The calibration curves furnished with the moisture gauges shall also be checked along with density calibration checks as described in ASTM D6938-23. The calibration checks of both the density and moisture gauges shall be made by the prepared containers of material method, as described in paragraph Calibration of ASTM D6938-23, on each different type of material being tested at the beginning of a job and at intervals, as directed.

3.5 MATERIAL TESTING

3.5.1 Crushed Stone

The Contractor shall determine the abrasion, aggregate soundness, gradation, liquid limit, and plasticity index of the crushed stone material for acceptance of the material. As a minimum for each quarry providing crushed stone, gradation tests shall be performed on the material once before delivery begins, and once for each 1,500 tons delivered up to a required quantity of 15,000 tons, and thereafter, a minimum of once for every additional 7,500 tons delivered. Once delivery has begun, samples for tests shall be taken from material that has been delivered to the jobsite. The on-site Government representative shall be notified when a sample is to be taken for each test and shall be given the opportunity to witness the taking of each sample. The Contractor shall accomplish the testing within two working days after the sample is taken and shall provide the original and one copy of all test results to the Government representative within three working days after the test is taken. A laboratory that has been approved by the Contracting Officer shall perform the tests. Any additional sampling and testing shall be performed as part of the quality control testing program at the quarry and certified test reports shall be furnished to the Contracting Officer. The quarry laboratory shall provide documentation that they have been validated and/or certified under the requirements of ASTM or AASHTO Standards for Evaluation of Testing Facilities (based on compliance with relevant paragraphs of ASTM D3740-23).

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SECTION 32 92 00.00 09

EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT

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SECTION 32 92 00.00 09

EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT

PART 1 GENERAL

1.1 AREAS REQUIRING EXISTING TURF MAINTENANCE

For the duration of the contract, the Contractor shall maintain existing turf on existing levee and berm embankments within the rights-of-way where new embankment is not required, and where new embankment is required but has not been placed.

1.2 AREAS REQUIRING NEW TURF ESTABLISHMENT

In accordance with the requirements of this section, turf shall be established on all levee embankment, and berm embankment, and ramps, constructed under this contract (except on areas required to receive other types of surfacing), the 15 feet wide strips contiguous to the newly constructed embankment, the 15 feet wide strips contiguous to all existing riverside and landside levee and berm toes where no new embankment is required, and all areas within the rights-of-way from Station 8173+00 to Station 8194+65, and proposed ramp location at Landside Levee and Berm Station 8237+00 to Station 8244+00. This section shall paid under Item 0004 "TURFING AND MOWING". Areas not required to be turfed shall be protected as specified in Section 01 57 20.00 09 ENVIRONMENTAL PROTECTION.

In accordance with the requirements of this section, turf shall be established on all existing levee and berm surfaces (except on areas with other types of surfacing), including riverside levee from Station 8200+00 to 8300+00, and landside levee and berm Areas: #1 - from Station 8200+00 to 8237+00, and #2 - from Station 8244+00 to 8300+00, and the 15 feet wide strips contiguous to all existing riverside and landside levee and berm toes where no new embankment is required, and all areas within the rights-of-way where the existing turf is damaged by the Contractor. All existing vegetation within these areas shall be mowed closely to existing ground surface level prior to drill seeding as specified in paragraph 3.2.4 Vegetation Removal, and shall be maintained as specified in Subpart 3.2 New Turf EStablishment of this specification. In areas where soil erosion has occurred on levee and berm slopes, contractor shall remove and collect displaced soil from the levee and berm toes, and restore eroded areas prior to seeding as specified in paragraph 3.2.5 Preplanting Embankment Restoration. This section shall be paid under Item 0012 "TURFING AND MOWING, Levee and Levee/Berm Sta. 8200+00 TO Sta. 8300+00". Areas not required to be turfed shall be protected as specified in Section 01 57 20.00 09 ENVIRONMENTAL PROTECTION.

1.3 COMMENCEMENT REQUIREMENTS

1.3.1 Existing Turf Maintenance

The Contractor shall begin existing turf maintenance not later than 10 days after receipt of Notice to Proceed.

1.3.2 New Turf Establishment

The Contractor shall begin new turf establishment on each reach of levee and berm embankment that is accepted under Section 01 00 00.00 09 GENERAL CONTRACT REQUIREMENTS, paragraph ACCEPTANCE OF COMPLETED WORK as soon as practicable, but within the specified planting period.

1.4 MINIMUM SPECIFIED QUANTITIES AND PROCEDURES

All requirements identified as minimum requirements are fully compensated under the payment items "Turfing and Mowing", or "Turfing and Mowing,Levee/Berm Sta. 8200+00 to Sta. 8300+00". The Contractor may exceed minimum specified requirements in an effort to reduce establishment and/or maintenance periods and associated costs, at no additional cost to the Government.

1.5 HERBICIDE USE

1.5.1 Herbicide Application Plan

Approved herbicides may be used on areas requiring existing turf maintenance or new turf establishment. At least 30 days prior to application of any herbicide, the Contractor shall furnish a herbicide application plan for review by the Contracting Officer. The Contractor shall ensure that the plan for herbicide applications complies with all applicable local, state, and federal requirements. The plan shall include, as a minimum, proposed herbicides and application rates, copies of herbicide manufacturer's labels and material safety data sheets, any state-imposed conditions, copies of commercial and/or restricted use herbicide applicators' certificates from the states in which the work is to be performed, an activity hazard analysis, environmental protection procedures, spill containment procedures, residue and container disposal procedures, and noncompliance reporting and response procedures.

1.5.2 Acceptance of Plan and Proposed Changes

Acceptance of the Contractor's plan is required prior to any herbicide application. Acceptance of the plan will be conditional, subject to satisfactory implementation and performance. Acceptance shall not relieve the Contractor from compliance with all applicable local, state, and federal requirements. After acceptance of the plan, the Contractor shall notify the Contracting Officer in writing a minimum of seven days prior to any proposed change. Proposed changes shall not be implemented until reviewed and accepted by the Contracting Officer.

1.6 GRAZING

Grazing will not be permitted within the contract rights-of-way.

1.7 HAY HARVESTING

Unless otherwise approved, hay harvesting will not be permitted within the contract rights-of-way.

1.8 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-03 Product Data

Bermuda Grass Cultivar; G

The Contractor shall submit the Bermuda grass cultivar proposed for planting.

SD-06 Test Reports

Soil Testing

The Contractor shall submit copies of all soil test and analysis results and recommended preplanting application times and rates for lime and fertilizer.

SD-07 Certificates

Fertilizer

Lime

Bermuda grass sprigs

Bermuda grass seed

Each delivery of fertilizer, lime, sprigs and seed shall be accompanied with a certificate from the manufacturer including specified data and attesting that the specified materials meet contract requirements.

PART 2 PRODUCTS

2.1 FERTILIZER

Fertilizer shall be commercial grade, uniform in composition, free flowing, and suitable for the Contractor's application method. Fertilizer shall be delivered in bulk or in labeled containers and shall conform to current Mississippi requirements for commercial fertilizer. Each delivery of fertilizer shall be accompanied with a certificate from the manufacturer including the name, type, guaranteed analysis, trademark, and warranty of the producer.

2.2 HERBICIDES

2.2.1 Herbicide Application

Herbicides shall be delivered to the mixing site in original, unopened containers bearing legible labels indicating Environmental Protection Agency (EPA) registration numbers and manufacturer's registered uses. All operations associated with herbicide applications shall be in strict compliance with manufacturer's labels and material safety data sheets, the approved herbicide application plan, and all federal, state, and local requirements for applying herbicides. General-use herbicides shall only be applied under the supervision of, or by, personnel with current commercial applicator's certification from the state in which the work is being performed. Restricted-use herbicides shall only be applied by personnel with current restricted-use applicator's certification from the state in which the work is being performed.

2.2.2 Application Reporting

For each application, the Contractor shall include on daily CQC Reports, as a minimum, the following information: herbicide types and quantities applied, acreage treated, weather conditions, disposal methods utilized and exposure manhours.

2.3 LIME

Lime shall be agricultural grade lime containing not less than 85 percent total carbonates. Lime shall be ground to such fineness that 25 percent will pass a number No. 100 sieve and 100 percent will pass a No. 8 sieve.

2.4 MULCH

Mulch shall consist of Bermuda grass hay or wheat, rice or oat straw. Mulch shall be dry and free from Johnson grass or other noxious weeds and shall not be in an advanced state of decomposition.

2.5 BERMUDA GRASS SPRIGS AND/OR SEEDS

2.5.1 Selection Criteria

For seeding and sprigging, the Contractor shall select a common Bermuda grass cultivar that is known to spread rapidly and have sufficient winter hardiness for the region, such as Majestic, Cheyenne, Mohawk, Texas Tough Plus, Tranchero Frio, Pasto Rico, Sungrazer, Pasure Supreme, and Terra Verde.
. Hybrids shall not be used.

2.5.2 Bermuda Grass Sprigs

Bermuda grass sprigs consisting of healthy, living stems, stolons or rhizomes and attached roots with adhering soil shall be obtained from a registered or certified grower. Sprigs shall be free of noxious grasses or weeds. Sprigs of local origin shall be used.

2.5.3 Bermuda Grass Seed

Bermuda grass seed shall be obtained from a licensed dealer and labeled in accordance with U.S. Department of Agriculture rules and regulations under the Federal Seed Act. Labels are required for both bulk and bagged seed. Seed shall have a minimum 98 percent pure seed rate and 85 percent germination rate by weight and shall contain no more than one percent weed seeds. Seed shall be furnished in sealed, standard containers. Seed which has become wet, moldy or otherwise damaged in transit or storage will not be acceptable.

2.6 WATER

Water that is used as an aid to establishing turf shall be of irrigation quality and free of injurious quantities of oil, acid, alkali, salt, and other impurities detrimental to plant growth.

PART 3 EXECUTION

3.1 EXISTING TURF MAINTENANCE

The Contractor shall mow all existing turf within the rights-of-way where new embankment is not required, and where new embankment is required but has not been placed. These areas shall be kept mowed to a height between 4 and 12 inches above the earth surface during the life of the contract, except that no mowing shall be performed during the months of October through March unless otherwise approved. Should the Contractor fail to maintain the existing turf as specified, the Government may assume the responsibility and deduct the cost thereof from any payments due the Contractor. Should the Government temporarily assume the responsibility for existing turf maintenance, this will in no way relieve the Contractor from the requirements for maintenance of existing turf for the remaining contract period, establishment of new turf, or any other requirements as specified in this section.

3.2 NEW TURF ESTABLISHMENT

3.2.1 General

The Contractor may elect to seed or sprig, or use a combination of seeding and sprigging to establish new turf. The Contractor shall be responsible for soil testing, embankment restoration, vegetation removal, soil preparation, preplanting fertilizing and liming, planting (sprigging and/or seeding), mulching, replanting, postplanting fertilizing, mowing, additional fertilizing, restoring eroded areas, all work during subsequent growing seasons, and establishment to the point of Bermuda grass coverage required in paragraph ESTABLISHMENT. Should the Contractor fail to perform the specified requirements, the Government may assume establishment responsibility and deduct the cost thereof from any payments due the Contractor.

3.2.2 Soil Testing

The Contractor shall obtain the services of an established soil testing entity to coordinate soil sampling, perform testing and analyses, and prepare recommendations for materials and procedures to be used during the preplanting phase of new turf establishment. When practicable, soil testing shall be performed early enough to permit lime (if required) to be applied sufficiently in advance of planting so that the soil pH adjustment will occur before planting. However, planting shall not be delayed for this purpose. Soil samples shall be taken along the entire length of new embankment at approximate 1,000 feet intervals at the direction of the Contracting Officer. Samples shall be tested and analyzed to determine pH and fertility conditions. The test results and recommendations shall be used to determine the quantities required for preplanting lime and fertilizer applications. Lime recommendations shall consider probable time of application.

3.2.3 Advance Notification Requirements

During periods when no concurrent construction work is being performed, the Contractor shall notify the Contracting Officer a minimum of one day prior to performing any existing turf maintenance, new turf establishment, or new turf maintenance work when there has been a period of no work for 5 days or longer.

3.2.4 Vegetation Removal

Not less than 7 days or more than 14 days prior to beginning preplanting embankment restoration or soil preparation, mowing shall be performed to remove grasses, weeds and other vegetation from areas where new turf establishment is required. Mowing shall be performed to a height not to exceed 4 inches above the ground surface and the resulting clippings shall be removed from the job site.

3.2.5 Preplanting Embankment Restoration

After acceptance of the embankment and immediately prior to soil preparation for planting, the Contractor shall restore eroded embankments. Eroded areas shall be restored to the grade and slope of adjacent areas that have not eroded. Adjacent areas that have not eroded shall not be degraded. Necessary repairs shall be made with suitable material placed and compacted as required for the original embankment in accordance with Section 31 24 00.00 09 EMBANKMENT.

3.2.6 Soil Preparation

After the areas to be turfed have been restored to the required grades and slopes, the soil shall be thoroughly tilled to a depth of at least 4 inches by discing, harrowing, or other approved operations. Incorporation of preplanting lime and fertilizer applications may be accomplished as a part of this operation. Irregularities in the surface shall be dressed to provide a smooth surface that is within the tolerance for embankment and that will drain.

3.2.7 Preplanting Lime Application

Lime shall be applied at the time and rate indicated by soil test recommendations and incorporated into the soil by discing.

3.2.8 Preplanting Fertilizer Application

Immediately prior to planting, fertilizer shall be applied at the rate indicated by soil test recommendations and incorporated into the soil by discing.

3.2.9 Planting Options

3.2.9.1 Sprigging

Sprigging, including initial planting and all replanting, may be performed only during each February 1 through June 30 period, and shall be accomplished as early as practicable during this period. Minimum 6 inch long sprigs shall be used. Sprigs shall not be stored more than 48 hours between digging and planting. During storage, sprigs shall be kept moist and shaded. If a mechanical sprigger is used, sprigs at a minimum rate of 30 bushels per acre shall be planted at a depth of 2 inches or less. If a weighted disk is used, the soil shall first be firmed by rain or rolling. Sprigs shall then be broadcast at a minimum rate of 40 bushels per acre and incorporated into the soil by a weighted disk. The area shall then be firmed by rolling with a conventional tractor-drawn cultipacker or other approved device. Dormant sprigs shall be completely covered by not more than 1-inch of soil. Non-dormant sprigs shall have a minimum of 1/2-inch portions of their leaves uncovered.

3.2.9.2 Seeding

Seeding, including initial planting and all replanting, may be performed only during each April 1 through June 30 period, and shall be accomplished as early as practicable during this period, although it is recommended that soil temperature reach a minimum of 68 degrees F before seeding is performed. Hulled seeds shall either be broadcast at a minimum rate of 30 pounds per acre in two approximately equal passes made at right angles, or drilled at a minimum rate of 15 pounds per acre using row markers to a depth not greater than 1/4-inch. If broadcast, seed shall be lightly covered by dragging or other approved methods to a depth of not more than 1/8-inch of soil and firmed by rolling with one pass of a conventional tractor-drawn cultipacker or other approved device not exceeding 90 pounds for each foot of roller width. Seed may be broadcast and immediately rolled if the rolling operation is such that an appropriate seed depth of not more than 1/8-inch and appropriate seedbed firmness can be achieved by the rolling operation alone. If seeding is performed with a seed drill equipped with rollers, additional rolling is not required.

3.2.10 Mulching

Immediately after seeding or sprigging, mulch shall be applied uniformly on the soil surface at the rate of 1-1/2 tons (approx. 60 bales) per acre. Mulch shall be anchored into the soil with a mulch crimper. The mulch crimping equipment shall have straight, notched, dull blades no more than 10 inches apart and shall be equipped with scrapers. The mulching material shall be anchored at least 1-inch into the soil. Anchoring the mulch shall be performed parallel to the centerline of the levee. The mulch shall be applied by means of approved equipment suitable for such work.

3.2.11 Inspections and Reports

After initial planting, the Contractor shall inspect newly turfed areas at least once every two weeks during each April through September period. For each inspection conducted, the Contractor shall prepare a report summarizing the scope of the inspection, names of personnel making the inspection, inspection date, height of vegetation, observations and conclusions, and maintenance performed. The report shall be furnished to the Contracting Officer within 24 hours of the inspection as a part of the Contractor's daily CQC Report.

3.2.12 Replanting

Approximately one month after initial planting, the Contractor shall restore any eroded areas and perform soil preparation, fertilize, replant and mulch all bare spots larger than 100 square feet in accordance with the requirements of paragraph PREPLANTING EMBANKMENT RESTORATION, paragraph SOIL PREPARATION, paragraph PREPLANTING FERTILIZER APPLICATION, paragraph SPRIGGING or paragraph SEEDING, and paragraph MULCHING, all at no additional cost to the Government. When initial planting is performed in June, replanting operations shall be performed as soon as practicable during the next specified planting season, unless otherwise approved by the Contracting Officer.

3.2.13 Postplanting Fertilizer Application

For those areas that do not require replanting, approximately one month after the initial planting, fertilizer shall be applied at the minimum rate of 60 pounds of nitrogen per acre. For areas planted after 31 May, postplanting fertilizer shall be the slow-release type.

3.2.14 New Turf Maintenance

The Contractor shall maintain each area receiving new turf until Bermuda grass on all areas to be turfed is established to the point of acceptance. During establishment and prior to acceptance, the Contractor shall restore any eroded areas or rutting damage to the completed embankment at no additional cost to the Government. The Contractor shall also maintain each area receiving new turf by mowing. During each April through September period, mowing shall begin when the tallest vegetation reaches 12 inches, and areas shall be kept mowed to a height between 4 and 12 inches above the embankment surface. Mowing shall be performed to a minimum distance of 5 feet beyond the toe of the new levee or berm embankment. Mowing shall be scheduled to minimize rutting. No mowing shall be performed during the months of October through March unless otherwise approved by the Contracting Officer. Should the Government temporarily assume the responsibility for mowing the new turf, this will in no way relieve the Contractor from the requirements for mowing of new turf for the remaining contract period, or any other requirements for maintenance and establishment of new turf, or any other requirements as specified in this section.

3.2.15 Additional Fertilizer Requirements During First Growing Season

For each area planted during February through April, beginning approximately 30 days after postplanting fertilizer application, the Contractor shall make additional fertilizer applications at approximately 30 day intervals through June. Minimum rates of 60 pounds of nitrogen and 40 pounds of potassium per acre shall be used. If the Contractor elects to apply higher rates of nitrogen, or to apply fertilizer during July or August to reduce establishment and/or maintenance periods, it shall be the slow-release type. For each area planted during February through June, if growth has not reached the required coverage by the end of August, the Contractor shall apply fertilizer in September at a rate of 80 pounds of potassium per acre.

3.2.16 Requirements During Subsequent Growing Seasons

For newly turfed areas, during all growing seasons after the first growing season and prior to the date of acceptance of all new turf, as a minimum, the Contractor shall apply fertilizer during the months of April, May, and June at approximately 30 day intervals at minimum rates of 60 pounds of nitrogen and 40 pounds of potassium per acre, restore eroded areas in accordance with paragraph PREPLANTING EMBANKMENT RESTORATION, mow in accordance with paragraph NEW TURF MAINTENANCE, and replant areas that have insufficient Bermuda grass to achieve the required coverage within each subsequent growing season in accordance with paragraph REPLANTING, all at no additional cost to the Government. If the Contractor elects to apply higher rates of nitrogen, or to apply fertilizer during July or August to reduce establishment and/or maintenance periods, it shall be the slow-release type. If growth has not reached the required coverage by the end of August, the Contractor shall apply fertilizer in September at a rate of 80 pounds of potassium per acre.

3.2.17 Coordination Meeting

Prior to April 1 of each subsequent growing season, the Contractor shall meet with the Contracting Officer at the job site to identify bare spots, eroded areas and rutting damage and to discuss the Contractor's plan of operation for completing new turf establishment. The Contractor shall contact the Contracting Officer to mutually schedule this meeting at least 7 days prior to the meeting.

3.2.18 Establishment

Turf will be considered to be established and completed when the areas to be turfed have produced Bermuda grass stems or runners which overlap adjacent Bermuda grass growth over a minimum of 85 percent of the entire area as determined by the Contracting Officer by random sampling on a square yard basis and when the areas to be turfed have no spots greater than 4 square feet that are void of Bermuda grass.

3.2.19 Inspection and Acceptance

Acceptance of the entire turfed area will be based on the Contracting Officer's visual inspection and determination of the required coverage. Acceptance will be based on coverage by Bermuda grass only. Dying or dead turf and eroded areas will not be accepted. Partial reaches will not be accepted unless determined by the Contracting Officer to be in the best interest of the Government.

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DIVISION 32 - EXTERIOR IMPROVEMENTS

SECTION 02220

EROSION CONTROL MATTING

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SECTION 02220

EROSION CONTROL MATTING

PART 1 GENERAL

1.1 GENERAL DESCRIPTION

Erosion control matting shall be provided as a ditch liner at levee ramps as specified herein. All costs associated with providing erosion control matting and all work incidental thereto shall be included in the contract job price for "Mowing, Turfing, and Erosion Control Matting".

1.2 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-03 Product Data

Erosion Control Matting

The Contractor shall submit signed copies of invoices from suppliers which show quantities and identify the material and manufacturer.

SD-07 Certificates

Erosion Control Matting

Certificates of compliance attesting that the erosion control matting meets specification requirements shall be submitted to the Contracting Officer.

PART 2 PRODUCTS

2.1 EROSION CONTROL MATTING MATERIALS

2.1.1 General

The erosion control matting shall be a nominal 3/8-inch thick blanket of excelsior, wheat straw or other natural fiber bonded to a photo degradable mesh. The mats shall be rated by the manufacturer for use in vegetated channels having flow velocities of up to 5 feet per second.

2.1.2 Anchor Pins or Staples

Anchor pins or staples for erosion control matting shall be as recommended by the manufacturer.

PART 3 EXECUTION

3.1 EROSION CONTROL MATTING

The erosion control matting at levee ramps shall be installed along the full length of each ramp in a single 5 feet width centered in the shallow ditch required at the intersection of the ramp surface and the levee slope. In accordance with Section 32 92 00.00 09 EXISTING TURF MAINTENANCE AND NEW TURF ESTABLISHMENT, the areas to be covered shall be restored, prepared, fertilized, and seeded or sprigged. The matting shall be installed not more than 24 hours after completion of the required turfing operations. The matting shall be installed by unrolling it in the direction of water flow and draping it loosely, without folds or stretching, so that continuous ground contact is maintained. The mulch material shall be omitted from areas receiving erosion control matting. The end of the material at the beginning and ending of each area to be covered shall be folded and placed in a vertical anchor trench at least six inches deep, and pinned or stapled into the trench on six inch centers, backfilled with suitable embankment material, and tamped to at least the density of the surrounding embankment. On the upgrade end, reinforce with a row of pins or staples on 6 inch centers about one foot below the anchor trench. Laps shall be avoided, but where two or more lengths are necessary to cover the ramp ditch, the ends shall overlap at least 6 inches with the upgrade section on top. Erosion control matting shall be anchored with pins or staples placed approximately 6 feet apart along each side of the matting, and with one row along the center placed at 6 feet intervals between the side pins. At overlap ends, pins shall be placed in a row with 6 inch spacing.

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CULVERTS

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by basic designation only.

AMERICAN WELDING SOCIETY (AWS)

AWS D1.1/D1.1M	(2015; Errata 1 2015; Errata 2 2016) Structural Welding Code - Steel

ASTM INTERNATIONAL (ASTM)

ASTM A123/A123M-24	(2024) Standard Specification for Zinc (Hot-Dip Galvanized) Coatings on Iron and Steel Products
ASTM A762/A762M-19	(2021) Standard Specification for Corrugated Steel Pipe, Polymer Precoated for Sewers and Drains
ASTM A780/A780M-20	(2020) Standard Practice for Repair of Damaged and Uncoated Areas of Hot-Dip Galvanized Coatings
ASTM D1056-20	(2020) Standard Specification for Flexible Cellular Materials - Sponge or Expanded Rubber
ASTM D6938-23	(2023) Standard Test Method for In-Place Density and Water Content of Soil and Soil-Aggregate by Nuclear Methods (Shallow Depth)
ASTM D698-12	(2021) Standard Test Methods for Laboratory Compaction Characteristics of Soil Using Standard Effort (12,400 ft-lbf/cu. ft. (600 kN-m/cu. m.))

1.2 GENERAL

The Contractor shall verify all measurements and shall take all field measurements necessary before fabrication. Welding to or on corrugated metal pipe shall be in accordance with the applicable provisions of AWS D1.1/D1.1M, except that the limitations on types of base metal shall not apply where other types are specified or shown.

1.3 SUBMITTALS

Government approval is required for all submittals with a "G" designation;

submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-07 Certificates

Corrugated Metal Pipe

Certificates of compliance shall be submitted attesting that the materials meet the specified requirements.

PART 2 PRODUCTS

2.1 MATERIALS

2.1.1 Corrugated Metal Pipe

The pipe shall be corrugated steel pipe in accordance with ASTM A762/A762M -19, polymer precoated, Grade 10/3 (Type B) coating, Type I, with helical corrugations and folded lock seams. The lock seams shall be welded at each end of the pipe section. Corrugations for 42-inch diameter pipe and smaller shall be 2-2/3 by 1/2-inch (nominal size). Corrugations for 48-inch diameter pipe and larger shall be either 2-2/3 by 1/2-inch (nominal size) or 3 by 1 inch (nominal size).

2.1.1.1 Pipe Ends

Pipe shall have the ends equipped with a minimum of four (4) rerolled annular corrugations.

2.1.1.2 Lifting Lugs

All pipe 36 inches in diameter or larger shall be equipped with two (2) lifting lugs. These lugs shall be attached to the pipe by welding.

2.1.1.3 Pipe Gage

The gage of the pipe shall be as specified below:

PIPE GAGE

Pipe Diameter (Inches)	2 2/3 by 1/2 Corrugations	3 by 1 Corrugations
24	14	--
48	10	12
60	10	12

2.1.1.4 Pipe Lengths

The Contractor may elect to furnish pipe section lengths in combinations that will reduce the number of connecting bands. Pipe section lengths shall be approved.

2.2 CULVERTS

The pipe and pipe gage shall be as specified in paragraph CORRUGATED METAL PIPE.

2.2.1 Connecting Bands

2.2.1.1 Pipe All Sizes

The following described connecting bands may be used for any size pipe. They shall have a minimum of nine (9) corrugations (2-2/3 by 1/2-inch corrugations) or seven (7) corrugations (3 by 1 inch corrugations) and a minimum circumferential lap of 6 inches. The band shall be rolled so that when it is placed on the pipe sections, the ends of the pipe will fit flush. The binders for the connecting band shall consist of a minimum of six (6) rods and tank lugs in accordance with the details shown. A closed cell expanded rubber gasket shall be used with this type connecting band. The closed cell gasket shall be 12 inches wide 3/8 inch thick, unstretched diameter 10 percent less than the normal pipe size and shall comply with ASTM D1056-20, Grade SCE-43. The gasket shall be centered over the pipe joint under the connecting band.

2.2.1.2 Pipe 30 Inches In Diameter or Less

The following described connecting bands may be used for connecting pipe 30 inches in diameter or less. This band shall consist of one continuous corrugation on each side to mesh with the second annular corrugation on the end of the pipe. A 3/4-inch O-ring gasket shall be installed in the first annular corrugation of the end of the pipe. A mastic shall be placed in the lap area of the band prior to tightening of the rods and bolts. The mastic shall be as recommended by the pipe manufacturer. A tank rod and lug shall be placed in the annular corrugation on the outside of the band in accordance with the details as shown on the drawings.

2.2.1.3 Tank Rods

The tank rods shall be 7/16-inch in diameter and shall be equipped with 1/2-inch diameter rolled threads. The nuts used on the rods shall be 1/2-inch x 1-3/4 inch steel hexagon head coupling nuts galvanized and retapped 0.020-inch (1/32-inch maximum) oversized to remove excess galvanizing from threads. Tank rods, nuts and washers shall be galvanized in accordance with ASTM A123/A123M-24.

2.2.1.4 Bands

The bands shall have the same coating, depth of corrugation and gage as specified for the pipe.

2.3 TEST REPORTS AND BILLS OF LADING

A metallurgical test report and bill of lading showing respective heat numbers shall be furnished for all pipe delivered to the job.

PART 3 EXECUTION

3.1 INSTALLATION

3.1.1 Delivery and Handling of Pipe

When delivered to the job site, the pipe and prefabricated structures shall be unloaded from the truck in a manner that will ensure no damage to the coatings or bending of the pipe. The pipe and prefabricated stoplog structures shall be unloaded by use of hoist, skids and snubbing ropes or other methods approved. Under no circumstances shall the pipe and prefabricated stoplog structures be allowed to drop from the truck or roll freely. Lifting of the pipe and prefabricated stoplog structures shall be done by use of slings or lifting lugs attached to the pipe. The use of hooks attached to the ends of the pipe will not be allowed.

3.1.2 Connecting Bands Gasket

The closed cell gasket shall be centered over the pipe joint under the connecting band.

3.1.3 Pipe Anchors

Pipe anchors shall be installed as shown on the drawings.

3.1.4 Touch-up

All welds and exposed metal shall be repaired in accordance with ASTM A 780/A780M-20 painted with two coats of a zinc dust primer as recommended by the pipe manufacturer. All coatings damaged during shipping, welding, or installation shall be repaired and coated with a polymer touch-up coating similar and compatible with respect to durability, adhesion, thickness and appearance of the original polymer coating, and as recommended by the pipe manufacturer.

3.2 PIPE TRENCH EXCAVATION

3.2.1 General

The pipe trench excavation shall consist of removal of material in preparing the foundation to the lines and grades shown and removal of unsuitable materials. The surfaces upon which pipe is to be placed shall be accurately finished to the lines and grades required. All foundations shall be on solid, undisturbed or properly compacted material. When disturbed by the Contractor's operations, and elsewhere as required, the excavated surfaces shall be moistened with water if necessary and tamped or rolled with suitable tools or equipment for the purpose of thoroughly compacting them and forming firm foundations upon or against which to place the pipes. Wherever unsuitable foundation material is encountered, the unsuitable material shall be removed to the depth directed. Over excavation will not be permitted except to remove unsuitable material as directed. If at any point in the excavation for pipes, material is excavated beyond the excavation lines shown, such unauthorized overexcavation shall be backfilled and compacted as specified for structure backfill in paragraph BACKFILL FOR PIPES, at no additional cost to the Government. If at any point in excavation the foundation material is found to be unsuitable, it shall be removed as directed and replaced with selected materials placed and compacted as specified above and an equitable adjustment in contract price and time will be made in accordance with the Contract Clause CHANGES. All excavation and foundation preparation shall be performed in areas free of water. Where dimensions of pipe trenches are not shown, the bottom width shall be not less than 2 feet greater than the outside span dimension of the pipe. Excavation for pipes shall fit the outside periphery of the bottom quadrant of the pipe.

3.2.2 Disposition of Materials

3.2.2.1 Suitable Materials

Excavated materials which are suitable for incorporation in the fill or backfill shall either be placed directly or stockpiled and subsequently used in the fill or backfill. Suitable materials shall be clay CL, CH, or silt ML as classified by the Unified Soil Classification System. Stockpiled material shall be placed no closer than 50 feet from the top bank or pipe excavation. Such stockpiled material shall have a maximum height not to exceed 10 feet, shall be placed so as to drain, and shall have end and/or side slopes not steeper than 1V on 2H.

3.2.2.2 Unsuitable Materials

Excavated unsuitable material shall be disposed of in abandoned portions of borrow areas as directed by the Contracting Officer's Representative.

3.3 PLACING OF PIPES

Corrugated metal pipe shall be laid with separate sections jointed firmly together and with outside laps of circumferential joints pointing upstream and with longitudinal laps on the sides. The coupling bands shall lap at equal portion on each pipe section jointed and shall be drawn tight to ensure that the corrugations fit snugly and provide a satisfactory joint. The pipe shall be placed with the pipe invert coinciding with the specified grade lines. Pipe shall be handled with care so that the coating will not be damaged. Proper facilities shall be provided for lowering the pipe into the trench. Damaged areas on coupling bands, pipe and bolts and angles shall be repaired as specified in paragraph TOUCH-UP prior to placing backfill except that exposed metal in joints shall be coated prior to making joints.

3.4 BACKFILL FOR PIPES

3.4.1 General

Backfill around the corrugated metal pipe shall be hand compacted (tamped) from the circumference of the pipe to a distance of at least 1 foot from the pipe. The fill material to be hand compacted shall be placed in layers not exceeding 4 inches in thickness and shall be compacted by application of a motor driven hand tamper or other approved hand compaction equipment over the fill in such a manner that every point of the surface of each layer of fill will be compacted by the hand tamper. The pipe conduit shall be held securely in place at all times while tamping is being performed to ensure proper bond between the pipe and the ground. Compaction of subsequent lifts shall be accomplished by equipment well suited to the type of material being compacted. No fill shall be placed against slopes steeper than one (1) horizontal to one (1) vertical unless approved.

3.4.2 Compaction

Pipe backfill placed as describe above shall be compacted at optimum moisture (plus or minus 2 percent) to within 95 percent of maximum density. Optimum moisture and maximum density shall be determined by the Contractor in accordance with ASTM D698-12 (Standard Proctor) from representative samples of each type of material to be placed. Test results shall be furnished to the Contracting Officer before placing pipe

backfill.
Field density and moisture content tests shall be determined by the Contractor in accordance with ASTM D6938-23 each lift placed. The Contractor shall furnish control tests and reports daily in accordance with Section 01 45 00.00 09 CONTRACTOR QUALITY CONTROL.

-- End of Section --

SECTION TABLE OF CONTENTS

DIVISION 35 - WATERWAY AND MARINE CONSTRUCTION

SECTION 35 41 20.00 09

EMERGENCY LEVEE CLOSURE

-- End of Section Table of Contents --

SECTION 35 41 20.00 09

EMERGENCY LEVEE CLOSURE

PART 1 GENERAL

1.1 SYSTEM DESCRIPTION

As may be required by a rise on the river and as directed by the Contracting Officer, the Contractor shall establish a continuous line of protection. Prior to any levee or berm embankment excavation, borrow material specified for use in the Embankment must be stockpiled to a height not-to-exceed 8 FT, sloped to drain, and processed on the landside seepage berm, 15 LF from the levee toe, within the project reach, with the volume of stockpiled material equal-to or greater-than the volume of material required to construct the levee and berm embankment to existing Levee elevation (123.0 FT NAVD) within the excavated reach. The emergency levee closure will be required when Mississippi River is forecast to reach an elevation that would come within two (2) feet of the last accepted lift of completed embankment according to the 5-day National Weather Service Mississippi River Forecast. Emergency levee closure may be removed and project work may resume as directed by the Contracting Officer. The closure shall have a cross section not less than that of the existing controlling levee. An equitable adjustment in contract price and time will be made in accordance with the Contract Clause CHANGES if an emergency closure is directed by KO or his authorized representative.

1.2 SUBMITTALS

Government approval is required for all submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Levee Closure Plan; G, EC-G

The Contractor shall develop an emergency plan for closing the levee opening should a rise on the river occur. The plan shall be submitted for approval before the commencement of any excavation. The basic components of this plan shall be:

a. Narrative thoroughly describing the methods used to acceptably complete the required closure within 96 hours after being directed to begin emergency closure construction by the Contracting Officer. The narrative shall also include description of the Contractor's plans to complete the closure at various stages of construction.

b. Listing of the equipment and labor to be utilized.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION

3.1 PLACEMENT

The closure required to re-establish a closed line of protection shall be placed in lifts not exceeding 8 inches, measured after compaction. Compaction shall be achieved by making a minimum of five (5) passes with a bulldozer or other approved compaction equipment. Testing is not required on this material. Following emergency levee closure and removal of emergency closure material, contractor will resume excavation and embankment placement with normal lift compaction and testing procedures in accordance with specification 31 24 00.00 09 EMBANKMENT.

3.2 FAILURE TO CLOSE

If the Contractor fails to close the levee without delay and in accordance with the approved Levee Closure Plan after notification from the Contracting Officer to proceed with emergency closure, the Contracting Officer may take over the emergency levee closure and complete it by contract or otherwise. The Government may take possession of and use any material, equipment, and plant on the worksite necessary for completing the closure. Any such actions taken by the Contracting Officer shall not be the basis of a claim against the Government. The Contractor shall not commit or permit any act that will interfere with the performance of work by any other contractor or by Government employees.

3.3 DURATION OF CLOSURE

Contracting Officer's Approval is required for removal of the emergency levee closure. Removal of the emergency levee closure will be allowed when the Mississippi River reaches a stage of 50.0 at the Vicksburg Gage and falling, or as otherwise directed by the Contracting Officer.

-- End of Section --

"General Decision Number: MS20260002 01/02/2026

Superseded General Decision Number: MS20250002

State: Mississippi

Construction Type: Heavy Flood Control

Counties: Mississippi Statewide.

RIVER, HARBOR AND FLOOD CONTROL PROJECTS FOR CONSTRUCTION OF ALL RIVER, HARBOR AND FLOOD CONTROL WORK ON THE MISSISSIPPI RIVER AND TRIBUTARIES -(EXCLUDING ANY CONTRACTS FOR ANY PHASE OF CONSTRUCTION OF A LOCK AND DAM) MISSISSIPPI - EXCEPT THE METROPOLITAN AREAS OF GREENVILLE, NATCHEZ AND VICKSBURG

Modification Number	Publication Date
0	01/02/2026

SUMS1991-004 12/18/1991

The following rates were revised pursuant to 29 CFR 1.6(c)(1) on 02/07/2025.

	Rates	Fringes
CARPENTER	$ 18.84	
Laborers:		
AIR TOOL OPERATOR	$ 18.84	
CHAIN SAW OPERATOR OR FILER	$ 18.84	
REVETMENT & DIKES	$ 18.84	
UNSKILLED	$ 18.84	
Power equipment operators:		
ASPHALT PLANT DRYER OPERATOR, ASPHALT DISTRIBUTOR, ASPHALT ROLLER, BULLDOZER (ROUGH, INCLUDING DISC, PLOW, OR ROLLER), MOTOR PATROL (HAUL ROADS), TRENCHING MACHINE (18"" & UNDER), SELF-PROPELLED ROLLER (EXCEPT ASPHALT, END DUMP EQUIPMENT (OFF HIGHWAY), MIXER (CONCRETE UP TO 21 CU. FT.), BOTTOM DUMP EUCLIDS (& LIKE EQUIPMENT)	$ 18.84	0.13
BULLDOZER (FINISHER, PUSH CAT & ON BARGES), MOTOR PATROL FINISHER, SCRAPER & LIKE EQUIPMENT, FRONT END LOADER, BACKHOE (TRACTOR MOUNTED) ASPHALT FINISHER OR SPREADING MACHINE, WELL POINT SYSTEM OPERATOR, SELF PROPELLED LOADER (CONVEYOR TYPE)	$ 18.84	0.13
FIREMAN (HEAVY CONSTRUCTION), PILEDRIVER, LEADSMAN, WINCHMAN	$ 18.84	0.13
OILER, PUMP, GREASER, TRACTOR (FARM TYPE INCLUDING DISC, PLOW OR		

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     ROLLER)....................$ 18.84            0.13
     PILEDRIVER OPERTOR,
     MECHANIC (HEAVY
     EQUIPMENT), CRANES,
     DERRICKS, DRAGLINES,
     WELDER, POWER SHOVELS &
     BACKHOES, MIXER (CONCRETE,
     21 CU. FT. & OVER),
     ASPHALT PLANT OPERATOR,
     TRENCHING MACHINE (OVER
     18"")......................$ 20.14            0.13

Truck drivers:
     1 1/2 TONS OR LESS.........$ 18.84
     OVER 1 1/2 TONS............$ 18.84
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WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at https://www.dol.gov/agencies/whd/government-contracts.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

a) a survey underlying a wage determination
b) an existing published wage determination
c) an initial WHD letter setting forth a position on a wage determination matter
d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION

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